

CHAPTER 98*

MUNICIPAL POWERS

*General legislation as to power of municipalities to create or abolish appointive offices does not affect charter provisions. 111 C. 674, 675. Ordinance should be construed so that no clause, sentence or word is superfluous, void or insignificant. 146 C. 70. Municipal corporation has only powers expressly conferred upon it by general statutes or by special act and those which are fairly to be implied as necessary to carry into effect powers expressly given; municipalities cannot enact ordinances contrary to public policy of state as declared in state legislation. 147 C. 60. When charter provision requires that act be done by ordinance, action taken in some other form cannot receive effect unless it is established that it was taken with all the formalities of, and published in the same manner as, an ordinance. Id., 401. Where General Assembly has delegated to local government power to deal with particular field of regulation, fact that statute regulates same subject in a limited way does not, ipso facto, deprive local government of power to act in a more comprehensive, but not inconsistent, manner. Id., 546. Where legislative body acts in good faith and with no intent to evade effect of referendum, it may pass legislation covering same subject matter if legislation differs essentially from measure previously rejected by voters. 148 C. 47. Where mode in which power granted to municipality is to be exercised is prescribed by statute, that mode must be followed; where statute and ordinance dealing with same matter conflict, statute prevails. Id., 517. Cited. 211 C. 690. Purposes of Home Rule Act. 258 C. 313.

Towns can exercise no powers except such as have been expressly granted to them or by fair implication conferred upon them by state. 21 CS 347.

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Sec. 7-148. Scope of municipal powers. (a) Definitions. Whenever used in this section, “municipality” means any town, city or borough, consolidated town and city or consolidated town and borough.

(b) Ordinances. Powers granted to any municipality under the general statutes or by any charter or special act, unless the charter or special act provides to the contrary, shall be exercised by ordinance when the exercise of such powers has the effect of:

(1) Establishing rules or regulations of general municipal application, the violation of which may result in the imposition of a fine or other penalty including community service for not more than twenty hours; or

(2) Creating a permanent local law of general applicability.

(c) Powers. Any municipality shall have the power to do any of the following, in addition to all powers granted to municipalities under the Constitution and general statutes:

(1) Corporate powers. (A) Contract and be contracted with, sue and be sued, and institute, prosecute, maintain and defend any action or proceeding in any court of competent jurisdiction;

(B) Provide for the authentication, execution and delivery of deeds, contracts, grants, and releases of municipal property and for the issuance of evidences of indebtedness of the municipality;

(2) Finances and appropriations. (A) Establish and maintain a budget system;

(B) Assess, levy and collect taxes for general or special purposes on all property, subjects or objects which may be lawfully taxed, and regulate the mode of assessment and collection of taxes and assessments not otherwise provided for, including establishment of a procedure for the withholding of approval of building application when taxes or water or sewer rates, charges or assessments imposed by the municipality are delinquent for the property for which an application was made;

(C) Make appropriations for the support of the municipality and pay its debts;

(D) Make appropriations for the purpose of meeting a public emergency threatening the lives, health or property of citizens, provided such appropriations shall require a favorable vote of at least two-thirds of the entire membership of the legislative body or, when the legislative body is the town meeting, at least two-thirds of those present and voting;

(E) Make appropriations to military organizations, hospitals, health care facilities, public health nursing organizations, nonprofit museums and libraries, organizations providing drug abuse and dependency programs and any other private organization performing a public function;

(F) Provide for the manner in which contracts involving unusual expenditures shall be made;

(G) When not specifically prescribed by general statute or by charter, prescribe the form of proceedings and mode of assessing benefits and appraising damages in taking land for public use, or in making public improvements to be paid for, in whole or in part, by special assessments, and prescribe the manner in which all benefits assessed shall be collected;

(H) Provide for the bonding of municipal officials or employees by requiring the furnishing of such bond, conditioned upon honesty or faithful performance of duty and determine the amount, form, and sufficiency of the sureties thereof;

(I) Regulate the method of borrowing money for any purpose for which taxes may be levied and borrow on the faith and credit of the municipality for such general or special purposes and to such extent as is authorized by general statute;

(J) Provide for the temporary borrowing of money;

(K) Create a sinking fund or funds or a trust fund or funds or other special funds, including funds which do not lapse at the end of the municipal fiscal year;

(L) Provide for the assignment of municipal tax liens on real property to the extent authorized by general statute;

(3) Property. (A) Take or acquire by gift, purchase, grant, including any grant from the United States or the state, bequest or devise and hold, condemn, lease, sell, manage, transfer, release and convey such real and personal property or interest therein absolutely or in trust as the purposes of the municipality or any public use or purpose, including that of education, art, ornament, health, charity or amusement, cemeteries, parks or gardens, or the erection or maintenance of statues, monuments, buildings or other structures, require. Any lease of real or personal property or any interest therein, either as lessee or lessor, may be for such term or any extensions thereof and upon such other terms and conditions as have been approved by the municipality, including without limitation the power to bind itself to appropriate funds as necessary to meet rent and other obligations as provided in any such lease;

(B) Provide for the proper administration of gifts, grants, bequests and devises and meet such terms or conditions as are prescribed by the grantor or donor and accepted by the municipality;

(4) Public services. (A) Provide for police protection, regulate and prescribe the duties of the persons providing police protection with respect to criminal matters within the limits of the municipality and maintain and regulate a suitable place of detention within the limits of the municipality for the safekeeping of all persons arrested and awaiting trial and do all other things necessary or desirable for the policing of the municipality;

(B) Provide for fire protection, organize, maintain and regulate the persons providing fire protection, provide the necessary apparatus for extinguishing fires and do all other things necessary or desirable for the protection of the municipality from fire;

(C) Provide for entertainment, amusements, concerts, celebrations and cultural activities, including the direct or indirect purchase, ownership and operation of the assets of one or more sports franchises;

(D) Provide for ambulance service by the municipality or any person, firm or corporation;

(E) Provide for the employment of nurses;

(F) Provide for lighting the streets, highways and other public places of the municipality and for the care and preservation of public lamps, lamp posts and fixtures;

(G) Provide for the furnishing of water, by contract or otherwise;

(H) Provide for or regulate the collection and disposal of garbage, trash, rubbish, waste material and ashes by contract or otherwise, including prohibiting the throwing or placing of such materials on the highways;

(I) Provide for the financing, construction, rehabilitation, repair, improvement or subsidization of housing for low and moderate income persons and families;

(5) Personnel. (A) Provide for and establish pension systems for the officers and employees of the municipality and for the active members of any volunteer fire department or any volunteer ambulance association of the municipality, and establish a system of qualification for the tenure in office of such

officers and employees, provided the rights or benefits granted to any individual under any municipal retirement or pension system shall not be diminished or eliminated;

(B) Establish a merit system or civil service system for the selection and promotion of public officials and employees. Nothing in this subparagraph shall be construed to validate any merit system or civil service system established prior to May 24, 1972;

(C) Provide for the employment of and prescribe the salaries, compensation and hours of employment of all officers and employees of the municipality and the duties of such officers and employees not expressly defined by the Constitution of the state, the general statutes, charter or special act;

(D) Provide for the appointment of a municipal historian;

(6) Public works, sewers, highways. (A) Public facilities. (i) Establish, lay out, construct, reconstruct, alter, maintain, repair, control and operate cemeteries, public burial grounds, hospitals, clinics, institutions for children and aged, infirm and chronically ill persons, bus terminals and airports and their accessories, docks, wharves, school houses, libraries, parks, playgrounds, playfields, fieldhouses, baths, bathhouses, swimming pools, gymnasiums, comfort stations, recreation places, public beaches, beach facilities, public gardens, markets, garbage and refuse disposal facilities, parking lots and other off-street parking facilities, and any and all buildings or facilities necessary or convenient for carrying on the government of the municipality;

(ii) Create, provide for, construct, regulate and maintain all things in the nature of public works and improvements;

(iii) Enter into or upon any land for the purpose of making necessary surveys or mapping in connection with any public improvement, and take by eminent domain any lands, rights, easements, privileges, franchises or structures which are necessary for the purpose of establishing, constructing or maintaining any public work, or for any municipal purpose, in the manner prescribed by the general statutes;

(iv) Regulate and protect from injury or defacement all public buildings, public monuments, trees and ornaments in public places and other public property in the municipality;

(v) Provide for the planting, rearing and preserving of shade and ornamental trees on the streets and public grounds;

(vi) Provide for improvement of waterfronts by a board, commission or otherwise;

(B) Sewers, drainage and public utilities. (i) Lay out, construct, reconstruct, repair, maintain, operate, alter, extend and discontinue sewer and drainage systems and sewage disposal plants;

(ii) Enter into or upon any land for the purpose of correcting the flow of surface water through watercourses which prevent, or may tend to prevent, the free discharge of municipal highway surface water through said courses;

(iii) Regulate the laying, location and maintenance of gas pipes, water pipes, drains, sewers, poles, wires, conduits and other structures in the streets and public places of the municipality;

(iv) Prohibit and regulate the discharge of drains from roofs of buildings over or upon the sidewalks, streets or other public places of the municipality or into sanitary sewers;

(v) Enter into energy-savings performance contracts;

(C) Highways and sidewalks. (i) Lay out, construct, reconstruct, alter, maintain, repair, control, operate, and assign numbers to streets, alleys, highways, boulevards, bridges, underpasses, sidewalks, curbs, gutters, public walks and parkways;

(ii) Keep open and safe for public use and travel and free from encroachment or obstruction the streets, sidewalks and public places in the municipality;

(iii) Control the excavation of highways and streets;

(iv) Regulate and prohibit the excavation, altering or opening of sidewalks, public places and grounds for public and private purposes and the location of any work or things thereon, whether temporary or permanent, upon or under the surface thereof;

(v) Require owners or occupants of land adjacent to any sidewalk or public work to remove snow, ice, sleet, debris or any other obstruction therefrom, provide penalties upon their failure to do so, and cause such snow, ice, sleet, debris or other obstruction to be removed and make the cost of such removal a lien on such property;

(vi) Grant to abutting property owners a limited property or leasehold interest in abutting streets and sidewalks for the purpose of encouraging and supporting private commercial development;

(7) Regulatory and police powers. (A) Buildings. (i) Make rules relating to the maintenance of safe and sanitary housing and prescribe civil penalties for the violation of such rules against an owner of rental property not to exceed two thousand dollars per violation, provided if multiple violations are discovered on the same date, such violations shall be enforced as one violation, and any such owner assessed a civil penalty pursuant to this subparagraph shall have a right of appeal to the legislative body of the municipality, or to the board of selectmen in a municipality where the legislative body is a town meeting, upon the grounds that such violation was proximately caused by a tenant's reckless or wilful act;

(ii) Regulate the mode of using any buildings when such regulations seem expedient for the purpose of promoting the safety, health, morals and general welfare of the inhabitants of the municipality;

(iii) Regulate and prohibit the moving of buildings upon or through the streets or other public places of the municipality, and cause the removal and demolition of unsafe buildings and structures;

(iv) Regulate and provide for the licensing of parked trailers when located off the public highways, and trailer parks or mobile manufactured home parks, except as otherwise provided by special act and except where there exists a local zoning commission so empowered;

(v) Establish lines beyond which no buildings, steps, stoop, veranda, billboard, advertising sign or device or other structure or obstruction may be erected;

(vi) Regulate and prohibit the placing, erecting or keeping of signs, awnings or other things upon or over the sidewalks, streets and other public places of the municipality;

(vii) Regulate plumbing and house drainage;

(viii) Prohibit or regulate the construction of dwellings, apartments, boarding houses, hotels, commercial buildings, youth camps or commercial camps and commercial camping facilities in such municipality unless the sewerage facilities have been approved by the authorized officials of the municipality;

(B) Traffic. (i) Regulate and prohibit, in a manner not inconsistent with the general statutes, traffic, the operation of vehicles on streets and highways, off-street parking and on-street residential neighborhood parking areas in which on-street parking is limited to residents of a given neighborhood, as determined by the municipality;

(ii) Regulate the speed of vehicles, subject to the provisions of the general statutes relating to the regulation of the speed of motor vehicles and of animals, and the driving or leading of animals through the streets;

(iii) Require that conspicuous signage be posted in any area where a motor vehicle may be subject to towing or to the use of a wheel-locking device that renders such motor vehicle immovable, and that such signage indicate where the motor vehicle will be stored, how the vehicle may be redeemed and any costs or fees that may be charged;

(C) Building adjuncts. Regulate and prohibit the construction or use, and require the removal of sinks, cesspools, drains, sewers, privies, barns, outhouses and poultry pens and houses;

(D) Animals. (i) Regulate and prohibit the going at large of dogs and other animals in the streets and public places of the municipality and prevent cruelty to animals and all inhuman sports, except that no municipality shall adopt breed-specific dog ordinances;

(ii) Regulate and prohibit the keeping of wild or domestic animals, including reptiles, within the municipal limits or portions thereof;

(E) Nuisance. Define, prohibit and abate within the municipality all nuisances and causes thereof, and all things detrimental to the health, morals, safety, convenience and welfare of its inhabitants and cause the abatement of any nuisance at the expense of the owner or owners of the premises on which such nuisance exists;

(F) Loitering and trespassing. (i) Keep streets, sidewalks and public places free from undue noise and nuisances, and prohibit loitering thereon;

(ii) Regulate loitering on private property with the permission of the owner thereof;

(iii) Prohibit the loitering in the nighttime of minors on the streets, alleys or public places within its limits;

(iv) Prevent trespassing on public and private lands and in buildings in the municipality;

(G) Vice. Prevent vice and suppress gambling houses, houses of ill-fame and disorderly houses;

(H) Public health and safety. (i) Secure the safety of persons in or passing through the municipality by regulation of shows, processions, parades and music;

(ii) Regulate and prohibit the carrying on within the municipality of any trade, manufacture, business or profession which is, or may be, so carried on as to become prejudicial to public health, conducive to fraud and cheating, or dangerous to, or constituting an unreasonable annoyance to, those living or owning property in the vicinity;

(iii) Regulate auctions and garage and tag sales;

(iv) Prohibit, restrain, license and regulate the business of peddlers, auctioneers and junk dealers in a manner not inconsistent with the general statutes;

(v) Regulate and prohibit swimming or bathing in the public or exposed places within the municipality;

(vi) Regulate and license the operation of amusement parks and amusement arcades including, but not limited to, the regulation of mechanical rides and the establishment of the hours of operation;

(vii) Prohibit, restrain, license and regulate all sports, exhibitions, public amusements and performances and all places where games may be played;

(viii) Preserve the public peace and good order, prevent and quell riots and disorderly assemblages and prevent disturbing noises;

(ix) Establish a system to obtain a more accurate registration of births, marriages and deaths than the system provided by the general statutes in a manner not inconsistent with the general statutes;

(x) Control insect pests or plant diseases in any manner deemed appropriate;

(xi) Provide for the health of the inhabitants of the municipality and do all things necessary or desirable to secure and promote the public health;

(xii) Regulate the use of streets, sidewalks, highways, public places and grounds for public and private purposes;

(xiii) Make and enforce police, sanitary or other similar regulations and protect or promote the peace, safety, good government and welfare of the municipality and its inhabitants;

(xiv) Regulate, in addition to the requirements under section [7-282b](#), the installation, maintenance and operation of any device or equipment in a residence or place of business which is capable of automatically calling and relaying recorded emergency messages to any state police or municipal police or fire department telephone number or which is capable of automatically calling and relaying recorded emergency messages or other forms of emergency signals to an intermediate third party which shall thereafter call and relay such emergency messages to a state police or municipal police or fire department telephone number. Such regulations may provide for penalties for the transmittal of false alarms by such devices or equipment;

(xv) Make and enforce regulations for the prevention and remediation of housing blight or blight upon any commercial real property, including regulations reducing assessments and authorizing designated agents of the municipality to enter property during reasonable hours for the purpose of remediating blighted conditions, provided such regulations define blight and require such municipality to give written notice of any violation to the owner of the property and provide a reasonable opportunity for the owner to remediate the blighted conditions prior to any enforcement action being taken, except that a municipality may take immediate enforcement action in the case of a violation at a property that is the third or more such blight violation at such property during the prior twelve-month period, and further provided such regulations shall not authorize such municipality or its designated agents to enter any dwelling house or structure on such property, and including regulations establishing a duty to maintain property and specifying standards to determine if there is neglect; prescribe civil penalties for the violation of such regulations (I) for housing blight upon real property containing six or fewer dwelling units, of not more than one hundred fifty dollars for each day that a violation continues if such violation occurs at an occupied property, not more than two hundred fifty dollars for each day that a violation continues if such violation occurs at a vacant property, and not more than one thousand dollars for each day that a violation continues at a property if such violation is the third or more such violation at such property during the prior twelve-month period, (II) for housing blight upon real property containing more than six but fewer than forty dwelling units, not more than ten cents per square foot of each residential building upon such real property for each day that a violation continues, (III) for housing blight upon real property containing forty or more dwelling units, not more than twelve cents per square foot of each residential building upon such real property for each day that a violation continues, and (IV) for blight upon any commercial real property, not more than ten cents per square foot of any commercial building upon such real property for each day that a violation continues. If any such civil penalties are prescribed, such municipality shall adopt a citation hearing procedure in accordance with section [7-152c](#). For the sole purpose of determining if a violation is the third or more such violation at such property during the prior twelve-month period, "violation" means a violation of any municipal blight regulation for which the municipality has issued a notice of violation and either, in the determination of such municipality, the conditions creating such violation were previously cured or one hundred twenty days have passed from the notice of violation and the conditions creating such violation have not been cured. A third violation may also be established where three or more conditions constituting such violation exist at a property simultaneously;

(xvi) Regulate, on any property owned by or under the control of the municipality, any activity deemed to be deleterious to public health, including the burning of a lighted cigarette, cigar, pipe or similar device, whether containing, wholly or in part, tobacco or cannabis, as defined in section [21a-420](#), and the use or consumption of cannabis, including, but not limited to, electronic cannabis delivery systems, as defined in section [19a-342a](#), or vapor products, as defined in said section, containing cannabis. If the municipality's population is greater than fifty thousand, such regulations shall designate a place in the municipality in which public consumption of cannabis is permitted. Such regulations may prohibit the smoking of cannabis and the use of electronic cannabis delivery systems and vapor products containing cannabis in the outdoor sections of a restaurant. Such regulations may prescribe penalties for the violation of such regulations, provided such fine does not exceed fifty dollars for a violation of such regulations regarding consumption by an individual or a fine in excess of one thousand dollars to any business for a violation of such regulations;

(8) The environment. (A) Provide for the protection and improvement of the environment including, but not limited to, coastal areas, wetlands and areas adjacent to waterways in a manner not inconsistent with the general statutes;

(B) Regulate the location and removal of any offensive manure or other substance or dead animals through the streets of the municipality and provide for the disposal of same;

(C) Except where there exists a local zoning commission, regulate the filling of, or removal of, soil, loam, sand or gravel from land not in public use in the whole, or in specified districts of, the municipality, and provide for the reestablishment of ground level and protection of the area by suitable cover;

(D) Regulate the emission of smoke from any chimney, smokestack or other source within the limits of the municipality, and provide for proper heating of buildings within the municipality;

(9) Human rights. (A) Provide for fair housing;

(B) Adopt a code of prohibited discriminatory practices;

(10) Miscellaneous. (A) Make all lawful regulations and ordinances in furtherance of any general powers as enumerated in this section, and prescribe penalties for the violation of the same not to exceed two hundred fifty dollars, unless otherwise specifically provided by the general statutes. Such regulations and ordinances may be enforced by citations issued by designated municipal officers or employees, provided the regulations and ordinances have been designated specifically by the municipality for enforcement by citation in the same manner in which they were adopted and the designated municipal officers or employees issue a written warning providing notice of the specific violation before issuing the citation, except that no such written warning shall be required for violations of a municipal ordinance regulating the operation or use of a dirt bike, all-terrain vehicle or mini-motorcycle;

(B) Adopt a code of ethical conduct;

(C) Establish and maintain free legal aid bureaus;

(D) Perform data processing and related administrative computer services for a fee for another municipality;

(E) Adopt the model ordinance concerning a municipal freedom of information advisory board created under subsection (f) of section [1-205](#) and establish a municipal freedom of information advisory board as provided by said ordinance and said section;

(F) Protect the historic or architectural character of properties or districts that are listed on, or under consideration for listing on, the National Register of Historic Places, 16a USC 470, or the state register of historic places, as defined in section [10-410](#).

(1949 Rev., S. 619; 1953, 1955, S. 248d; 1957, P.A. 13, S. 7; 201; 354, S. 1; 1959, P.A. 359, S. 1; 1961, P.A. 187; 570; 1963, P.A. 434; 626; February, 1965, P.A. 582; 1967, P.A. 126; 805, S. 3; 830; 1969, P.A. 694, S. 20; 1971, P.A. 389, S. 1; 802, S. 1; P.A. 73-614, S. 2, 3; P.A. 75-178, S. 1, 2; P.A. 76-32; P.A. 78-331, S. 4, 58; P.A. 79-531, S. 1; 79-618, S. 1; P.A. 80-403, S. 7, 10; P.A. 81-219, S. 1, 3; P.A. 82-327, S. 5; P.A. 83-168, S. 3; 83-188, S. 1; 83-587, S. 78, 96; June Sp. Sess. P.A. 83-3, S. 1; P.A. 84-232, S. 1-3; P.A. 86-97, S. 2, 3; 86-229, S. 1, 2; P.A. 87-278, S. 1, 5; P.A. 88-213, S. 1, 2; 88-221, S. 1; P.A. 90-334, S. 1; P.A. 93-434, S. 18, 20; P.A. 95-7; 95-320; P.A. 97-199, S. 5; 97-320, S. 4, 11; June 18 Sp. Sess. P.A. 97-11, S. 62, 65; P.A. 98-188, S. 2; P.A. 99-129; 99-188, S. 3, 6; P.A. 00-136, S. 7, 10; P.A. 01-128, S. 1; P.A. 03-19, S. 19; P.A. 06-185, S. 7; P.A. 07-141, S. 4; P.A. 08-184, S. 34; P.A. 10-152, S. 7; P.A. 11-80, S. 122; P.A. 12-146, S. 2; P.A. 13-103, S. 1; 13-181, S. 1; P.A. 15-42, S. 9; 15-100, S. 1; P.A. 16-208, S. 3; June Sp. Sess. P.A. 21-1, S. 84; P.A. 23-33, S. 2; 23-207, S. 3; P.A. 24-143, S. 5.)

History: 1959 act authorized establishment and maintenance of parks, etc., “by a board, commission or otherwise”; 1961 acts deleted semicolon between the words “mobile home parks” and “and regulate the removal of soil, loam,” etc. and added provision regulations enacted by local zoning commission would have same effect as ordinance; 1963 acts added provision for improvement of waterfronts “by a board, commission or otherwise” and added power to enact ordinances re sewer and drainage systems and sewage disposal plants and entry on land to correct surface water flow; 1965 act authorized zoning commission to regulate the filling of land not in public use; 1967 acts added power to furnish ambulance service, deleted power to set poll hours for elections and added power to regulate loitering; 1969 act deleted power to set poll hours for electors’ meetings and referenda; 1971 acts added power to fix hours of operation of amusement parks and arcades and to establish commission or board to protect and improve environment and deleted power to regulate building construction; P.A. 73-614 added power to regulate off-street parking available to public on private property; P.A. 75-178 added power to acquire and sell personal and real property for benefit of the municipality; P.A. 76-32 replaced power to regulate loitering on public property with broader power to regulate use of streets, sidewalks, etc.; P.A. 78-331 divided section into subsecs. and subdvs. and restored power to acquire and sell real and personal property which was inadvertently dropped in 1976 act; P.A. 79-531 added power to provide fair housing and to perform data processing services for other towns in Subsec. (a); P.A. 79-618 added power to adopt ethics code in Subsec. (a); P.A. 80-403 added power to adopt code of discriminatory practices in Subsec. (a); P.A. 81-219 reorganized the section and included powers previously reserved for charter towns under Sec. 7-194, effective October 1, 1982; P.A. 82-327 completed the revision of power begun by P.A. 81-219; P.A. 83-168 added power to regulate automatic calling devices, designated as Subsec. (c)(7)(H)(xiv); P.A. 83-188 made technical changes in Subdiv. (c)(5)(C); P.A. 83-587 substituted “7-282b” for “7-282a” in Subsec. (c)(7)(H)(xiv); June Sp. Sess. 83-3 changed term “mobile home” to “mobile manufactured home” in Subsec. (c)(7)(A)(iv); P.A. 84-232 amended Subsec. (c)(3) to include encouragement of private commercial development and amended Subsec. (c)(6)(C) to authorize grants of limited property or leasehold interests in streets and sidewalks to abutting property owners; P.A. 86-97 amended Subsec. (c)(5) to include authorization to establish pension systems for members of volunteer fire departments; P.A. 86-229 amended Subsec. (c)(2)(K) to include references to trust funds and to funds which do not lapse at the end of the municipal fiscal year and added Subsec. (c)(4)(I) re housing for those with low or moderate incomes; P.A. 87-278 added Subsec. (c)(5)(D) re appointment of municipal historians; P.A. 88-213 added provision in Subsec. (c)(7)(B) to allow municipalities to regulate and prohibit on-street residential neighborhood parking; P.A. 88-221 amended Subsec. (c)(10)(A) to provide that regulations and ordinances may be enforced by citations by designated municipal officers, provided the regulations and ordinances are so designated and the written warning is issued before issuance of citation; P.A. 90-334 added provision in Subsec. (c)(7)(H) to allow municipalities to make and enforce regulations preventing housing blight; P.A. 93-434 added provision in Subsec. (c)(2)(L) to allow municipalities to assign tax liens on real property, effective June 30, 1993; P.A. 95-7 amended Subsec. (c) (5) (A) to authorize municipalities to establish pensions for active members of volunteer ambulance associations; P.A. 95-320 amended Subsec. (c)(2)(B) to allow municipalities to withhold approval of building application when taxes are delinquent on the property; P.A. 97-199 amended Subsec. (b)(1) by adding “including community service for not more than twenty hours”; P.A. 97-320 amended Subsec. (c)(7)(H)(xv) to authorize blight ordinance to include provision re reduction of assessments, effective July 1, 1997; June 18 Sp. Sess. P.A. 97-11 changed effective date of P.A. 97-199 from

October 1, 1997, to July 1, 1997, effective July 1, 1997; P.A. 98-188 added provision in Subsec. (c)(2)(B) re delinquent water or sewer rates, charges or assessments; P.A. 99-129 added provision in Subsec. (c)(7)(H) to allow municipalities to impose fines for violation of blight regulations; P.A. 99-188 amended Subsec. (c)(4)(C) to allow towns to purchase, own and operate sports franchises, effective June 23, 1999; P.A. 00-136 amended Subsec. (c)(10) to add new Subpara. (E) re municipal freedom of information advisory boards, effective July 1, 2000; P.A. 01-128 amended Subsec. (c)(7)(H)(xv) to authorize regulations to establish a duty to maintain property and to specify standards to determine neglect; P.A. 03-19 made a technical change in Subsec. (c)(7)(H)(xv), effective May 12, 2003; P.A. 06-185 amended Subsec. (c)(10)(A) to increase maximum penalty for violation of regulations and ordinances from \$100 to \$250; P.A. 07-141 amended Subsec. (c)(3)(A) to delete “or the encouragement of private commercial development” re power to take or acquire property, effective June 25, 2007, and applicable to property acquired on or after that date; P.A. 08-184 amended Subsec. (c)(7)(H) to add clause (xvi) re regulation on municipally owned property of any activity deemed to be deleterious to public health; P.A. 10-152 amended Subsec. (c)(7)(H)(xv) to authorize regulations for the remediation of housing blight, to provide that regulations may authorize designated agents of municipalities to enter property for purpose of remediating blighted conditions and to prohibit regulations from authorizing entry into dwelling house or structure on such property; P.A. 11-80 amended Subsec. (c)(6)(B) to add clause (v) re energy-savings performance contracts, effective July 1, 2011; P.A. 12-146 amended Subsec. (c)(7)(H)(xv) by providing that regulations require municipality to give written notice of housing blight violation and reasonable opportunity to remediate blighted conditions and by changing “fines” to “civil penalties”; P.A. 13-103 amended Subsec. (c)(7)(D) by adding provision prohibiting adoption of breed-specific dog ordinances; P.A. 13-181 amended Subsec. (c)(10) by adding Subpara. (F) re protection of historic or architectural character of properties or districts; P.A. 15-42 amended Subsec. (c)(7)(B) to add clause (iii) re signs for towing or use of wheel-locking devices; P.A. 15-100 amended Subsec. (c)(10)(A) by exempting dirt bike and all-terrain vehicle ordinance violations from written warning requirement; P.A. 16-208 amended Subsec. (c)(10)(A) by adding reference to mini-motorcycle in provision re exception to written warning requirement; June Sp. Sess. P.A. 21-1 amended Subsec. (c)(H)(xvi) by adding “or under the control of”, replacing “lighting or carrying” with “burning” and adding provisions re cannabis, electronic cannabis delivery systems and vapor products containing cannabis and authorization for fine of up to \$50 for individual or \$1,000 for business violations of regulations; P.A. 23-33 amended Subsec. (c)(7)(H) to allow municipalities to adopt blight ordinances re commercial real property, to take immediate enforcement action for certain blight violations and increase maximum fines for certain blight violations; P.A. 23-207 amended Subsec. (c)(7)(A) to allow municipalities to establish civil penalties for violations of ordinances concerning safe and sanitary housing; P.A. 24-143 amended Subsec. (c)(7)(H)(xv) by adding provisions re fines for blight violations based on square footage of certain structures as subclauses (I) to (IV) and making conforming and technical changes.

See Sec. 7-148ff re ordinances imposing special assessment on blighted housing.

See Sec. 14-390 re ordinance on operation and use of snowmobiles and all-terrain vehicles.

See Sec. 14-390m re ordinance on operation and use of dirt bikes and mini-motorcycles and applicable definitions.

See Sec. 29-265b re ordinance requiring rain sensor devices on automatic lawn sprinkler systems.

For constitutionality, see 95 C. 365. Cited. 102 C. 228. Vote to change compensation of town officers under section discussed. 103 C. 424, see also 104 C. 255. Grant of power to enact ordinances ordinarily implies power to repeal them. 118 C. 11. Cited. 119 C. 603. State delegated power to make traffic rules applying to all vehicles alike, but retained special power to regulate motor vehicles with specific exceptions noted in Sec. 14-162. 125 C. 501; 135 C. 71. Cited. 129 C. 109; 133 C. 29; 135 C. 421. “Regulate” does not so much imply creating a new thing as arranging and controlling that which already exists. 143 C. 152. Confers necessary power to adopt legislation regulating auctions. *Id.*, 698. Ordinance imposing time limitations on the occupancy of land by trailers and mobile homes held constitutional. 146 C. 697. Constitutionality of ordinance licensing and regulating trailer and mobile home parks discussed; towns without zoning authorities should have power to deal with trailers and mobile homes not only in matters narrowly

concerned with public health and safety but in matters concerned with economic and esthetic considerations which can affect public welfare; if ordinance which is police measure imposes a fee, such fee must be reasonably proportionate to cost of administering and enforcing the ordinance. Id., 720. Power to adopt rent control not within general delegation of police power. 147 C. 60. If charter empowers legislative body of municipality to adopt and amend its own rules of order in exercising certain legislative functions, such body need not act by ordinance or resolution. 148 C. 33. Cited. Id., 233. Attempt by common council to establish law department by ordinance ineffective where charter provisions were inconsistent with the exercise of such power. 152 C. 287; Id., 318; 158 C. 100. Cited. 166 C. 376; 181 C. 114; 183 C. 495; 203 C. 267; 227 C. 363; 234 C. 513, 538.

Cited. 1 CA 505; 13 CA 1; 17 CA 17; judgment reversed, see 212 C. 570.

Town limited in authority where city or borough has duplicate power. 14 CS 258. Test for powers by implication is necessity not convenience. 15 CS 344. Cited. 20 CS 464. Omission of any direct mention of a mobile home park as a permitted use of land anywhere in a town does not render zoning law void or unconstitutional. 21 CS 275. Town may regulate garbage disposal business; it cannot prohibit it; ordinance prohibiting transportation into a town of garbage from any other town held void. Id., 347. Zoning regulation requiring permit for commercial removal of sand and gravel not taking of property without due process; proper exercise of police power. 25 CS 125. Does not permit adoption of original “special event” ordinance. 29 CS 48. Cited. 36 CS 74.

Cited as authority for municipality to establish monetary fine for violation of housing code. 4 Conn. Cir. Ct. 244.

Subsec. (c):

Cited. 192 C. 399; 195 C. 524; 201 C. 700; 203 C. 14; 208 C. 543; 212 C. 147; 217 C. 447; 237 C. 135. Subdiv. (7)(H)(xi): Ordinance banning all cigarette vending machines was valid exercise of town's police power, and legislative enactment of Sec. 12-289a was intended to ensure that municipalities remained free to decide if local conditions warranted additional regulation of cigarette vending machines, up to and including an outright ban. 256 C. 105. In Subdiv. (1)(A), general power to sue and be sued does not mean that municipality may bring suit that it otherwise would have no standing to bring; in Subdiv. (7)(H)(xi), general power to protect health and welfare of municipal inhabitants does not mean that municipality may bring suit with that aim that it otherwise would have no standing to bring. 258 C. 313. “Public improvement”, as used in Subdiv. (6)(A)(iii), is not limited to projects that either already exist or have been approved and funded by municipality; accordingly, Subdiv. (6)(A)(iii) includes within its ambit studies intended to determine feasibility of a particular project. 274 C. 483. The grant of police powers to municipalities under section is sufficiently broad to encompass the power to require licensing and inspections of residential rental real estate. 288 C. 181. Although statutes confer on municipalities the power to control streets and to regulate traffic in order to prevent unsafe traffic conditions, under present facts, town's closure of road to prevent access from subdivision in adjoining town was inconsistent with statutes governing review of subdivision applications. 295 C. 802.

Cited. 4 CA 261; 10 CA 209; 29 CA 207. Provision enabling municipality to adopt an ordinance providing for the furnishing of water did not authorize planning commission to adopt subdivision regulations that address issues re water supply and water main extensions in a proposed subdivision. 114 CA 509.

Cited. 37 CS 124; 44 CS 389.

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Sec. 7-148a. Compilations of ordinances and special acts; supplements. Each town, city and borough in this state shall print and publish all amendments to its ordinances, all new ordinances and all special acts adopted after June 1, 1962, on or before March first of each even-numbered year as a cumulative

supplement to the compilation of its ordinances and special acts. Such compilation and all supplements thereto shall be available for sale to the public at the office of the clerk or other similar office in such municipality at a reasonable cost to be determined by such municipality and a copy of each such compilation and supplement, whether tangible or intangible in form, shall be deposited by the clerk of the municipality in the office of the Secretary of the State, in the State Library, in each bar library in the judicial district in which such municipality is located and in the courthouse library of the court nearest to such municipality. If any town, city or borough fails to comply with the provisions of this section, the Secretary of the State shall provide for the original compilation and publication of such ordinances and special acts or of any supplement thereto and such town, city or borough shall be liable for the cost of such compilation and publication.

(1959, P.A. 430; 1961, P.A. 66; 281; February, 1965, P.A. 249; P.A. 74-183, S. 175, 291; P.A. 76-436, S. 155, 681; P.A. 78-280, S. 1, 127; P.A. 07-227, S. 18.)

History: 1961 acts set deadline of June 1, 1962, (formerly December 1, 1960) for completion of compilation, provided for depositing copies in various libraries and required secretary of state to provide for compilation and publication of ordinances, etc., if municipality fails to do so with municipality bearing responsibility for cost; 1965 act deleted obsolete reference to requirement that municipalities compile and publish ordinances and special acts before June 1, 1962, and specified subsequent ordinances and special acts be printed and published on or before March first of each even-numbered year; P.A. 74-183 replaced circuit court with court of common pleas; P.A. 76-436 deleted reference to specific court class, stating that books be placed in nearest courthouse library, effective July 1, 1978; P.A. 78-280 substituted “judicial district” for “county”; P.A. 07-227 added reference to tangible or intangible copies, effective July 1, 2007.

See Sec. 51-197b re administrative appeals.

Deposit of compilation of town ordinances in county bar library is directive and failure to do so does not invalidate such ordinances. 29 CS 59.

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Sec. 7-148b. Creation of fair rent commission. Powers. (a) For purposes of this section and sections [7-148c](#) to [7-148f](#), inclusive, “seasonal basis” means housing accommodations rented for a period or periods aggregating not more than one hundred twenty days in any one calendar year and “rental charge” includes any fee or charge in addition to rent that is imposed or sought to be imposed upon a tenant by a landlord.

(b) Any town, city or borough may, and any town, city or borough with a population of twenty-five thousand or more, as determined by the most recent decennial census, shall, through its legislative body, adopt an ordinance that creates a fair rent commission. Any such commission shall make studies and investigations, conduct hearings and receive complaints relative to rental charges on housing accommodations, except those accommodations rented on a seasonal basis, within its jurisdiction, which term shall include mobile manufactured homes and mobile manufactured home park lots, in order to control and eliminate excessive rental charges on such accommodations, and to carry out the provisions of sections [7-148b](#) to [7-148f](#), inclusive, section [47a-20](#) and subsection (b) of section [47a-23c](#). The commission, for such purposes, may compel the attendance of persons at hearings, issue subpoenas and administer oaths, issue orders and continue, review, amend, terminate or suspend any of its orders and decisions. The commission may be empowered to retain legal counsel to advise it.

(c) Any town, city or borough required to create a fair rent commission pursuant to subsection (b) of this section shall adopt an ordinance creating such commission on or before July 1, 2023. Not later than thirty days after the adoption of such ordinance, the chief executive officer of such town, city or borough shall (1) notify the Commissioner of Housing that such commission has been created, and (2) transmit a copy of the ordinance adopted by the town, city or borough to the commissioner.

(d) Any two or more towns, cities or boroughs not subject to the requirements of subsection (b) of this section may, through their legislative bodies, create a joint fair rent commission.

(1969, P.A. 274, S. 1; 1971, P.A. 478, S. 1; 1972, P.A. 160, S. 1; P.A. 81-472, S. 101, 159; P.A. 82-356, S. 8, 14; June Sp. Sess. P.A. 83-3, S. 1; P.A. 89-289; P.A. 05-288, S. 40; P.A. 13-36, S. 1; P.A. 22-30, S. 1.)

History: 1971 act specified applicability to housing accommodations rather than “property”, including mobile homes and lots and excluding seasonal accommodations which were defined in new Subsec. (b); 1972 act added power to carry out provisions of Secs. 7-148b to 7-148e, to issue, amend, terminate, etc. orders and to retain legal counsel; P.A. 81-472 substituted reference to Sec. 47a-20 for reference to Sec. 19-375a, reflecting section's transfer; P.A. 82-356 amended Subsec. (a) to authorize a fair rent commission to carry out the provisions of Sec. 47a-23c(b); June Sp. Sess. P.A. 83-3 changed terms “mobile home” and “mobile manufactured homes” to “mobile manufactured home” and “mobile manufactured homes”; P.A. 89-289 added Subsec. (c) re creation of fair rent commissions in municipalities having more than 5,000 renter-occupied dwelling units and added Subsec. (d) re creation of joint fair rent commissions; P.A. 05-288 made a technical change in Subsecs. (a), (b) and (d), effective July 13, 2005; P.A. 13-36 added new Subsec. (a) defining “seasonal basis” and “rental charge” for purposes of section and Secs. 7-148c to 7-148f, redesignated existing Subsec. (a) as Subsec. (b) and deleted former Subsec. (b) re definition of “seasonal basis”; P.A. 22-30 amended Subsec. (b) to add provision re certain towns, cities, or boroughs to create fair rent commissions and amended Subsec. (c) re adoption of ordinances to create such commissions.

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Sec. 7-148c. Considerations in determining rental charge to be excessive. In determining whether a rental charge or a proposed increase in a rental charge is so excessive, with due regard to all the circumstances, as to be harsh and unconscionable, a fair rent commission shall consider such of the following circumstances as are applicable to the type of accommodation: (1) The rents charged for the same number of rooms in other housing accommodations in the same and in other areas of the municipality; (2) the sanitary conditions existing in the housing accommodations in question; (3) the number of bathtubs or showers, flush water closets, kitchen sinks and lavatory basins available to the occupants thereof; (4) services, furniture, furnishings and equipment supplied therein; (5) the size and number of bedrooms contained therein; (6) repairs necessary to make such accommodations reasonably livable for the occupants accommodated therein; (7) the amount of taxes and overhead expenses, including debt service, thereof; (8) whether the accommodations are in compliance with the ordinances of the municipality and the general statutes relating to health and safety; (9) the income of the petitioner and the availability of accommodations; (10) the availability of utilities; (11) damages done to the premises by the tenant, caused by other than ordinary wear and tear; (12) the amount and frequency of increases in rental charges; (13) whether, and the extent to which, the income from an increase in rental charges has been or will be reinvested in improvements to the accommodations.

(1969, P.A. 274, S. 2; 1971, P.A. 478, S. 2; 1972, P.A. 160, S. 2; P.A. 82-356, S. 9, 14; P.A. 83-25.)

History: 1971 act added availability of utilities in considerations concerning rental charges; 1972 act included consideration of damage caused by tenant exclusive of ordinary wear and tear; P.A. 82-356 allowed a commission to determine if “a proposed increase in a rental charge” is excessive and added Subdivs. (12) and (13) as additional criteria for a commission to consider; P.A. 83-25 amended Subdiv. (7) by adding the words “including debt service”.

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Sec. 7-148d. Order for limitation on amount of rent. Suspension of rent payments. Cease and desist orders for retaliatory actions. (a) If a commission determines, after a hearing, that the rental charge or proposed increase in the rental charge for any housing accommodation is so excessive, based on the standards and criteria set forth in section [7-148c](#), as to be harsh and unconscionable, it may order that the rent be limited to such an amount as it determines to be fair and equitable. If a commission determines, after a hearing, that the housing accommodation in question fails to comply with any municipal ordinance or state statute or regulation relating to health and safety, it may order the suspension of further payment of rent by the tenant until such time as the landlord makes the necessary changes, repairs or installations so as to bring such housing accommodation into compliance with such ordinance, statute or regulation. The rent during said period shall be paid to the commission to be held in escrow subject to ordinances or provisions adopted by the town, city or borough.

(b) If the commission determines, after a hearing, that a landlord has retaliated in any manner against a tenant because the tenant has complained to the commission, the commission may order the landlord to cease and desist from such conduct.

(1969, P.A. 274, S. 3; P.A. 82-356, S. 10, 14; P.A. 83-425.)

History: P.A. 82-356 reflected the change that a commission may examine a rental charge or “proposed increase in a rental charge” and replaced the authorization to order “a reduction in” rent with authorization to order that the rent “be limited” to a fair and equitable amount; P.A. 83-425 added Subsec. (b) concerning issuance of cease and desist orders for retaliatory actions.

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Sec. 7-148e. Appeal. Any person aggrieved by any order of the commission may appeal to the superior court for the judicial district in which the town, city or borough is located. Any such appeal shall be considered a privileged matter with respect to the order of trial.

(1969, P.A. 274, S. 4; P.A. 76-436, S. 283, 681; P.A. 78-280, S. 1, 127.)

History: P.A. 76-436 substituted superior court for court of common pleas and added reference to judicial district, effective July 1, 1978; P.A. 78-280 deleted reference to county.

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Sec. 7-148f. Penalty for violations. Any person who violates any order of rent reduction or rent suspension by demanding, accepting or receiving an amount in excess thereof while such order remains in effect, and no appeal pursuant to section [7-148e](#) is pending, or violates any other provision of sections [7-148b](#) to [7-148e](#), inclusive, and section [47a-20](#), or who refuses to obey any subpoena, order or decision of a commission pursuant thereto, shall be fined not less than twenty-five dollars nor more than one hundred dollars for each offense. If such offense continues for more than five days, it shall constitute a new offense for each day it continues to exist thereafter.

(1972, P.A. 160, S. 3; P.A. 74-183, S. 176, 291; P.A. 76-436, S. 156, 681.)

History: P.A. 74-183 substituted court of common pleas for circuit court; P.A. 76-436 deleted provision giving jurisdiction to court of common pleas, effective July 1, 1978.

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Sec. 7-148g. Fair housing commission; creation and powers. Any town, city or borough may, through its legislative body, create a fair housing commission to make studies and receive complaints relative to discrimination in dwellings within its jurisdiction, which term shall include mobile manufactured homes and mobile manufactured home park lots, in order to control and eliminate discrimination in such dwellings, and to enforce fair housing ordinances adopted pursuant to section [7-148](#) or section [7-194](#). The commission may be empowered to retain legal counsel to advise it.

(P.A. 79-531, S. 3; June Sp. Sess. P.A. 83-3, S. 1; P.A. 92-257, S. 6.)

History: June Sp. Sess. P.A. 83-3 changed terms “mobile home” and “mobile homes” to “mobile manufactured home” and “mobile manufactured homes”; P.A. 92-257 substituted “dwellings” for “housing accommodations”.

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Sec. 7-148h. Ethics commission; establishment and powers. Interest in conflict with discharge of duties. (a) Any town, city, district, as defined in section [7-324](#), or borough may, by charter provision or ordinance, establish a board, commission, council, committee or other agency to investigate allegations of unethical conduct, corrupting influence or illegal activities levied against any official, officer or employee of such town, city, district or borough. The provisions of subsections (a) to (e), inclusive, of section [1-82a](#) shall apply to allegations before any such agency of such conduct, influence or activities, to an investigation of such allegations conducted prior to a probable cause finding, and to a finding of probable cause or no probable cause. Any board, commission, council, committee or other agency established pursuant to this section may issue subpoenas or subpoenas duces tecum, enforceable upon application to the Superior Court, to compel the attendance of persons at hearings and the production of books, documents, records and papers.

(b) Notwithstanding the provisions of any special act, municipal charter or ordinance to the contrary, an elected official of any town, city, district or borough that has established a board, commission, council, committee or other agency under subsection (a) of this section, has an interest that is in substantial conflict with the proper discharge of the official's duties or employment in the public interest and of the official's responsibilities as prescribed by the laws of this state, if the official has reason to believe or expect that the official, the official's spouse or dependent child, or a business with which he is associated, as defined in section [1-79](#), will derive a direct monetary gain or suffer a direct monetary loss, as the case may be, by reason of the official's official activity. Any such elected official does not have an interest that is in substantial conflict with the proper discharge of the official's duties in the public interest and of the official's responsibilities as prescribed by the laws of this state, if any benefit or detriment accrues to the official, the official's spouse or dependent child, or a business with which he, his spouse or such dependent child is associated as a member of a profession, occupation or group to no greater extent than to any other member of such profession, occupation or group. Any such elected official who has a substantial conflict may not take official action on the matter.

(P.A. 79-618, S. 3; P.A. 89-229, S. 2, 4; June 12 Sp. Sess. P.A. 91-1, S. 19; P.A. 00-92, S. 13.)

History: P.A. 89-229 specified the circumstances under which the provisions of Subsecs. (a) to (e), inclusive, of Sec. 1-82a are to apply; June 12 Sp. Sess. P.A. 91-1 added Subsec. (b) re conflicts of interest; P.A. 00-92 applied provisions to a “district, as defined in section 7-324”, substituted “official” for “municipal official”, substituted “that” for “which”, and made technical changes for the purpose of gender neutrality.

Cited. 180 C. 243.

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Sec. 7-148i. Discriminatory practices defined. Boards authorized. Any town, city or borough, by charter or ordinance, may adopt a code of prohibited discriminatory practices and may establish or designate a board, commission, council, committee or other agency to investigate any allegation of discriminatory practice. For the purposes of sections [7-148i](#) to [7-148n](#), inclusive, and subparagraph (B) of subdivision (9) of subsection (c) of section [7-148](#), “discriminatory practice” means a violation of section [46a-58](#), [46a-59](#), [46a-60](#), [46a-64](#), [46a-64c](#) or [46a-66](#).

(P.A. 80-403, S. 1, 10; P.A. 81-472, S. 4, 159; P.A. 86-403, S. 11, 132; P.A. 92-257, S. 7.)

History: P.A. 81-472 made technical changes; P.A. 86-403 made technical changes; P.A. 92-257 added reference to Sec. 46a-64c.

Cited. 183 C. 495.

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Sec. 7-148j. Powers of boards. Any board, commission, council, committee or other agency established or designated pursuant to sections [7-148i](#) to [7-148n](#), inclusive, and subparagraph (B) of subdivision (9) of subsection (c) of section [7-148](#), may be given the following powers: (1) The power to issue subpoenas or subpoenas duces tecum, enforceable upon application to the Superior Court, to compel the attendance of persons at hearings either in person or by means of electronic equipment and the production of books, documents, records and papers; (2) the power to issue written interrogatories and require written answers under oath thereto, enforceable upon application to the Superior Court; (3) the power to hold hearings relating to any allegation of discriminatory practice which it has found reasonable cause to believe has occurred and to issue any appropriate orders including those authorized by section [46a-86](#); and (4) the power to petition the Superior Court for enforcement of any order issued by it upon a finding that a violation of the local code of prohibited discriminatory practices has occurred, including the power to petition the Superior Court for temporary injunctive relief upon a finding that irreparable harm to the complainant will otherwise occur or for any other relief authorized by sections [46a-89](#) and [46a-90a](#).

(P.A. 80-403, S. 2, 10; P.A. 86-403, S. 12, 132; P.A. 94-163; June Sp. Sess. P.A. 21-2, S. 158.)

History: P.A. 86-403 made technical changes; P.A. 94-163 authorized boards to issue orders under Sec. 46a-86 and to petition superior court for relief under Secs. 46a-89 and 46a-90a; June Sp. Sess. P.A. 21-2 specified that attendance of persons at hearings may be in person or by means of electronic equipment.

Cited. 183 C. 495.

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Sec. 7-148k. Complaints. Hearings. Any complaint filed pursuant to sections [7-148i](#) to [7-148n](#), inclusive, and subparagraph (B) of subdivision (9) of subsection (c) of section [7-148](#) shall be made under oath. No finding of a violation of a local code of prohibited discriminatory practices shall be made except after a hearing conducted in person or by means of electronic equipment. The respondent at any such hearing shall be given reasonable advance written notice of the hearing, shall be entitled to be represented by counsel, and shall be permitted to testify and present and cross-examine witnesses. The decision resulting from the hearing shall be in writing and shall include written findings of the facts upon which the decision is based.

(P.A. 80-403, S. 3, 10; P.A. 86-403, S. 13, 132; June Sp. Sess. P.A. 21-2, S. 159.)

History: P.A. 86-403 made technical changes; June Sp. Sess. P.A. 21-2 added requirement that hearing be conducted in person or by means of electronic equipment.

Cited. 183 C. 495.

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Sec. 7-148l. Appeals. Any person aggrieved by any order of the board, commission, council, committee or other agency established or designated pursuant to sections [7-148i](#) to [7-148n](#), inclusive, and subparagraph (B) of subdivision (9) of subsection (c) of section [7-148](#) may appeal to the State Commission on Human Rights and Opportunities. Any such appeal shall be filed within thirty days of the mailing of the written decision.

(P.A. 80-403, S. 4, 10; P.A. 86-403, S. 14, 132.)

History: P.A. 86-403 made technical changes.

Cited. 183 C. 495.

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Sec. 7-148m. Actions of State Commission on Human Rights and Opportunities to supersede local action. Any action by the State Commission on Human Rights and Opportunities which involves the same parties and subject matter as an action filed with a local commission on equal rights and opportunities shall supersede the action brought with the local commission, except that the State Commission on Human Rights and Opportunities may admit into evidence the results of any investigation of a complaint filed with the local commission, or the decision entered on such a complaint by the local commission, and accord to such investigation or such decision the weight that may be appropriate under the facts and circumstances of the case.

(P.A. 80-403, S. 5, 10.)

Cited. 183 C. 495.

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Sec. 7-148n. Local boards may assume powers to investigate discriminatory practices. Any board, commission, council, committee or other agency which has been established or designated to investigate allegations of discriminatory practices by the charter or an ordinance of any town, city or borough prior to May 23, 1980, may assume the powers granted to such agencies under sections [7-148i](#) to [7-148n](#), inclusive, and subparagraph (B) of subdivision (9) of subsection (c) of section [7-148](#) if the charter or ordinance creating or designating such agency is not in conflict with the provisions of sections [7-148i](#) to [7-148n](#), inclusive, and subparagraph (B) of subdivision (9) of subsection (c) of section [7-148](#).

(P.A. 80-403, S. 6, 10; P.A. 86-403, S. 15, 132.)

History: P.A. 86-403 made technical changes.

Cited. 183 C. 495.

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Sec. 7-148o. Wilful violation of ordinances concerning prevention and remediation of blight. Penalties. (a) Except as provided in subsection (b) of this section, any person who, after written notice and a reasonable

opportunity to remediate blighted conditions, wilfully violates any regulation adopted pursuant to subparagraph (H)(xv) of subdivision (7) of subsection (c) of section [7-148](#) concerning the prevention and remediation of blight shall be fined by the state not more than two hundred fifty dollars for each day for which it can be shown, based on actual inspection of the property on each such day, that the blighted conditions continued to exist after written notice to the owner or occupant as provided in this section, and the expiration of a reasonable opportunity to remediate.

(b) Any person who is a new owner or new occupant shall, upon request, be granted a thirty-day extension of the notice and opportunity to remediate provided pursuant to subsection (a) of this section. For the purposes of this section, “new owner” means any person or entity who has taken title to a property within thirty days of the notice, and “new occupant” means any person who has taken occupancy of a property within thirty days of the notice.

(P.A. 12-146, S. 3; P.A. 23-33, S. 4.)

History: P.A. 23-33 made a conforming change in Subsec. (a).

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Sec. 7-148p. Establishment of land bank authority authorized. (a) As used in this section:

(1) “Land bank authority” means a charitable nonstock corporation established by a municipality, or by two or more municipalities, for the purposes of acquiring real property, maintaining any such real property and disposing of any such real property within such municipality or municipalities, as applicable;

(2) “Board of directors” means the board of directors for a land bank authority;

(3) “Municipality” means any town, city or borough, consolidated town and city or consolidated town and borough; and

(4) “Real property” means land, subterranean or subsurface rights, structures, any and all easements, air rights and franchises and every estate, right or interest therein, but does not include any brownfield, as defined in section [32-760](#).

(b) The legislative body of any municipality, by ordinance, or the legislative bodies of two or more municipalities, by concurrent ordinances entering into an intergovernmental cooperation agreement, may establish a land bank authority. Any such ordinance or concurrent ordinances, as applicable, shall set forth (1) the name of the land bank authority, (2) the size of the board of directors, provided such board shall consist of five, seven, nine or eleven members, (3) the qualifications, manner of appointment and terms of office of such board's members, and (4) the members initially appointed to serve on such board, any of which may, notwithstanding any provision of the general statutes, be an individual elected to an office or otherwise employed by any such municipality.

(c) (1) Annually, the members of the board of directors of a land bank authority shall (A) select from among themselves a chairperson, vice-chairperson, treasurer and any other officer as such board may deem necessary to carry out the purposes of this section, and (B) adopt bylaws for the conduct of business in carrying out such purposes.

(2) Bylaws adopted by such board of directors shall establish procedures relative to the attendance and participation of board members at any meeting of such board, which procedures may provide for removal of a member from such board for failure to comply with such bylaws by a majority vote of the total membership of such board, provided any individual so removed shall be ineligible for reappointment to such board unless such reappointment is unanimously confirmed by such board. Any such removal shall

create a vacancy on such board effective the first day of the month immediately following such removal. Any such vacancy shall be filled as set forth pursuant to subdivision (3) of subsection (b) of this section.

(3) (A) Each member of such board of directors shall serve without compensation, except that such board may reimburse any such member for expenses incurred in the performance of such member's duties on behalf of such authority.

(B) No board member, and no staff as described in subsection (d) of this section, may acquire any interest in any real property held by such authority or in any real property to be acquired by or from such authority. No board member and no such staff may have any interest in any contract or proposed contract for materials or services to be furnished or used by such authority. The board of directors of such authority may adopt additional bylaws to address actual and potential conflicts of interest and ethical guidelines for such board members and staff.

(C) No board member shall be personally liable on any bond or obligation of such authority, and any right of a creditor shall be against such authority only.

(4) (A) Regular meetings of such board of directors shall be held in accordance with a schedule adopted by such board. Special meetings of such board shall be held upon the call of the chairperson or upon a signed petition of a majority of the total membership of such board. A majority of the total membership of such board of directors shall constitute a quorum for the transaction of any business. Except as provided in subparagraph (B) of this subdivision and subsection (j) of this section, approval of any board action shall be by a majority vote of the members of such board present and voting. No board member may vote by proxy. Any board member may request a roll-call vote on any action taken by such authority. Such board shall cause minutes and a record to be kept of each meeting.

(B) The following board actions shall be approved by a majority vote of the total membership of such board: (i) Adoption of bylaws for the conduct of business; (ii) hiring or firing of any employee or contractor of such land bank authority, except that such board may delegate the exercise of any such action to an officer of such authority and to an extent as may be specified by such board in such delegation; (iii) incurrence of debt; (iv) adoption or amendment of an annual budget; and (v) sale, lease, encumbrance or alienation of any real property, improvements thereto or personal property valued in an amount exceeding fifty thousand dollars.

(d) (1) The board of directors of a land bank authority may hire an executive director, legal counsel and any other staff such board deems qualified to serve such authority. Such board may contract with one or more municipalities for the staffing of such authority or of any department or agency of any such municipality.

(2) Such board may (A) organize and reorganize the executive, administrative, clerical and other responsibilities of such authority, and (B) fix the duties, powers and compensation of each employee, agent and consultant of such authority.

(e) (1) The board of directors of a land bank authority may exercise any power necessary to carry out the purposes of this section, including:

(A) To adopt, amend and repeal bylaws for the conduct of its business;

(B) To sue and be sued in its own name, to plead and be impleaded in any civil action, including, but not limited to, any such action to clear title to property of such authority;

(C) To adopt a seal and to alter such seal;

(D) To borrow from private lenders, municipalities, the state or the federal government any moneys necessary for the operation of such authority;

(E) To issue negotiable revenue bonds and notes in accordance with this section;

(F) To procure (i) insurance or guarantees from the state or the federal government for the payment of any debt or part thereof incurred by such authority, and to pay any premium in connection therewith, and (ii) insurance against any loss in connection with any real property, asset or activity of such authority;

(G) To enter into any contract or other instrument necessary, incidental or convenient for carrying out the purposes of this section;

(H) To invest moneys of such authority in any instrument, obligation, security or property deemed proper, and to name and use any depository for any such moneys;

(I) To design, develop, construct, demolish, reconstruct, rehabilitate, renovate, relocate and otherwise improve any real property or any right or interest therein;

(J) To fix, charge and collect any rent, fee or charge for the use of any real property of such authority and for any service provided by such authority;

(K) To grant or acquire any license, easement, lease or option with respect to any real property of such authority; and

(L) To enter into any collaborative relationship with any municipality and other public and private entities for the ownership, management, development and disposition of any real property.

(2) The board of directors of a land bank authority shall neither possess nor exercise the power of eminent domain.

(f) (1) Notwithstanding any provision of the general statutes, a land bank authority (A) may, on terms and conditions and in a manner deemed proper by the board of directors of such authority, acquire any real property or interest thereof by gift, devise, transfer, exchange, foreclosure, purchase or other means, (B) shall hold in its own name any property so acquired, and (C) shall create and make available for public inspection an inventory of any property held by such authority.

(2) Such authority shall not hold any real property or interest thereof located outside of the municipality or municipalities, as applicable, that established such authority, and shall maintain all of its real property in accordance with the laws of the municipality or municipalities in which such property is located. Such authority may, pursuant to an intergovernmental cooperation agreement with a municipality, maintain real property located within such municipality.

(3) Any real property or interest thereof held by such authority, and any income derived therefrom, shall be exempt from taxation by the state and by any political subdivision thereof.

(g) (1) A land bank authority may convey, exchange, sell, transfer, lease, grant, release, demise, mortgage or otherwise pledge or hypothecate any interest in any real property held by such authority. Except as may be provided in subdivision (3) of this subsection, the board of directors of such authority may delegate to its staff the power to contract with a legal entity for the conveyance of any such interest.

(2) Such board of directors shall set forth in such board's bylaws the terms and conditions of any consideration to be received by such authority for the conveyance of any interest in any real property held by such authority, provided such consideration shall be in a form deemed by such board to be in the best interest of such authority.

(3) The ordinance or concurrent ordinances, as applicable, adopted pursuant to subsection (b) of this section may (A) establish an order of priorities for the use of any interest in any real property conveyed by such authority, and (B) require that certain means of disposing of any such interest, or that the disposition

of any such interest in certain locations, be subject to different requirements for approval by the board of directors of such authority.

(h) (1) A land bank authority may receive (A) grants or loans from (i) the municipality or municipalities, as applicable, that established such authority, (ii) any other municipality, (iii) the state, (iv) the federal government, or (v) any other public or private source, and (B) payment for (i) any service rendered, (ii) any rent or leasehold, (iii) any consideration related to the disposition of any interest in real or personal property held by such authority, (iv) any proceeds of insurance coverage for any loss incurred, (v) any income from investments, and (vi) any other asset or activity provided for under this section.

(2) Commencing on October first immediately following the conveyance of any interest in real property by a land bank authority, and annually thereafter for five years, fifty per cent of the taxes collected by a municipality pursuant to state law on any such interest so conveyed shall be remitted to such authority by such municipality.

(i) (1) A land bank authority may issue limited obligation bonds, pursuant to resolution of the board of directors of such authority, to carry out the purposes of this section. Such resolution shall set forth (A) the form and denomination of any such bond, (B) the manner of sale at public sale or private sale and of delivery of such bond, (C) the manner in which such bond bears interest and matures, (D) the execution of such bond by one or more board members, and (E) any option of such board to redeem any such bond and the manner of such redemption. Such board shall publish such resolution in a newspaper having general circulation within the municipality or municipalities, as applicable, that established such authority.

(2) Such authority may pay the principal and interest of any such bond, as well as the cost of issuance and any other incidental cost of such bond, solely from revenues derived from the disposition of any asset of such authority, except that for any refunding bond issued by such board of directors, such authority may also make such payment from the investment of any proceeds of such refunding bond. Any such bond may be secured by a mortgage of any interest in any property of such authority or by pledge of any such revenues, including grants or contributions from the state or any agency thereof or the federal government or any agency thereof. Any such refunding bond shall not constitute under state law an indebtedness or pledge of the general credit of any municipality, and shall contain a recital to that effect. Any such bond shall be a negotiable instrument under state law and law merchant.

(3) (A) Except as provided in subparagraph (B) of this subdivision, (i) any such bond shall not be a debt of any municipality or of the state, (ii) such bond shall contain a recital to that effect, and (iii) any revenues and any interest of real property of any municipality or of the state shall not be liable for any such bond.

(B) Any municipality that established a land bank authority may guarantee, insure or otherwise become primarily or secondarily obligated on the indebtedness of such authority, unless otherwise prohibited by any other provision of the general statutes.

(j) The board of directors of a land bank authority may, by resolution adopted by two-thirds of the total membership of such board, dissolve such authority, provided such dissolution shall take effect sixty days after the adoption of such resolution. Sixty days prior to such board's consideration of such resolution, such board shall (1) give written notice thereof to the municipality or municipalities, as applicable, that established such authority, (2) publish notice thereof in a newspaper having general circulation in such municipality or municipalities, and (3) send notice thereof by certified mail to the trustee of any outstanding bond of such authority. Each interest in real or personal property and each asset of such authority at the time of dissolution shall inure to the benefit of such municipality or municipalities, as applicable. If two or more municipalities established a land bank authority pursuant to this section, the withdrawal of one such municipality shall not dissolve such authority unless (A) the concurrent ordinances entering such municipalities into an intergovernmental cooperation agreement so provides, or (B) no such municipality wishes to continue the existence of such authority.

History: P.A. 19-175 effective July 12, 2019.

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Sec. 7-148q. Establishment of corporation to manufacture, distribute, purchase or sell compressed natural gas. (a) Any municipality that maintains an electric or gas utility may establish a corporation under chapter 601 for the purposes of engaging in the manufacture, distribution, purchase or sale, or any combination thereof, of compressed natural gas, for the sole purpose of providing compressed natural gas to vehicles or construction equipment, within or outside of its franchise area. The costs and expenses associated with such sales of compressed natural gas shall be exclusive of the costs and expenses associated with the establishment of rates and charges for gas and electricity pursuant to section [7-222](#).

(b) Any such municipality may exercise the authority provided for in subsection (a) of this section notwithstanding the provisions of any special act, municipal charter or home rule ordinance, upon approval of its chief executive officer and by adoption of an ordinance approved by a two-thirds vote of its city council.

(P.A. 99-286, S. 17, 19.)

History: P.A. 99-286 effective July 19, 1999.

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Sec. 7-148r. Municipal fee for access to computer-assisted mass appraisal system database. Any municipality may by ordinance impose a reasonable fee for public access to its computer database developed pursuant to section [12-62f](#) for the purpose of revaluation.

(P.A. 95-283, S. 5, 68.)

History: P.A. 95-283, S. 5 effective July 6, 1995.

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Sec. 7-148s. Municipal fee for use of geographic information system. Any municipality may by ordinance impose a reasonable fee for the use of its geographic information system.

(P.A. 91-249.)

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Sec. 7-148t. Conflict of interest for members of land use and purchasing commissions and boards. Notwithstanding the provisions of any special act or municipal charter and in addition to any provisions of sections [8-11](#), [8-21](#) and subsection (c) of section [22a-42](#), no member of any municipal commission or board having any jurisdiction or exercising any power over any municipal land use or purchasing decisions shall appear for or represent any person, firm, corporation or other entity in any matter pending before the commission or board. No member of any such commission or board shall participate in any hearing or decision of the board or commission of which he is a member upon any matter in which he knowingly has a pecuniary interest. In the event of such disqualification, such fact shall be entered on the records of the commission or board and any municipality may, by ordinance, provide that an elector may be chosen, in a manner specified in the ordinance, to act as a member of such commission or board in the hearing and

determination of such matter, except that replacement shall be made first from alternate members of such commission or board designated pursuant to the general statutes or any special act or municipal charter or ordinance, if any.

(P.A. 83-540.)

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Sec. 7-148u. Municipal set-aside program for small contractors and minority business enterprises. (a) As used in this section:

(1) “Small contractor” means any contractor, subcontractor, manufacturer or service company (A) which has been doing business and has maintained its principal place of business in the state for a period of at least one year prior to the date of application for certification under this section, (B) which had gross revenues not exceeding ten million dollars in the most recently completed fiscal year prior to such application, and (C) at least fifty-one per cent of the ownership of which is held by a person or persons who are active in the daily affairs of the business and have the power to direct the management and policies of the business.

(2) “Minority business enterprise” means any small contractor (A) fifty-one per cent or more of the capital stock, if any, or assets of which are owned by a person or persons (i) who are active in the daily affairs of the enterprise, (ii) who have the power to direct the management and policies of the enterprise, and (iii) who are members of a minority, as such term is defined in subsection (a) of section [32-9n](#), or (B) who is an individual with a disability.

(3) “Individual with a disability” means an individual (A) having a physical impairment that substantially limits one or more of the major life activities of the individual, or (B) having a record of such an impairment.

(b) Notwithstanding any provision of the general statutes or of any special act or any municipal charter or home rule ordinance, a municipality may, by ordinance, set aside in each fiscal year, for award to small contractors, on the basis of a competitive bidding procedure, municipal contracts or portions of municipal contracts for the construction, reconstruction or rehabilitation of public buildings, the construction and maintenance of highways and the purchase of goods and services. The total value of such contracts or portions thereof to be set aside shall be not more than twenty-five per cent of the average of the total value of all such contracts let by the municipality for each of the previous three fiscal years, provided a contract that may not be set aside due to a conflict with a federal law or regulation shall not be included in the calculation of such average. Contracts or portions thereof having a value of not less than twenty-five per cent of the total value of all contracts or portions thereof to be set aside shall be reserved for awards to minority business enterprises.

(P.A. 83-390, S. 3; P.A. 92-189, S. 1; June Sp. Sess. P.A. 07-4, S. 68.)

History: P.A. 92-189 amended Subsec. (a) by setting forth definitions of “small contractor” and “minority business enterprise” instead of construing the terms as defined in Sec. 32-9e and by adding definition of “individual with a disability”; June Sp. Sess. P.A. 07-4 amended Subsec. (a)(1)(B) to change \$3,000,000 to \$10,000,000 and made technical changes in Subsec. (a), effective July 1, 2007.

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Sec. 7-148v. Requirements for competitive bidding. Purchase from person having contract to sell goods or services. (a) Notwithstanding the provisions of any municipal charter or any special act to the contrary, any municipality may, by ordinance, establish requirements for competitive bidding for the award of any

contract or the purchase of any real or personal property by the municipality. Such ordinance may provide that, except as otherwise required by any provision of the general statutes, sealed bidding shall not be required for contracts or purchases having a value less than or equal to an amount established in the ordinance, which amount shall not be greater than twenty-five thousand dollars. Nothing in this section shall be deemed to invalidate any ordinance enacted by a municipality prior to October 1, 1989. Nothing in this section and no ordinance adopted pursuant to this section shall be construed to limit the ability of a municipality to enter into a contract pursuant to section [4a-53a](#).

(b) Notwithstanding the provisions of the general statutes or any municipal charter, special act or ordinance, any municipality may purchase equipment, supplies, materials or services from a person who has a contract to sell such goods or services to other state governments, political subdivisions of the state, nonprofit organizations or public purchasing consortia available through a regional educational service center or regional council of governments, in accordance with the provisions of such contract.

(P.A. 89-136; Nov. 24 Sp. Sess. P.A. 08-2, S. 2; P.A. 13-71, S. 1; P.A. 16-144, S. 1.)

History: Nov. 24 Sp. Sess. P.A. 08-2 added provision re ability of municipality to enter into contract pursuant to Sec. 4a-53a, effective November 25, 2008; P.A. 13-71 changed exception to sealed bidding limit from \$7,500 to \$25,000; P.A. 16-144 designated existing provisions re requirements for competitive bidding as Subsec. (a) and added Subsec. (b) re municipal purchase of equipment, supplies, materials or services from certain persons, effective June 9, 2016.

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Sec. 7-148w. Disqualification of contractors from bidding on municipal contracts. (a) As used in this section, the term “contractor” means any person, firm or corporation which has contracted or seeks to contract with a municipality, or to participate in such a contract, in connection with any public works of the municipality, including professional consultants.

(b) Notwithstanding the provisions of any municipal charter, special act or home rule ordinance a municipality may, by ordinance of its legislative body, establish a process for disqualification of any contractor, for up to two years, from bidding on, applying for, or participating as a subcontractor under, contracts with the municipality for one or more causes set forth under subsection (c) of this section. Such ordinance shall establish procedures for disqualification which shall include notice and an opportunity for a hearing to the contractor who is the subject of the proceeding. The hearing shall be conducted in accordance with the procedures for hearings on contested cases established in chapter 54. The hearing officer shall issue a written decision within ninety days of the last date of such hearing and state in the decision the reasons for the action taken and, if the contractor is being disqualified, the period of such disqualification. The existence of a cause for disqualification shall not be the sole factor to be considered in determining whether the contractor shall be disqualified. In determining whether to disqualify a contractor, the hearing officer shall consider the seriousness of the contractor's acts or omissions and any mitigating factors. The hearing officer shall send the decision to the contractor by certified mail, return receipt requested.

(c) The ordinance shall provide that causes for disqualification from bidding on, applying for or participating in, contracts shall include the following:

(1) Conviction or entry of a plea of guilty or nolo contendere for or admission to commission of a criminal offense as an incident to obtaining or attempting to obtain a public or private contract or subcontract, or in the performance of such contract or subcontract;

(2) Conviction or entry of a plea of guilty or nolo contendere or admission to the violation of any state or federal law for embezzlement, theft, forgery, bribery, falsification or destruction of records, receiving

stolen property or any other offense indicating a lack of business integrity or business honesty which affects responsibility as a municipal contractor;

(3) Conviction or entry of a plea of guilty or nolo contendere or admission to a violation of any state or federal antitrust, collusion or conspiracy law arising out of the submission of bids or proposals on a public or private contract or subcontract;

(4) A wilful failure to perform in accordance with the terms of one or more public contracts, agreements or transactions;

(5) A history of failure to perform or of unsatisfactory performance of one or more public contracts, agreements or transactions; or

(6) A wilful violation of a statutory or regulatory provision or requirement applicable to a public contract, agreement or transaction.

(d) For purposes of a disqualification proceeding under an ordinance adopted under this section, conduct may be imputed as follows:

(1) The fraudulent, criminal or other seriously improper conduct of any officer, director, shareholder, partner, employee or other individual associated with a contractor may be imputed to the contractor when the conduct occurred in connection with the individual's performance of duties for or on behalf of the contractor and the contractor knew of or had reason to know of such conduct. The term "other seriously improper conduct" does not include advice from an attorney, accountant or other paid consultant if it was reasonable for the contractor to rely on such advice.

(2) The fraudulent, criminal or other seriously improper conduct of a contractor may be imputed to any officer, director, shareholder, partner, employee or other individual associated with the contractor who participated in, knew of or had reason to know of the contractor's conduct.

(3) The fraudulent, criminal or other seriously improper conduct of one contractor participating in a joint venture or similar arrangement may be imputed to other participating contractors if the conduct occurred for or on behalf of the joint venture or similar arrangement and these contractors knew of or had reason to know of such conduct.

(e) The municipality may reduce the period or extent of disqualification, upon the contractor's request, supported by documentation, for the following reasons:

(1) Newly discovered material evidence;

(2) Reversal of the conviction upon which the disqualification was based;

(3) Bona fide change in ownership or management;

(4) Elimination of other causes for which the disqualification was imposed; or

(5) Other reasons the municipality deems appropriate.

(f) The municipality may grant an exception permitting a disqualified contractor to participate in a particular contract or subcontract upon a written determination by the head of the contract awarding agency that there is good cause, in the interest of the public, for such action.

(P.A. 95-353, S. 5, 7.)

History: P.A. 95-353, S. 5, effective July 1, 1995.

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Sec. 7-148x. Electronic equipment defined. For the purposes of sections [7-148j](#), [7-148k](#), [7-148bb](#), [7-148ii](#) and [7-152b](#), “electronic equipment” means any technology that facilitates real-time communication between two or more individuals, including, but not limited to, telephonic, video and other conferencing platforms.

(June Sp. Sess. P.A. 21-2, S. 157.)

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Secs. 7-148y and 7-148z. Reserved for future use.

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Sec. 7-148aa. Lien on real estate where penalty for violation of zoning regulations or blight ordinance is unpaid. Any unpaid penalty imposed by a municipality pursuant to the provisions of an ordinance (1) adopted pursuant to section [8-12a](#), or (2) regulating blight, adopted pursuant to subparagraph (H)(xv) of subdivision (7) of subsection (c) of section [7-148](#), shall constitute a lien upon the real estate against which the penalty was imposed from the date of such penalty. Each such lien may be continued, recorded and released in the manner provided by the general statutes for continuing, recording and releasing property tax liens. Each such lien shall take precedence over all other liens filed after July 1, 1997, and encumbrances except taxes, and may be enforced in the same manner as property tax liens.

(P.A. 97-320, S. 3, 11; P.A. 12-146, S. 4; P.A. 24-143, S. 8.)

History: P.A. 97-320 effective July 1, 1997; P.A. 12-146 substituted “penalty” for “fine”; P.A. 24-143 added reference to Sec. 8-12a re violation of zoning regulations as Subdiv. (1), designated existing provision re blight as Subdiv. (2) and made a technical change.

Section gives the court subject matter jurisdiction to determine whether it can treat anti-blight lien as a property tax lien and if so, whether the anti-blight lien may be discharged as such. 145 CA 202.

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Sec. 7-148bb. Agreement between municipalities to share revenue received for payment of property taxes. Notwithstanding any provision of the general statutes or any special act, municipal charter or home rule ordinance, the chief elected officials of two or more municipalities may initiate a process for such municipalities to enter into an agreement to share revenues received for payment of real and personal property taxes. The agreement shall be prepared pursuant to negotiations and shall contain all provisions on which there is mutual agreement between the municipalities, including, but not limited to, specification of the tax revenues to be shared, collection and uses of such shared revenue. The agreement shall establish procedures for amendment, termination and withdrawal. The negotiations shall include an opportunity for public participation. Such participation may take place in person, in writing or by means of electronic equipment. The agreement shall be approved by each municipality that is a party to the agreement by resolution of the legislative body. As used in this section “legislative body” means the council, commission, board, body or town meeting, by whatever name it may be known, having or exercising the general legislative powers and functions of a municipality and “municipality” means any town, city or borough, consolidated town and city or consolidated town and borough.

(P.A. 00-85, S. 1, 2; June Sp. Sess. P.A. 21-2, S. 160.)

History: P.A. 00-85 effective July 1, 2000; June Sp. Sess. P.A. 21-2 specified that public participation in negotiations may take place in person, in writing or by means of electronic equipment.

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Sec. 7-148cc. Joint performance of municipal functions. Notwithstanding the provisions of the general statutes or any special act, charter, special act charter, home rule ordinance or local law, two or more municipalities may jointly perform any function that each municipality may perform separately under any provisions of the general statutes or of any special act, charter or home rule ordinance by entering into an interlocal agreement pursuant to sections [7-339a](#) to [7-339l](#), inclusive. As used in this section, “municipality” means any municipality, as defined in section [7-187](#), any district, as defined in section [7-324](#), any metropolitan district or any municipal district created under section [7-330](#) and located within the state of Connecticut.

(P.A. 01-117, S. 1, 2; P.A. 11-99, S. 1; P.A. 19-193, S. 4.)

History: P.A. 01-117 effective July 1, 2001; P.A. 11-99 deleted provisions re process for municipalities entering into joint agreements, added provision re municipalities entering into interlocal agreements, and redefined “municipality” to include any metropolitan district or municipal district; P.A. 19-193 added provision re notwithstanding certain provisions of law, effective July 1, 2019.

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Sec. 7-148dd. Municipal fiscal disparities. List. Recommendations to address problems of municipalities on list. Section [7-148dd](#) is repealed, effective July 1, 2022.

(P.A. 01-158, S. 1, 2; P.A. 22-74, S. 23.)

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Sec. 7-148ee. Establishment of corporation to manufacture, distribute, purchase or sell electricity, gas or water. (a) Any municipality that maintains an electric or gas utility may establish a corporation under chapter 601 for the purposes of engaging in the manufacture, distribution, purchase or sale, or any combination thereof, of electricity, gas or water for the sole purpose of providing electricity, gas or water within its franchise area, provided such franchise area does not encroach upon the service area or franchise area of another water or gas utility.

(b) Any such municipality may exercise the authority provided for in subsection (a) of this section notwithstanding the provisions of any special act, municipal charter or home rule ordinance, upon approval of its chief executive officer and by adoption of an ordinance approved by a two-thirds vote of its legislative body of the municipality or the board of selectmen or city or town council, in the case of a municipality in which the legislative body is a town meeting.

(c) No corporation established pursuant to subsection (a) of this section shall engage in the manufacture, distribution, purchase or sale, or any combination thereof, of electricity, gas or water outside the service area of such municipal electric or gas utility or within its service area if it encroaches upon the service area or franchise area of another water or gas utility. Nothing in this section shall be construed to permit any municipal electric utility to engage in the sale or aggregation of electric generation services other than pursuant to section [16-245](#).

(P.A. 01-112.)

See chapter 101 re municipal gas and electric plants.

See chapter 102 re municipal waterworks systems.

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Sec. 7-148ff. Special assessment on blighted property. Remediation of blighted conditions. Liens. (a) Any municipality that has regulations for the prevention and remediation of housing blight under subparagraph (H)(xv) of subdivision (7) of subsection (c) of section [7-148](#) may, by ordinance adopted by its legislative body on recommendation of its board of finance or equivalent body, provide for a special assessment on housing that is blighted, as defined in such regulations. Such ordinance may authorize a municipality to designate an agent or agents who shall have the right to enter property during reasonable hours for the purpose of remediating blighted conditions, provided such agent or agents shall not enter any dwelling house or other structure.

(b) Prior to initial approval by the legislative body of such municipality of the plan for implementation of the special assessment to be provided pursuant to the provisions of this section, the executive authority of such municipality shall appoint a committee consisting of not less than six taxpayers of such municipality, one of whom shall be a landlord, the tax assessor and representatives of municipal agencies responsible for zoning and health, housing, fire and other safety code compliance. The committee shall undertake and complete, within a period not in excess of sixty days following such appointment, a study and investigation with respect to such special assessment and shall submit a report to the board of finance or equivalent body of such municipality. The report shall include, but not be limited to, the following: (1) A statement describing the fiscal effect of a special assessment on the revenue for the municipality; (2) identification of properties that may be subject to a special assessment; (3) the amount of property taxes generated by the properties and the cost to the municipality for code enforcement on such properties, including costs for police and fire personnel; (4) recommendations with respect to the form and extent of any assessment; and (5) standards for imposition of the assessment. In establishing any standards, the committee shall consider the number of outstanding health, housing and safety violations for the property, the number of times municipal health, housing and safety personnel have had to inspect the property and the cost to the municipality to enforce code compliance on the property. After the initial approval of the special assessment by the legislative body of such municipality, such plan may be amended from time to time by vote of its legislative body on recommendation of its board of finance or equivalent body without compliance with the requirements of this subsection applicable to such initial approval.

(c) Any ordinance adopted under subsection (a) of this section shall include, but not be limited to, the following: (1) Standards to determine (A) if a special assessment should be imposed on a property, and (B) under what circumstances, if any, a right of entry to remediate a blighted condition on a property shall be authorized, (2) the amount of the assessment, which shall be a reasonable amount and based on an analysis of the costs to the municipality for code inspection and enforcement, including costs for police and fire personnel, (3) procedures for notice to the property owner of imposition of the special assessment and determination that a right of entry to remediate a blighted condition on a property is authorized, which shall include a time period to remedy the code noncompliance before the assessment is due or the right of entry is authorized and a process for appeal of an assessment or authorization, and which may allow for notice to be delivered in accordance with section [7-148ii](#) when the property owner is a registrant, and (4) the appointment of a board consisting of the finance director, tax assessor and municipal code enforcement official to determine when the special assessment should be imposed or the right of entry authorized on specific property. Annually, the legislative body shall review the amount of any assessment to be imposed pursuant to an ordinance adopted under this section and may revise such amount.

(d) Any funds received by a municipality from a special assessment imposed pursuant to an ordinance adopted under subsection (c) of this section shall be deposited into a special fund or account maintained

by the municipality which shall be dedicated for expenses of the municipality related to enforcement of ordinances regulating blight and state and local health, housing and safety codes and regulations, including expenses related to community police, and the remediation of blighted conditions, when authorized.

(e) Any unpaid special assessment imposed by a municipality pursuant to the provisions of an ordinance adopted under subsection (c) of this section shall constitute a lien upon the real estate against which the fine was imposed from the date of such fine. Each such lien may be continued, recorded and released in the manner provided by the general statutes for continuing, recording and releasing property tax liens. Each such lien may be enforced in the same manner as property tax liens.

(P.A. 06-185, S. 1; P.A. 07-217, S. 16; P.A. 09-144, S. 3; P.A. 10-152, S. 8; P.A. 11-7, S. 1.)

History: P.A. 06-185 effective July 1, 2006; P.A. 07-217 made a technical change in Subsec. (c)(2), effective July 12, 2007; P.A. 09-144 amended Subsec. (c)(3) by allowing notice to be delivered to a registrant in accordance with Sec. 7-148ii; P.A. 10-152 amended Subsec. (a) to allow municipality to authorize by ordinance an agent or agents to enter property during reasonable hours to remediate blighted conditions, amended Subsec. (c) by adding Subdiv. (1)(B) requiring ordinance to include standards re when right of entry to remediate blighted condition is authorized and by making conforming changes in Subdivs. (3) and (4), and amended Subsec. (d) by allowing municipality to use funds received from special assessment for authorized remediation of blighted conditions; P.A. 11-7 made a technical change in Subsec. (a).

See Sec. 12-169b re addition of municipal expenses to property taxes for real estate violating health, safety or building codes.

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Sec. 7-148gg. Notice to lienholder of notice or order to remedy health, housing or safety code violation. Each municipality, in addition to any other notice required under the general statutes or any municipal health, housing or safety codes or regulations, shall send to each lienholder of real estate a copy of any notice or order by such municipality to the owner of such real estate to demolish, remove or otherwise dispose of the real estate issued under any provision of the general statutes or any municipal building, health or safety codes or regulations as well as a copy of any notice sent to the owner of such real estate or recorded on the land records, with respect to any costs or expenses incurred by the municipality to demolish, remove or otherwise dispose of the real estate. The municipality shall make reasonable efforts to send such copy by first class mail to the lienholder's current or last-known address.

(P.A. 06-185, S. 4; P.A. 23-33, S. 8.)

History: P.A. 23-33 removed provision re municipality notify lienholders when municipality provides notice to a real property owner to make such real property safe and sanitary.

See Sec. 12-169b re addition of municipal expenses to property taxes for real estate violating health, safety or building codes.

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Sec. 7-148hh. Definitions. As used in sections [7-148ff](#), [7-148ii](#), [7-152c](#), [19a-206](#), [47a-52](#), [47a-53](#), [47a-58](#) and [49-73b](#):

(1) "Registrant" means the owner of residential property who is required to register such property pursuant to section [7-148ii](#).

(2) “Residential property” means a building containing one or more dwelling units and includes a commercial building containing one or more dwelling units.

(3) “Dwelling unit” means any house or building, or portion thereof, which is occupied, designed to be occupied, or rented, leased or hired out to be occupied, exclusively as a home or residence of one or more persons.

(4) “Mortgage” means a mortgage on residential real property that is held by a person other than a natural person.

(5) “Person” means an individual, corporation, business trust, estate, trust, partnership, limited liability company, association, joint venture, public corporation, government or governmental subdivision, agency, or instrumentality, or any other legal or commercial entity.

(P.A. 09-144, S. 1; P.A. 11-201, S. 13.)

History: P.A. 11-201 redefined “registrant” in Subdiv. (1) and “residential property” in Subdiv. (2), replaced definition of “vacant” in Subdiv. (3) with definition of “dwelling unit”, replaced definition of “MERS” in Subdiv. (4) with definition of “mortgage” and added Subdiv. (5) defining “person”.

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Sec. 7-148ii. Registration and maintenance of foreclosed residential properties. (a) Any person who, on or after October 1, 2011, commences an action to foreclose a mortgage on residential property shall register such property with the town clerk of the municipality in which the property is located at the time and place of the recording of the notice of lis pendens as to the residential property being foreclosed in accordance with section [52-325](#). Such registration may be completed electronically in a manner prescribed by such clerk and shall be maintained by the municipality separate and apart from the land records.

(b) Registration made pursuant to subsection (a) of this section shall contain (1) the name, address, telephone number and electronic mail address of the plaintiff in the foreclosure action and, if such plaintiff is an entity or an individual who resides out-of-state, the name, address, telephone number and electronic mail address of a direct contact in the state, provided such a direct contact is available; (2) the name, address, telephone number and electronic mail address of the person, local property maintenance company or other entity serving as such plaintiff's contact with the municipality for any matters concerning the residential property; and (3) the following heading in at least ten-point boldface capital letters: NOTICE TO MUNICIPALITY: REGISTRATION OF PROPERTY BEING FORECLOSED. The plaintiff in the foreclosure action shall indicate on such registration whether it prefers to be contacted by first class mail or electronic mail and the preferred addresses for such communications. Such plaintiff shall report to the town clerk of the municipality in which the property is located, by mail, electronic mail or other form of delivery, any change in the information provided on the registration not later than thirty days following the date of the change of information. At the time of registration, such plaintiff shall pay a land record filing fee to the municipality as specified in section [7-34a](#).

(c) Any person in whom title to a residential property has vested on or after October 1, 2011, through a foreclosure action pursuant to sections [49-16](#) to [49-21](#), inclusive, or [49-26](#), shall register such property, in accordance with subsection (d) of this section, with the municipality in which such property is located not later than fifteen days after absolute title vests in such person. If such person is the plaintiff in the foreclosure action, such person shall, prior to the expiration of such fifteen-day period, update the registration with any change in registration information for purposes of complying with said subsection (d). The updated registration shall include the following heading in at least ten-point boldface capital letters: NOTICE TO MUNICIPALITY: UPDATED REGISTRATION FOR PROPERTY ACQUIRED THROUGH FORECLOSURE.

(d) Registration made pursuant to subsection (c) of this section shall be mailed, sent by electronic mail or delivered to the town clerk of the municipality in which the residential property is located and include (1) the name, address, telephone number and electronic mail address of the registrant and, if the registrant is an entity or an individual who resides out-of-state, the name, address, telephone number and electronic mail address of a direct contact in the state, provided such a direct contact is available; (2) the date on which absolute title vested in the registrant; (3) the name, address, telephone number and electronic mail address of the person, local property maintenance company or other entity responsible for the security and maintenance of the residential property; and (4) the following heading in at least ten-point boldface capital letters: NOTICE TO MUNICIPALITY: REGISTRATION OF PROPERTY ACQUIRED THROUGH FORECLOSURE. The registration, or updated registration, shall be accompanied by a land record filing fee payable to the municipality as specified in section [7-34a](#). The registrant shall report to the town clerk by mail, electronic mail or other form of delivery any change in the information provided on the registration not later than thirty days from the date of the change in information.

(e) If a registrant required to register pursuant to subsection (c) of this section fails to comply with any provision of the general statutes or of any municipal ordinance concerning the repair or maintenance of real estate, including, without limitation, an ordinance relating to the prevention of housing blight pursuant to subparagraph (H)(xv) of subdivision (7) of subsection (c) of section [7-148](#), the maintenance of safe and sanitary housing as provided in subparagraph (A) of subdivision (7) of subsection (c) of section [7-148](#), or the abatement of nuisances as provided in subparagraph (E) of subdivision (7) of subsection (c) of section [7-148](#), the municipality may issue a notice to the registrant citing the conditions on such property that violate such provisions. Such notice shall be sent by either first class or electronic mail, or both, and shall be sent to the address or addresses of the registrant identified on the registration. A copy of such notice shall be sent by first class mail or electronic mail to the person, property maintenance company or other entity responsible for the security and maintenance of the residential property designated on the registration. Such notice shall comply with section [7-148gg](#).

(f) The notice described in subsection (e) of this section shall provide a date, reasonable under the circumstances, by which the registrant shall remedy the condition or conditions on such registrant's property. If the registrant, registrant's contact or registrant's agent does not remedy the condition or conditions on such registrant's property before the date following the date specified in such notice, the municipality may enforce its rights under the relevant provisions of the general statutes or of any municipal ordinance.

(g) A municipality shall only impose registration requirements upon registrants and plaintiffs in foreclosure actions in accordance with this section, except that any municipal registration requirements effective on or before October 1, 2009, shall remain effective.

(h) Any plaintiff in a foreclosure action who fails to register in accordance with this section shall be subject to a civil penalty of one hundred dollars for each violation, up to a maximum of five thousand dollars. Each property for which there has been a failure to register shall constitute a separate violation.

(i) Any person in whom title to a residential property has vested on or after October 1, 2011, through a foreclosure action pursuant to sections [49-16](#) to [49-21](#), inclusive, or [49-26](#), and who has not registered in accordance with subsection (c) of this section within thirty days of absolute title vesting in such owner shall be subject to a civil penalty of two hundred fifty dollars for each violation, up to a maximum of twenty-five thousand dollars. Each property for which there has been a failure to register shall constitute a separate violation.

(j) An authorized official of the municipality may file a civil action in Superior Court to collect the penalties imposed pursuant to subsections (h) and (i) of this section, which penalties shall be payable to the treasurer of such municipality. Such penalties shall not create or constitute a lien against the residential property.

(k) Neither the registration by a foreclosing party nor the failure to register in accordance with subsection (a) of this section shall imply or create any legal obligations on the part of the foreclosing party to repair, maintain or secure the residential property for which a registration is required prior to the time that title passes to the foreclosing party.

(P.A. 09-144, S. 2; P.A. 11-201, S. 14; P.A. 14-122, S. 8; June Sp. Sess. P.A. 21-2, S. 161.)

History: P.A. 11-201 amended Subsec. (a) to replace provision re title vesting through foreclosure action with provision re commencing action to foreclose mortgage on residential property, to eliminate provision re registration with MERS, to replace former Subdivs. (1) and (2) re time periods for registering vacant property after title vests with provision re registration at time and place of recording notice of lis pendens, and to require municipality to maintain registration separate and apart from land records, amended Subsec. (b) to substantially revise requirements applicable to registration made pursuant to Subsec. (a), deleted former Subsec. (c) re registration with MERS, added new Subsec. (c) re registration requirements for person in whom title to residential property has vested on or after October 1, 2011, through foreclosure action, added new Subsec. (d) re requirements applicable to registration made pursuant to Subsec. (c), redesignated existing Subsecs. (d), (e) and (f) as Subsecs. (e), (f) and (g) and made conforming changes therein, and added Subsecs. (h) and (i) re penalties for failure to register, Subsec. (j) re civil action to collect penalties and Subsec. (k) re legal obligations not implied or created prior to title passing to foreclosing party; P.A. 14-122 made a technical change in Subsec. (g); June Sp. Sess. P.A. 21-2 amended Subsec. (a) by specifying that registration may be completed electronically, and Subsecs. (b) and (d) by adding references to electronic mail.

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Sec. 7-148jj. Ordinances regulating maintenance of foreclosed properties. (a) No municipality shall adopt a property maintenance ordinance or regulation that applies only to the property maintenance activities of a person who holds a mortgage on or title to real property located within this state and obtained by foreclosure, provided nothing in this section shall preclude a municipality from enacting or enforcing an ordinance or regulation that applies generally to all owners of real property within such municipality, without regard to how the owner acquired title. For purposes of this section, property maintenance activities include, but are not limited to, activities related to the repair, maintenance, restoration, alteration, removal or demolition of any part of real property.

(b) Notwithstanding the provisions of subsection (a) of this section, any municipal property maintenance ordinance or regulation that applies only to the property maintenance activities of a person who holds title or a mortgage to real property located within this state and obtained by foreclosure shall continue to be effective provided such ordinance or regulation was adopted on or before October 1, 2009.

(c) Nothing in this section shall prohibit or limit a municipality from adopting or enforcing an ordinance or regulation relating to the prevention of blight pursuant to subparagraph (H)(xv) of subdivision (7) of subsection (c) of section [7-148](#), the maintenance of safe and sanitary housing as provided in subparagraph (A) of subdivision (7) of subsection (c) of section [7-148](#), or the abatement of nuisances as provided in subparagraph (E) of subdivision (7) of subsection (c) of section [7-148](#).

(P.A. 09-144, S. 10; P.A. 14-122, S. 9; P.A. 23-33, S. 3.)

History: P.A. 14-122 made a technical change in Subsec. (b); P.A. 23-33 made a conforming change in Subsec. (c).

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Sec. 7-148kk. Negotiated agreement to promote regional economic development and share tax revenue from new economic development. (a) As used in this section, “legislative body” means the council, commission, board, body or town meeting, by whatever name it may be known, having or exercising the general legislative powers and functions of a municipality and “municipality” means any town, city or borough, consolidated town and city or consolidated town and borough.

(b) Notwithstanding any provision of the general statutes or any special act, municipal charter or home rule ordinance, the chief elected officials of two or more municipalities that are members of the same federal economic development district, established under 42 USC 3171, may initiate a process for such municipalities to enter into an agreement to promote regional economic development and share the real and personal property tax revenue from new economic development. Such agreement shall provide that the municipalities agree not to compete for new economic development and shall specify the types of new economic development projects subject to the agreement. The agreement shall also have terms providing for (1) identification of areas for (A) new economic development, (B) open space and natural resource preservation, and (C) transit-oriented development, including housing; (2) capital improvements, including the shared use of buildings and other capital assets; (3) regional energy consumption, including strategies for cooperative energy use and development of distributive generation and sustainable energy projects; and (4) promotion and sharing of arts and cultural assets. The agreement shall also include terms providing for at least three municipal cooperative programs and at least three educational cooperative programs, including, but not limited to, the following: (A) Collective bargaining, (B) purchasing cooperatives, (C) health care pooling with each other or the state, (D) regional shared school curriculum and special education services, through regional educational service centers, established under section [10-66a](#), and (E) any other initiatives mutually agreed upon. Each municipality that is party to the agreement shall participate in at least one municipal cooperative program and one educational cooperative program. The provisions of this section shall not be construed to require each municipality that is party to the agreement to participate in all municipal cooperative programs and educational cooperative programs described in the agreement.

(c) The agreement shall be prepared pursuant to negotiations and shall contain all provisions on which there is mutual agreement between the municipalities. The agreement shall establish procedures for amendment, termination and withdrawal. The negotiations shall include an opportunity for public participation. The agreement shall be approved by each municipality that is a party to the agreement by resolution of the legislative body.

(d) The municipality in which real property with new economic development is located that is subject to shared revenue pursuant to an agreement under this section shall maintain a separate list describing such properties. The mill rate used to determine the amount of taxes imposed on such new economic development shall be the mill rate of the municipality in which the development is located.

(P.A. 09-231, S. 1.)

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Sec. 7-148ll. Determination re regional economic development agreement. The municipalities that are parties to a regional economic development agreement entered into and approved under the provisions of section [7-148kk](#) shall send a copy of such agreement to the Secretary of the Office of Policy and Management. Not more than thirty days after receipt of such agreement the secretary shall make a written determination as to whether or not the agreement is consistent with the requirements of said section [7-148kk](#). The secretary shall send a copy of the determination to each municipality that is a party to the agreement and the Commissioner of Revenue Services.

(P.A. 09-231, S. 2.)

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Sec. 7-148mm. Interlocal agreement re dispatch services. Governing board. Any municipalities that enter into an interlocal agreement pursuant to sections [7-339a](#) to [7-339l](#), inclusive, to consolidate dispatch services may establish a governing board. Each municipality that is a party to such an agreement shall be represented on such governing board. Representatives of the municipality shall be appointed to such governing board by the legislative body of such municipality or in such other manner as shall be prescribed by such legislative body. The qualifications, terms of office and compensation, if any, of such representatives shall be prescribed by such legislative body, subject to any applicable provisions of the interlocal agreement. The general powers and authority of such governing board shall be as set forth in the provisions of the interlocal agreement. Nothing in this section shall be construed to grant such governing board any powers not specifically provided to municipalities regarding dispatch services by any provision of the general statutes or by any charter or special act. For purposes of this section, “municipality” has the same meaning as provided in subsection (d) of section [7-187](#) and “interlocal agreement” and “legislative body” have the same meanings as provided in section [7-339a](#).

(P.A. 14-179, S. 1.)

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Sec. 7-148nn. Municipal partnerships re sharing of services of resident state trooper or other law enforcement personnel. Notwithstanding the provisions of the general statutes or any municipal charter or special act to the contrary, any municipality may enter into a partnership with one or more municipalities to share the services of one or more resident state troopers or other law enforcement personnel.

(P.A. 16-144, S. 3.)

History: P.A. 16-144 effective June 9, 2016.

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Sec. 7-148oo. Municipal option for temporary deferment of payment on certain delinquent property taxes and utility rates, charges and assessments. Notwithstanding any provision of chapter 105 or 204 or any special act, charter, home rule ordinance, local ordinance or other local law, for the fiscal years ending June 30, 2022, and June 30, 2023, any municipality or district, as defined in section [7-324](#), may provide, upon approval by its legislative body or board of directors, as applicable, a program in which taxpayers, businesses, nonprofits and residents may defer payment for ninety days on any (1) tax on real property, personal property or motor vehicle, or (2) municipal water, sewer or electric rate, charge or assessment, from the time that such tax, rate, charge or assessment becomes due and payable.

(P.A. 21-73, S. 1.)

History: P.A. 21-73 effective July 1, 2021.

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Sec. 7-148pp. Municipal option for temporary lower interest rate on certain delinquent property taxes and utility rates, charges and assessments. (a)(1) Except as provided in subsection (b) of this section and notwithstanding any provision of chapter 105 or 204 or any special act, charter, home rule ordinance, local ordinance or other local law, for the fiscal years ending June 30, 2022, and June 30, 2023, any municipality

or district, as defined in section [7-324](#), may provide, upon approval by its legislative body or board of directors, as applicable, a program in which the delinquent portion of the principal of any (A) tax on real property, personal property or motor vehicle, or (B) municipal water, sewer or electric rate, charge or assessment, shall be subject to interest at a rate of three per cent per annum for ninety days from the time that such tax, rate, charge or assessment becomes due and payable until such tax, rate, charge or assessment is paid.

(2) At the conclusion of the ninety days during which the delinquent portion of any tax, rate, charge or assessment described in subsection (a) of this section shall be subject to interest at a rate of three per cent per annum, pursuant to said subsection, such delinquent portion, if any, shall be subject to interest and penalties as otherwise provided by law.

(b) The provisions of subsection (a) of this section shall not apply in the case of any tax, rate, charge or assessment described in said subsection that is subject to interest and penalties at less than three per cent per annum.

(P.A. 21-73, S. 2.)

History: P.A. 21-73 effective July 1, 2021.

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Sec. 7-148qq. Licensure of short-term rental properties. Any municipality may (1) by vote of its legislative body, adopt an ordinance requiring the licensure of short-term rental properties in such municipality and regulating the operation and use of such properties, and (2) engage one or more consultants to assist such municipality in developing such ordinance. For the purposes of this section, “short-term rental properties” means a dwelling unit, as defined in section [47a-1](#), or any portion thereof, that is (A) the subject of a short-term rental, as defined in section [12-408h](#), and (B) not a hotel or bed and breakfast establishment, as such terms are defined in section [12-407](#), or a motel, motor court, motor inn or tourist court.

(P.A. 24-143, S. 7.)

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Sec. 7-148rr. Municipal function. Appointment by interlocal agreement or agreement for regional services. Regulations. (a) As used in this section (1) “municipality” means any municipality, as defined in section [7-187](#), any district, as defined in section [7-324](#), any metropolitan district or any municipal district created under section [7-330](#) and located within the state, and (2) “regional council of governments” means any regional council of governments organized under the provisions of sections [4-124i](#) to [4-124p](#), inclusive.

(b) Any appointment that a municipality is authorized or required by law to make on its own behalf with respect to a municipal function may be made by a regional council of governments or jointly with one or more other municipalities pursuant to an interlocal agreement for the joint performance of municipal functions pursuant to section [7-148cc](#) or an agreement for regional services pursuant to section [8-31b](#). Such appointment shall pertain jointly to each municipality that is a party to such agreement and be in lieu of any individual appointment by any such municipality. The provisions of this subsection shall supersede any provision of the general statutes or any special act, charter, special act charter, home rule ordinance or local law that would prohibit or limit the ability to make such joint appointments, including, but not limited to, any provision that (1) prohibits a municipality from entering into an agreement for shared services, (2) requires an appointee to fulfill such appointee's duties to the exclusion of other employment, (3) requires an appointee to reside within a particular municipality, or (4) requires a municipality to make an individual appointment.

(c) For the purposes of this section, a municipal function shall include, but not be limited to, administrative and regulatory activities described in chapters 93, 96a and 100, sections [7-148b](#), [7-148g](#), [7-148p](#), [8-3](#), [12-136](#), [22-331](#), [22-340](#), [22a-36](#) to [22a-45](#), inclusive, and [29-251](#) to [29-371](#), inclusive, and planning activities described in sections [8-23](#), [8-30j](#) and [19a-181b](#).

(d) The Secretary of the Office of Policy and Management may adopt regulations in accordance with the provisions of chapter 54 to implement the provisions of this section.

(P.A. 24-151, S. 127.)

History: P.A. 24-151 effective July 1, 2024.

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Sec. 7-149. Regulation of waste disposal in highways. Section [7-149](#) is repealed.

(1949 Rev., S. 625; 1957, P.A. 13, S. 9; 1959, P.A. 449, S. 1; P.A. 82-327, S. 12.)

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Sec. 7-149a. Designation of scenic roads. Appeal. Maintenance of highway. (a) Any town, city or borough may, by ordinance, designate highways or portions of highways as scenic roads and may regulate future alterations and improvements on such designated scenic roads, including, but not limited to, widening of the right-of-way or of the traveled portion of the highway, paving, changes of grade, straightening, removal of stone walls and removal of mature trees. No state highway or portion thereof may be designated as a scenic road under the provisions of this section.

(b) The power to designate such scenic roads may be delegated by ordinance to a planning commission or a combined planning and zoning commission. The ordinance shall prescribe the standards and procedures to be used to determine which highways or portions of highways shall be designated as scenic roads, except that to be designated as a scenic road, a highway or portion of a highway must be free of intensive commercial development and intensive vehicular traffic and must meet at least one of the following criteria: (1) It is unpaved; (2) it is bordered by mature trees or stone walls; (3) the traveled portion is no more than twenty feet in width; (4) it offers scenic views; (5) it blends naturally into the surrounding terrain, or (6) it parallels or crosses over brooks, streams, lakes or ponds.

(c) No highway or portion of a highway may be designated as a scenic road under this section unless the owners of a majority of lot frontage abutting the highway or portion of the highway agree to the designation by filing a written statement of approval with the town clerk of such town. The scenic road designation may be rescinded by the same designating authority, using the same procedures and having the written concurrence of the owners of a majority of lot frontage abutting the highway or portion of the highway.

(d) Any person aggrieved by a designation of a highway or portion of a highway as a scenic road pursuant to this section by a planning commission or a combined planning and zoning commission may appeal such designation in the manner and utilizing the same standards of review provided for appeals from the decisions of planning commissions under section [8-8](#).

(e) Any highway or portion of any highway designated as a scenic road shall be maintained by the town, city or borough in good and sufficient repair and in passable condition. Nothing in this section shall be deemed to prohibit a person owning or occupying land abutting a scenic road from maintaining and repairing the land which abuts the scenic road if the maintenance or repair occurs on land not within the right-of-way, paved or unpaved, of the scenic road.

(P.A. 81-401, S. 1, 4; P.A. 89-356, S. 3.)

History: P.A. 89-356 amended Subsec. (d) to replace reference to Sec. 8-28 with Sec. 8-8.

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Sec. 7-149b. Regulation of commercial unmanned aircraft. (a) As used in this section, “commercial unmanned aircraft” means an aircraft operated remotely by a pilot in command holding a valid remote pilot certificate with a small unmanned aircraft systems rating issued by the Federal Aviation Administration.

(b) No municipality shall enact or enforce an ordinance or resolution that regulates the ownership, possession, purchase, sale, use, transportation or operation of any commercial unmanned aircraft or otherwise regulate the ownership, possession, purchase, sale, use, transportation or operation of such aircraft, except as otherwise authorized by state and federal law, and to the extent they do not conflict with policies and procedures adopted by the Connecticut Airport Authority. Notwithstanding the provisions of this section, any municipality that is also a water company, as defined in section [25-32a](#), may enact and enforce ordinances or resolutions that regulate or prohibit the use or operation of private and commercial unmanned aircraft over such municipality's public water supply and Class I or Class II land, as described in section [25-37c](#), provided such ordinances or resolutions do not conflict with federal law or policies and procedures adopted by the Connecticut Airport Authority.

(P.A. 17-52, S. 1.)

History: P.A. 17-52 effective June 13, 2017.

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Sec. 7-149c. Municipal regulation of operation and use of external speakers attached to a motor vehicle. Penalties. Seizure and forfeiture. (a) Any municipality that adopts an ordinance pursuant to section [7-148](#) to regulate the operation and use of external speakers attached to a motor vehicle, as defined in section [14-1](#) in order to preserve the public peace and good order and prevent disturbing noises, may (1) prescribe a penalty for a violation of such ordinance in an amount not to exceed one thousand dollars for a first violation, in an amount not to exceed one thousand five hundred dollars for a second violation, and in an amount not to exceed two thousand dollars for a third or subsequent violation, and (2) provide for the seizure and forfeiture to the municipality of such external speakers for a violation of such ordinance.

(b) No external speaker shall be forfeited under an ordinance adopted pursuant to this section to the extent of the interest of an owner by reason of any act or omission committed by another person if such owner did not know and could not have reasonably known that such external speaker was being used or was intended to be used in violation of a municipal ordinance.

(c) Any external speaker ordered forfeited pursuant to such an ordinance shall be sold at a public auction conducted by the municipality. The proceeds of such sale shall be paid to the treasurer of the municipality, who shall deposit such proceeds into the general fund of the municipality.

(P.A. 22-40, S. 25.)

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Sec. 7-149d. Establishment of traffic authority. Notwithstanding the provisions of any municipal charter, special act or home rule ordinance, any municipality may, by vote of its legislative body, establish a traffic

authority and appoint one or more persons as members to serve on such traffic authority. The qualifications, terms of office and compensation, if any, of any such members shall be prescribed by such legislative body. A traffic authority established pursuant to this section shall replace any existing traffic authority in such municipality and have the same powers and duties as a traffic authority described in subparagraphs (A) to (C), inclusive, of subdivision (7) of section [14-297](#).

(P.A. 24-40, S. 7.)

History: P.A. 24-40 effective July 1, 2024.

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Secs. 7-150 and 7-151. Regulation of plumbing and drainage. Regulation of operation of motor boats. Sections [7-150](#) and [7-151](#) are repealed.

(1949 Rev., S. 634, 707; 1957, P.A. 13, S. 12, 24; 1961, P.A. 520, S. 20; P.A. 82-327, S. 12.)

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Sec. 7-151a. Establishment of lake authorities. Withdrawal of town. (a) As used in this section, “state waters” means all waters within the territorial limits of the state except navigable waters of the United States. Any two or more towns which have within their territorial limits a body of state water may establish by ordinance a lake authority. Said authority shall act as agent for the member towns in cooperating with the Commissioner of Energy and Environmental Protection in the enforcement of the boating laws on such water.

(b) Notwithstanding the provisions of section [7-330](#), such authority shall be composed of at least three delegates from each member town whose term of office and method of selection shall be determined by the towns establishing the authority provided each member town may appoint up to four delegates to the authority. Each town shall pay to the authority its respective share of the expenses of the commission prorated on the basis of its linear footage of shore line or any other formula agreed on and adopted by a majority of the legislative bodies of all member towns. Any member town may, by ordinance, withdraw from such authority, effective upon the mailing of written notice of such withdrawal to the authority. Each withdrawing town shall be liable for its share of expenses incurred prior to the effective date of such notice. Upon the withdrawal of any town or towns, the authority shall remain in force insofar as the remaining town or towns are concerned, but the jurisdiction of the authority shall be reduced to that portion of said body of state water lying within the boundaries of such remaining town or towns. In the event of such a withdrawal, the portion of such body of state water lying within the town or towns withdrawing from the authority shall revert to the status existing prior to the adoption of the authority.

(c) In addition to the power granted in subsection (a) of this section, a lake authority may be granted by the legislative bodies of its respective towns powers to: (1) Control and abate algae and aquatic weeds in cooperation with the Commissioner of Energy and Environmental Protection; (2) study water management including, but not limited to, water depth and circulation and make recommendations for action to its member towns; (3) act as agent for member towns with respect to filing applications for grants and reimbursements with the Department of Energy and Environmental Protection and other state agencies in connection with state and federal programs; and (4) act as agent for member towns with respect to receiving gifts for any of its purposes.

(d) A lake authority shall have no jurisdiction in any matters subject to regulation by the Commissioner of Energy and Environmental Protection.

(e) Each member town of any lake authority shall protect and save harmless such town's delegates to such lake authority from financial loss and expense, including legal fees and costs, if any, arising out of any claim, demand, suit or judgment by reason of alleged negligence on the part of such delegate while acting in the discharge of his duties as such delegate. Each such member town may insure against the liability imposed by this subsection in any insurance company organized in this state or in any insurance company of another state authorized to write such insurance in this state or may elect to act as self-insurer of such liability.

(1967, P.A. 682, S. 1-3; 1969, P.A. 416; 1971, P.A. 29, S. 1, 2; P.A. 73-241, S. 1-3; P.A. 75-408, S. 2; P.A. 76-435, S. 35, 82; P.A. 88-364, S. 74, 123; P.A. 93-238, S. 4; P.A. 07-217, S. 17; P.A. 10-32, S. 15; P.A. 11-80, S. 1.)

History: 1969 act added Subsecs. (c) and (d) re additional powers of lake authorities and ban on jurisdiction in matters subject to state fisheries and game board; 1971 act permitted formulas other than linear footage for basis of expense apportionment in Subsec. (b) and in Subsec. (c) added power to act as agent for towns in applications to various state agencies; P.A. 73-241 required agreement by majority of member towns re alternate formulas of expense apportionment in Subsec. (b) and added power to act as agent for towns in receiving gifts under Subsec. (c); P.A. 75-408 added Subsec. (e) re indemnification of lake authority delegates; P.A. 76-435 replaced state boating commission, water resources commission and board of fisheries and game with commissioner of environmental protection, pursuant to 1971, P.A. 872; P.A. 88-364 deleted reference to Secs. 22a-338 and 22a-339 from Subsec. (c); P.A. 93-238 amended Subsec. (b) to authorize an additional member for municipal delegations to the authorities; P.A. 07-217 made a technical change in Subsec. (c), effective July 12, 2007; P.A. 10-32 made a technical change in Subsec. (c) (4), effective May 10, 2010; pursuant to P.A. 11-80, "Commissioner of Environmental Protection" and "Department of Environmental Protection" were changed editorially by the Revisors to "Commissioner of Energy and Environmental Protection" and "Department of Energy and Environmental Protection", respectively, effective July 1, 2011.

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Sec. 7-151b. Appointment of lake patrolmen. Requirements for carrying a firearm or baton by lake patrolmen. Liability. Training courses. (a) The Commissioner of Energy and Environmental Protection may appoint lake patrolmen to enforce any boating laws delegated by said commissioner. Any such lake patrolman may carry a firearm or baton, or both, only upon completion of a basic police training course defined in section [7-294a](#) or a firearms safety course offered by the Department of Energy and Environmental Protection. Such lake patrolmen shall not be construed to be state employees and compensation therefore shall be paid by the municipality or lake authority responsible for the lake. Such lake patrolmen may use their own vessels to enforce the provisions of this section, provided the state shall not be liable for any damage caused by a lake patrolman using such vessel in the course of such lake patrolman's duties. A municipality employing lake patrolmen shall assume liability for damage caused by such patrolmen pursuant to section [7-465](#). A lake authority may protect and save harmless any lake patrolman employed by the authority from financial loss and expense, including legal fees and costs, if any, arising out of any claim, demand, suit or judgment by reason of alleged negligence on the part of such lake patrolman while acting in the scope of such lake patrolman's employment.

(b) The Commissioner of Energy and Environmental Protection shall formulate training courses for lake patrolmen appointed pursuant to this section.

(P.A. 88-98, S. 5, 6; P.A. 01-204, S. 27; June Sp. Sess. P.A. 01-9, S. 73, 131; P.A. 11-80, S. 1.)

History: P.A. 01-204 amended Subsec. (a) by adding provision to allow a lake patrolman to carry a baton and by making technical changes, including changes for purposes of gender neutrality; June Sp. Sess. P.A. 01-9 changed effective date of P.A. 01-204 from October 1, 2001, to July 11, 2001, effective July 1, 2001; pursuant to P.A. 11-80, "Commissioner of Environmental Protection" and "Department of Environmental

Protection” were changed editorially by the Revisors to “Commissioner of Energy and Environmental Protection” and “Department of Energy and Environmental Protection”, respectively, effective July 1, 2011.

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Sec. 7-151c. Lake authority retention fees for boating law fines. Schedule. The Commissioner of Energy and Environmental Protection shall establish a schedule of retention fees for lake authorities that provides for the amount of any fine issued by such authority, to any person who violates the boating laws of the state upon such lake, that such authority may retain.

(P.A. 22-144, S. 3.)

History: P.A. 22-144 effective July 1, 2022.

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Secs. 7-152 and 7-152a. Keeping of snakes. Municipal garden program; ordinance establishing; indemnification of municipality. Sections [7-152](#) and [7-152a](#) are repealed.

(1951, S. 278d; P.A. 75-497, S. 3, 4; P.A. 82-327, S. 12.)

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Sec. 7-152b. Hearing procedure for parking violations. (a) Any town, city or borough may establish by ordinance a parking violation hearing procedure in accordance with this section. The Superior Court shall be authorized to enforce the assessments and judgments provided for under this section.

(b) The chief executive officer of the town, city or borough shall appoint one or more parking violation hearing officers, other than policemen or persons who issue parking tickets or work in the police department, to conduct the hearings authorized by this section.

(c) A town, city or borough may, at any time within two years from the expiration of the final period for the uncontested payment of fines, penalties, costs or fees for any alleged violation under any ordinance adopted pursuant to section [7-148](#) or sections [14-305](#) to [14-308](#), inclusive, send notice to the motor vehicle operator, if known, or the registered owner of the motor vehicle by first class mail at his address according to the registration records of the Department of Motor Vehicles or by electronic mail, if the operator or owner's electronic mail address is known. Such notice shall inform the operator or owner: (1) Of the allegations against him and the amount of the fines, penalties, costs or fees due; (2) that he may contest his liability before a parking violations hearing officer by delivering in person, by electronic mail or by mail written notice within ten days of the date thereof; (3) that if he does not demand such a hearing, an assessment and judgment shall enter against him; and (4) that such judgment may issue without further notice. Whenever a violation of such an ordinance occurs, proof of the registration number of the motor vehicle involved shall be prima facie evidence in all proceedings provided for in this section that the owner of such vehicle was the operator thereof; provided, the liability of a lessee under section [14-107](#) shall apply.

(d) If the person who is sent notice pursuant to subsection (c) of this section wishes to admit liability for any alleged violation, such person may, without requesting a hearing, pay the full amount of the fines, penalties, costs or fees admitted to in person or by mail to an official designated by the town, city or borough. Such payment shall be inadmissible in any proceeding, civil or criminal, to establish the conduct of such person or other person making the payment. Any person who does not demand a hearing within

ten days of the date of the first notice provided for in subsection (c) of this section shall be deemed to have admitted liability, and the designated town official shall certify such person's failure to respond to the hearing officer. The hearing officer shall thereupon enter and assess the fines, penalties, costs or fees provided for by the applicable ordinances and shall follow the procedures set forth in subsection (f) of this section.

(e) Any person who requests a hearing shall be given written notice of the date, time and place for the hearing. Such hearing shall be held not less than fifteen days nor more than thirty days from the date of the mailing of notice, provided the hearing officer shall grant upon good cause shown any reasonable request by any interested party for postponement or continuance. An original or certified copy of the initial notice of violation issued by a policeman or other issuing officer shall be filed and retained by the town, city or borough, be deemed to be a business record within the scope of section [52-180](#) and be evidence of the facts contained therein. The presence of the policeman or issuing officer shall be required at the hearing if such person so requests. A person wishing to contest his liability shall appear at the hearing in person or by means of electronic equipment, and may present evidence in his behalf. A designated town official, other than the hearing officer, may present evidence on behalf of the town. If such person fails to appear, the hearing officer may enter an assessment by default against him upon a finding of proper notice and liability under the applicable statutes or ordinances. The hearing officer may accept from such person copies of police reports, Department of Motor Vehicles documents and other official documents by mail and may determine thereby that the appearance of such person is unnecessary. The hearing officer shall conduct the hearing in the order and form and with such methods of proof as he deems fair and appropriate. The rules regarding the admissibility of evidence shall not be strictly applied, but all testimony shall be given under oath or affirmation. The hearing officer shall announce his decision at the end of the hearing. If he determines that the person is not liable, he shall dismiss the matter and enter his determination in writing accordingly. If he determines that the person is liable for the violation, he shall forthwith enter and assess the fines, penalties, costs or fees against such person as provided by the applicable ordinances of that town, city or borough.

(f) If such assessment is not paid on the date of its entry, the hearing officer shall send by first class mail a notice of the assessment to the person found liable and shall file, not less than thirty days or more than twelve months after such mailing, a certified copy of the notice of assessment with the clerk of a superior court facility designated by the Chief Court Administrator together with an entry fee of eight dollars. The certified copy of the notice of assessment shall constitute a record of assessment. Within such twelve-month period, assessments against the same person may be accrued and filed as one record of assessment. The clerk shall enter judgment, in the amount of such record of assessment and court costs of eight dollars, against such person in favor of the town, city or borough. Notwithstanding any provision of the general statutes, the hearing officer's assessment, when so entered as a judgment, shall have the effect of a civil money judgment and a levy of execution on such judgment may issue without further notice to such person.

(g) A person against whom an assessment has been entered pursuant to this section is entitled to judicial review by way of appeal. An appeal shall be instituted within thirty days of the mailing of notice of such assessment by filing a petition to reopen assessment, together with an entry fee in an amount equal to the entry fee for a small claims case pursuant to section [52-259](#), at the Superior Court facility designated by the Chief Court Administrator, which shall entitle such person to a hearing in accordance with the rules of the judges of the Superior Court.

(P.A. 81-438; P.A. 84-107; P.A. 00-191, S. 3; P.A. 02-132, S. 62; P.A. 03-278, S. 12; P.A. 07-217, S. 18; June Sp. Sess. P.A. 21-2, S. 162.)

History: P.A. 84-107 extended the period for notification of hearing from 12 months to 2 years; (Revisor's note: In 1997 references throughout the general statutes to "Motor Vehicle(s) Commissioner" and "Motor Vehicle(s) Department" were replaced editorially by the Revisors with "Commissioner of Motor Vehicles" or "Department of Motor Vehicles", as the case may be, for consistency with customary statutory usage); P.A. 00-191 amended Subsec. (f) by changing provision that copy of notice of assessment be filed with

clerk of superior court facility designated by the Chief Court Administrator within boundaries of judicial district instead of superior court for the geographical area; P.A. 02-132 amended Subsec. (f) by deleting “within the boundaries of the judicial district in which the town, city or borough is located” and making a technical change and amended Subsec. (g) by replacing “in the superior court for the geographical area in which the town, city or borough is located” with “at the superior court facility designated by the Chief Court Administrator”; P.A. 03-278 made a technical change in Subsec. (f), effective July 9, 2003; P.A. 07-217 made technical changes in Subsec. (d), effective July 12, 2007; June Sp. Sess. P.A. 21-2 amended Subsec. (c) by permitting notice by electronic mail, Subsec. (d) by making a technical change, and Subsec. (e) by specifying that a person wishing to contest liability shall appear at the hearing in person or by means of electronic equipment.

Hearing officer's decision did not constitute an assessment for purposes of this section because hearing officer determined the petitioner violated a motor vehicle ordinance adopted pursuant to Sec. 14-150a, a statute not listed in Subsec. (c), and ordered the petitioner to remove the motor vehicles, as opposed to pay a monetary sum, and thus Subsec. (g) did not provide petitioner with a statutory right to appeal to the Superior Court. 198 CA 838.

Subsec. (g):

Although the parking ticket was voided by the town, the assessment remained and had independent legal significance from the parking ticket, and is appealable. 215 CA 1.

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Sec. 7-152c. Hearing procedure for citations. (a) Any municipality as defined in subsection (a) of section [7-148](#) may establish by ordinance a citation hearing procedure in accordance with this section. The Superior Court shall be authorized to enforce the assessments and judgments provided for under this section.

(b) The chief executive officer of any such municipality shall appoint one or more citation hearing officers, other than police officers or employees or persons who issue citations, to conduct the hearings authorized by this section.

(c) Any such municipality, at any time within twelve months from the expiration of the final period for the uncontested payment of fines, penalties, costs or fees for any citation issued under any ordinance adopted pursuant to section [7-148](#), [14-279c](#), [14-307c](#), [14-307j](#) or [22a-226d](#), for an alleged violation thereof, shall send notice to the person cited. Such notice shall inform the person cited: (1) Of the allegations against such person and the amount of the fines, penalties, costs or fees due; (2) that such person may contest such person's liability before a citation hearing officer by delivering in person or by mail written notice within ten days of the date thereof; (3) that if such person does not demand such a hearing, an assessment and judgment shall be entered against such person; and (4) that such judgment may issue without further notice. For purposes of this section, notice shall be presumed to have been properly sent if such notice was mailed to such person's last-known address on file with the tax collector. If the person to whom such notice is issued is a registrant, the municipality may deliver such notice in accordance with section [7-148ii](#), provided nothing in this section shall preclude a municipality from providing notice in another manner permitted by applicable law.

(d) If the person who is sent notice pursuant to subsection (c) of this section wishes to admit liability for any alleged violation, he may, without requesting a hearing, pay the full amount of the fines, penalties, costs or fees admitted to in person or by mail to an official designated by such municipality. Such payment shall be inadmissible in any proceeding, civil or criminal, to establish the conduct of such person or other person making the payment. Any person who does not deliver or mail written demand for a hearing within ten days of the date of the first notice provided for in subsection (c) of this section shall be deemed to have admitted liability, and the designated municipal official shall certify such person's failure to respond to the hearing officer. The hearing officer shall thereupon enter and assess the fines, penalties,

costs or fees provided for by the applicable ordinances and shall follow the procedures set forth in subsection (f) of this section.

(e) Any person who requests a hearing shall be given written notice of the date, time and place for the hearing. Such hearing shall be held not less than fifteen days nor more than thirty days from the date of the mailing of notice, provided the hearing officer shall grant upon good cause shown any reasonable request by any interested party for postponement or continuance. An original or certified copy of the initial notice of violation issued by the issuing official or policeman shall be filed and retained by the municipality, and shall be deemed to be a business record within the scope of section [52-180](#) and evidence of the facts contained therein. The presence of the issuing official or policeman shall be required at the hearing if such person so requests. A person wishing to contest his liability shall appear at the hearing and may present evidence in his behalf. A designated municipal official, other than the hearing officer, may present evidence on behalf of the municipality. If such person fails to appear, the hearing officer may enter an assessment by default against him upon a finding of proper notice and liability under the applicable statutes or ordinances. The hearing officer may accept from such person copies of police reports, investigatory and citation reports, and other official documents by mail and may determine thereby that the appearance of such person is unnecessary. The hearing officer shall conduct the hearing in the order and form and with such methods of proof as he deems fair and appropriate. The rules regarding the admissibility of evidence shall not be strictly applied, but all testimony shall be given under oath or affirmation. The hearing officer shall announce his decision at the end of the hearing. If he determines that the person is not liable, he shall dismiss the matter and enter his determination in writing accordingly. If he determines that the person is liable for the violation, he shall forthwith enter and assess the fines, penalties, costs or fees against such person as provided by the applicable ordinances of the municipality.

(f) If such assessment is not paid on the date of its entry, the hearing officer shall send by first class mail a notice of the assessment to the person found liable and shall file, not less than thirty days or more than twelve months after such mailing, a certified copy of the notice of assessment with the clerk of a superior court facility designated by the Chief Court Administrator together with an entry fee of eight dollars. The certified copy of the notice of assessment shall constitute a record of assessment. Within such twelve-month period, assessments against the same person may be accrued and filed as one record of assessment. The clerk shall enter judgment, in the amount of such record of assessment and court costs of eight dollars, against such person in favor of the municipality. Notwithstanding any provision of the general statutes, the hearing officer's assessment, when so entered as a judgment, shall have the effect of a civil money judgment and a levy of execution on such judgment may issue without further notice to such person.

(g) A person against whom an assessment has been entered pursuant to this section is entitled to judicial review by way of appeal. An appeal shall be instituted within thirty days of the mailing of notice of such assessment by filing a petition to reopen assessment, together with an entry fee in an amount equal to the entry fee for a small claims case pursuant to section [52-259](#), at a superior court facility designated by the Chief Court Administrator, which shall entitle such person to a hearing in accordance with the rules of the judges of the Superior Court.

(P.A. 88-221, S. 2; P.A. 94-200, S. 2; P.A. 00-191, S. 4, 16; P.A. 02-132, S. 63; P.A. 03-278, S. 13; P.A. 09-144, S. 4; P.A. 13-132, S. 2; P.A. 23-116, S. 14; P.A. 24-107, S. 5; 24-151, S. 136.)

History: P.A. 94-200 amended Subsec. (c) to include enforcement of ordinances adopted under Sec. 22a-226d; P.A. 00-191 amended Subsec. (f) by changing provision that copy of notice of assessment be filed with clerk of superior court facility designated by the Chief Court Administrator within boundaries of judicial district instead of superior court for the geographical area, effective September 1, 2000; P.A. 02-132 amended Subsec. (f) by deleting “within the boundaries of the judicial district in which the municipality is located” and making a technical change and amended Subsec. (g) by replacing “in the superior court for the geographical area in which the municipality is located” with “at a superior court facility designated by the Chief Court Administrator”; P.A. 03-278 made a technical change in Subsec. (f),

effective July 9, 2003; P.A. 09-144 amended Subsec. (c) by allowing notice to be delivered to a registrant in accordance with Sec. 7-148ii; P.A. 13-132 amended Subsec. (c) by adding provision re notice presumed to have been properly sent if mailed to last-known address on file with tax collector; P.A. 23-116 amended Subsec. (c) to add reference to Sec. 14-307c and make technical changes; P.A. 24-107 amended Subsec. (c) to add reference to Sec. 14-279c, effective July 1, 2024; P.A. 24-151 amended Subsec. (c) to add reference to Sec. 14-307j, effective July 1, 2024.

Defendant's attempt to collaterally challenge an assessment by means of a motion to open failed to strictly comply with right established by Subsec. (g) to appeal from the assessment, thus the trial court lacked subject matter jurisdiction to grant such motion to open and reduce the amount of the assessment. 150 CA 736.

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Sec. 7-152d. Civil penalty for illegal disposal of solid waste at municipal landfill. Notwithstanding the provisions of section [51-164p](#), any municipality may by ordinance establish a civil penalty for the illegal disposal of solid waste at a landfill operated by the municipality, provided the amount of such civil penalty shall be not more than one thousand dollars for the first violation, not more than two thousand dollars for the second violation and not more than three thousand dollars for any subsequent violation. Any person who is assessed a civil penalty pursuant to this section may appeal therefrom to the Superior Court in the manner provided in subsection (g) of section [7-152b](#).

(P.A. 90-216.)

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Sec. 7-152e. Ordinances re unregistered motor vehicles. (a) Notwithstanding any provision of the general statutes or special act, municipal charter or ordinance, any municipality may, by ordinance adopted by its legislative body, establish a fine to be imposed against any owner of a motor vehicle that is subject to property tax in the municipality pursuant to subsection (h) of section [12-71b](#) who fails to register such motor vehicle with the Commissioner of Motor Vehicles, provided (1) such motor vehicle is eligible for registration and required to be registered under the provisions of chapter 246, (2) such fine shall not be more than two hundred fifty dollars, (3) any penalty for the failure to pay such fine by a date prescribed by the municipality shall not be more than twenty-five per cent of such fine, and (4) such fine shall be suspended for a first time violator who presents proof of registration for such motor vehicle subsequent to the violation but prior to the imposition of a fine.

(b) Any police officer or other person authorized by the chief executive officer of the municipality may issue a citation to any person who fails to register such motor vehicle. Any municipality that adopts an ordinance pursuant to subsection (a) of this section shall also adopt a citation hearing procedure pursuant to section [7-152c](#) by which procedure such fine shall be imposed.

(P.A. 21-106, S. 32; June Sp. Sess. P.A. 24-1, S. 11.)

History: P.A. 21-106 effective July 1, 2021; June Sp. Sess. P.A. 24-1 amended Subsec. (a) by changing reference to Sec. 12-71b(g) to Sec. 12-71b(h), effective July 1, 2024.

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Sec. 7-152f. Ordinances re illegal gifts, sales and transfers of cannabis. Any municipality may establish, by ordinance, a fine for violations of section [21a-421hhh](#), provided the amount of any such fine shall not be

greater than one thousand dollars per violation. Any police officer or other person authorized by the chief executive officer of the municipality may issue a citation to any person who commits such a violation. Any municipality that adopts an ordinance pursuant to this section shall also adopt a citation hearing procedure pursuant to section [7-152c](#). Any fine collected by a municipality pursuant to this section shall be deposited into the general fund of the municipality or in any special fund designated by the municipality.

(P.A. 22-103, S. 3.)

History: P.A. 22-103 effective May 24, 2022.

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Sec. 7-152g. Ordinances, orders and regulations re battery-charged security fences. (a) For purposes of this section, “battery-charged security fence” means an alarm system and ancillary components, or equipment attached to such system, including, but not limited to, a fence, an energizer, cameras and a battery-charging device used exclusively to charge the battery that:

(1) Interfaces with a monitored alarm device in a manner that enables the alarm system to transmit a signal intended to summon the owner of the business protected by such fence or a law enforcement officer in response to an intrusion or burglary;

(2) Is located on property that is not zoned by a municipality exclusively for residential use;

(3) Has an energizer that is powered by a commercial storage battery that is not more than twelve volts of direct current and meets the standard set forth in International Electrotechnical Commission Standard 60335-2-76;

(4) Is behind and interior to a nonelectric fence, wall or barrier that is not less than five feet in height;

(5) Is the higher of ten feet in height, or at least two feet higher than the nonelectric fence described in subdivision (4) of this subsection; and

(6) Is marked with conspicuous warning signs that are located on such battery-charged security fence at no more than thirty-foot intervals, and such signs state: “WARNING—ELECTRIC FENCE”.

(b) Notwithstanding any general statute, special act, local law, ordinance or charter, a municipality shall not adopt or enforce an ordinance, order or regulation that:

(1) Requires a permit or fee to install or use a battery-charged security fence that is in addition to an alarm system permit, and no permit or fee other than for an alarm system shall be required for such a fence;

(2) Imposes installation or operational requirements for a battery-charged security fence that are inconsistent with those described in subdivisions (1) to (6), inclusive, of subsection (a) of this section; or

(3) Prohibits the installation or use of a battery-charged security fence.

(P.A. 24-71, S. 2.)

History: P.A. 24-71 effective May 30, 2024.

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Secs. 7-153 to 7-156. Regulation of sewerage facilities. Towns may make ordinances concerning matters not covered by statute and fix penalty. Loitering of children; public markets. Sections [7-153](#) to [7-156](#), inclusive, are repealed.

(1949 Rev., S. 623, 636, 643, 4147; 1953, S. 2130d; 1957, P.A. 13, S. 13, 88; 1963, P.A. 60; 1969, P.A. 820, S. 10; P.A. 82-327, S. 12.)

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Sec. 7-157. Publication. Referendum. Publication of summary. (a) Ordinances may be enacted by the legislative body of any town, city, borough or fire district. Any such ordinance so enacted, except when enacted at a town or district meeting, shall become effective thirty days after publication thereof in some newspaper having a circulation in the municipality in which it was enacted, provided, upon a petition of not less than fifteen per cent of the electors of such municipality filed with the town or borough clerk, as the case may be, within thirty days after the publication of such ordinance, asking that the same be submitted to the voters of such municipality at its next regular or special meeting, it shall be so submitted and in such event shall not become effective unless a majority of the voters voting at such meeting vote in favor thereof. Any ordinance enacted at a town or district meeting shall become effective fifteen days after publication thereof in some newspaper having a circulation in such town or in such district, as the case may be. Cities and other municipalities whose charters provide for the manner in which they may enact ordinances may enact ordinances in such manner.

(b) Whenever any town, city, borough or fire district is required to publish any proposed ordinance or ordinance in accordance with subsection (a) of this section, the legislative body of such town, city, borough or fire district may provide that a summary of such proposed ordinance or ordinance shall be published in lieu of such proposed ordinance or ordinance, provided that, in any case in which such a summary is published, the clerk of such town, city, borough or fire district shall make a copy of such proposed ordinance or ordinance available for public inspection and shall, upon request, mail a copy of such or proposed ordinance or ordinance to any person requesting a copy at no charge to such person. Any summary so published shall bear a disclaimer as follows: "This document is prepared for the benefit of the public, solely for purposes of information, summarization and explanation. This document does not represent the intent of the legislative body of (here insert the name of the town, city, borough or fire district) for any purpose." The provisions of this subsection shall not apply to any proposed ordinance or ordinance which makes or requires an appropriation.

(c) No ordinance enacted prior to June 1, 1992, shall be invalid for failure of a municipality to comply with the provisions of this section and each municipality shall be held harmless from any liability or causes of action which might arise from such failure. If a person affected by an ordinance shows prejudice because of the failure of the municipality to comply with such provision, no penalties may be imposed against such person pursuant to the ordinance. Any ordinance enacted prior to June 1, 1992, for which the provisions of this section were not complied with shall be deemed to be effective thirty days after such enactment.

(1949 Rev., S. 620; 1953, 1955, S. 249d; 1957, P.A. 13, S. 8; P.A. 86-233; P.A. 92-22; P.A. 95-353, S. 6, 7.)

History: P.A. 86-233 added Subsec. (b) re publication in summary form; P.A. 92-22 amended Subsec. (b) to authorize publication of a summary of a proposed ordinance; P.A. 95-353 added Subsec. (c) re failure of municipalities to comply with section, effective July 13, 1995.

See Secs. 7-9 re petitions for action for vote.

See Sec. 7-148 re municipal powers.

See Sec. 9-1 for applicable definitions.

Cited. 118 C. 9; 129 C. 109; 146 C. 720; 152 C. 318; 175 C. 576.

Cited. 46 CA 305.

Cited. 36 CS 74; 43 CS 297.

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Sec. 7-158. Exemption. Section [7-158](#) is repealed.

(1949 Rev., S. 621; 1961, P.A. 517, S. 88.)

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Sec. 7-159. Validity of prior ordinances, bylaws and regulations. Any valid ordinances, bylaws or regulations adopted prior to October 1, 1957, under the provisions of the general statutes shall remain valid until altered or repealed under the provisions of this chapter. Nothing contained in this chapter shall affect the powers granted to any municipality to enact ordinances, regulations or bylaws under the provisions of any special act nor shall it affect any valid ordinance, regulation or bylaw enacted under such provisions before or after October 1, 1957.

(1957, P.A. 13, S. 100.)

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Sec. 7-159a. Joint public hearing authorized on proposal requiring multiagency approval. Notwithstanding any provision of the general statutes, any special act or any municipal ordinance, the legislative body of any municipality may, by ordinance, establish procedures for the holding of one public hearing on any application for a proposal that requires approval by more than one municipal agency, body, commission or committee.

(P.A. 90-286, S. 5, 9.)

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Sec. 7-159b. Preapplication review of use of property. Notwithstanding any other provision of the general statutes, prior to the submission of an application for use of property under chapters 124, 126, 440 and 541 or any other provision of the general statutes authorizing an authority, commission, department or agency of a municipality to issue a permit or approval for use of such property, such authority, commission, department or agency or authorized agent thereof may separately, jointly, or in any combination, conduct a preapplication review of a proposed project with the applicant at the applicant's request. Such preapplication review and any results or information obtained from it may not be appealed under any provision of the general statutes, and shall not be binding on the applicant or any authority, commission, department, agency or other official having jurisdiction to review the proposed project.

(P.A. 03-184, S. 1.)

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Sec. 7-159c. Reconstruction or repair of residence, building, structure or other improvement to real property damaged or destroyed by acts of nature. Notwithstanding any provision of the general statutes, any municipality may, by ordinance, provide that any person, firm or corporation that owns a residence, building, structure or other improvement to real property damaged or destroyed by acts of nature during the period beginning August 25, 2011, and ending September 14, 2011, shall be allowed to reconstruct or repair such residence, building, structure or improvement in accordance with any previously approved permit or other authorization for the construction or repair of such residence, building, structure or improvement to the dimensions and specifications for such residence, building, structure or improvement prior to said damage without seeking or obtaining additional approval from any municipal board or commission provided any such reconstructed or repaired residence, building, structure or other improvement complies with the state building, fire and health codes in effect as of October 27, 2011. Nothing in this section shall be construed to waive or eliminate the coastal site plan review requirements of chapter 444, except that any ordinance enacted pursuant to this section may waive the coastal site plan review requirement for individual single-family residential structures, as provided in subdivision (4) of subsection (b) of section [22a-109](#).

(Oct. Sp. Sess. P.A. 11-1, S. 17.)

History: Oct. Sp. Sess. P.A. 11-1 effective October 27, 2011.

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Sec. 7-159d. Climate Change and Coastal Resiliency Reserve Fund. Authorized. Investment of funds. Report. Use of funds. Discontinuance of fund. (a) Upon the recommendation of the chief executive officer of a municipality and approval of the budget-making authority of the municipality, the legislative body of any municipality, as defined in section [7-369](#), may, by a majority vote, create a Climate Change and Coastal Resiliency Reserve Fund.

(b) Upon the recommendation of the chief executive officer and approval of the budget-making authority and the legislative body in accordance with subsection (a) of this section, there shall be paid into such reserve fund: (1) Amounts authorized to be transferred into such Climate Change and Coastal Resiliency Reserve Fund from the general fund cash surplus available at the end of any fiscal year, and (2) the proceeds of bonds, notes or other obligations issued pursuant to subsection (b) of section [7-374b](#).

(c) (1) The budget-making authority of such municipality may, from time to time, direct the treasurer to invest a portion of such Climate Change and Coastal Resiliency Reserve Fund as in the opinion of such authority is advisable, including in any trust fund administered, held or invested by the State Treasurer pursuant to chapter 32 and for which the State Treasurer may adopt regulations, in accordance with chapter 54, to allow for the investment of moneys held in any such reserve fund, provided: (A) Not more than forty per cent, or with respect to such a reserve fund for which the budget-making authority has adopted an asset allocation and investment policy, fifty per cent, of the total amount of such reserve fund shall be invested in equity securities, and (B) any portion of such reserve fund not invested pursuant to subparagraph (A) of this subdivision may be invested in: (i) Bonds or obligations of, or guaranteed by, the state or the United States, or agencies or instrumentalities of the United States, (ii) certificates of deposit, commercial paper, savings accounts and bank acceptances, (iii) the obligations of any state of the United States or any political subdivision thereof or the obligations of any instrumentality, authority or agency of any state or political subdivision thereof, if, at the time of investment, such obligations are rated in the top rating categories of any nationally recognized rating service or of any rating service recognized by the Banking Commissioner, and applicable to such obligations, (iv) the obligations of any regional school district in this state, of any municipality in this state or any metropolitan district in this state, if, at the time of investment, such obligations of such government entity are rated in one of the top two rating categories of any nationally recognized rating service or of any rating service recognized by the Banking Commissioner, and applicable to such obligations, (v) in any fund in which a trustee may invest pursuant

to section [36a-353](#), (vi) investment agreements with financial institutions whose long-term obligations are rated in the top two rating categories of any nationally recognized rating service or of any rating service recognized by the Banking Commissioner or whose short-term obligations are rated in the top rating category of any nationally recognized rating service or of any rating service recognized by the Banking Commissioner, or (vii) investment agreements fully secured by obligations of, or guaranteed by, the United States or agencies or instrumentalities of the United States.

(2) Notwithstanding the provisions of subdivision (1) of this subsection, if such reserve fund is invested in any trust fund administered, held or invested by the State Treasurer pursuant to chapter 32, the asset allocation of such reserve fund shall be determined in accordance with the provisions of section [3-13d](#).

(d) The municipal treasurer shall submit, annually, a complete and detailed report of the condition of such Climate Change and Coastal Resiliency Reserve Fund to the chief elected official, budget-making authority and legislative body of such municipality. Such report shall be made a part of such municipality's annual report.

(e) Upon the recommendation of the chief elected official and budget-making authority of such municipality and the approval of the legislative body of such municipality, any part, or the whole, of such reserve fund may be used and appropriated to pay for municipal property losses, capital projects and studies related to mitigating hazards and vulnerabilities of climate change including, but not limited to, land acquisition.

(f) Such reserve fund may be discontinued, after recommendation by the chief elected official and budget-making authority of such municipality to the legislative body and upon approval of such discontinuation by such legislative body. Following any such vote to discontinue such reserve fund, any remaining portion of such fund shall be converted into, or added to, a sinking fund to provide for the retirement of the bonded indebtedness of such municipality. If the municipality has no bonded indebtedness, the remainder of such fund shall be transferred to the general fund of such municipality.

(P.A. 19-77, S. 1; P.A. 21-115, S. 18; P.A. 23-140, S. 1.)

History: P.A. 19-77 effective July 1, 2019; P.A. 21-115 made a technical change in Subsec. (c), effective July 1, 2021; P.A. 23-140 amended Subsec. (c) by designating existing provision re municipality budget-making authority as new Subdiv. (1) and added provision in same re investment in any trust administered, held or invested by the State Treasurer, redesignated existing Subdivs. (1) and (2) as new Subparas. (A) and (B) and made conforming changes and added new Subdiv. (2) re asset allocation of reserve fund determined in accordance with Sec. 3-13d, effective June 27, 2023.

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Secs. 7-160 to 7-163. Refining of oils regulated. Procedure prior to construction of oil refineries. Transportation of garbage; plants for treatment. Method of transportation; appeal. Coasting on highways. Sections [7-160](#) to [7-163](#), inclusive, are repealed.

(1949 Rev., S. 637, 4144, 4145, 4184; P.A. 75-337; P.A. 82-327, S. 12.)

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Sec. 7-163a. Municipal liability for ice and snow on public sidewalks. (a) Any town, city, borough, consolidated town and city or consolidated town and borough may, by ordinance, adopt the provisions of this section.

(b) Notwithstanding the provisions of section [13a-149](#) or any other general statute or special act, such town, city, borough, consolidated town and city or consolidated town and borough shall not be liable to any person injured in person or property caused by the presence of ice or snow on a public sidewalk unless such municipality is the owner or person in possession and control of land abutting such sidewalk, other than land used as a highway or street, provided such municipality shall be liable for its affirmative acts with respect to such sidewalk.

(c) (1) The owner or person in possession and control of land abutting a public sidewalk shall have the same duty of care with respect to the presence of ice or snow on such sidewalk toward the portion of the sidewalk abutting his property as the municipality had prior to the effective date of any ordinance adopted pursuant to the provisions of this section and shall be liable to persons injured in person or property where a breach of said duty is the proximate cause of said injury. (2) No action to recover damages for injury to the person or to property caused by the presence of ice or snow on a public sidewalk against a person who owns or is in possession and control of land abutting a public sidewalk shall be brought but within two years from the date when the injury is first sustained.

(P.A. 81-340.)

When state owns land abutting public sidewalk, ordinance adopted pursuant to section does not relieve municipality of liability for damages caused by ice or snow on sidewalk. 288 C. 1.

Adoption of ordinance by city under statute relieves city of liability for injuries on sidewalk abutting state property, even though part of the state property is leased to private businesses. 99 CA 492.

Cited. 44 CS 389.

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Sec. 7-163b. Annual municipal reports re telecommunications towers and antennas. Section [7-163b](#) is repealed, effective July 1, 2014.

(P.A. 04-226, S. 1; P.A. 14-19, S. 3.)

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Sec. 7-163c. Municipal telecommunications plan. On or after January 1, 2007, each municipality may develop a municipal telecommunications coverage plan. Such plan shall consider the information provided to the municipality pursuant to subsection (a) of section [16-50ee](#), and may include the mapping of all existing telecommunications towers and antennas, radio frequency propagation modeling of existing coverage, hypothetical coverage from alternative sites and identification of sensitive areas for restrictive use. The plan may delineate one or more areas of the municipality within which applications for the siting of telecommunications towers that meet pre-established criteria may receive expedited consideration. Such plan shall be consistent with (1) 47 USC 332(c)(7), as amended, and any regulations adopted pursuant to said 47 USC 332(c)(7), (2) the Code of Federal Regulations Title 47, Part 22, as amended, (3) tower sharing provisions of section [16-50aa](#), and (4) the state-wide telecommunications coverage plan adopted by the Connecticut Siting Council pursuant to subsection (a) of section [16-50ee](#). At the request of a municipality, the Connecticut Siting Council shall provide technical assistance to the municipality in preparing a plan under this subsection.

(P.A. 04-226, S. 3.)

History: P.A. 04-226 effective June 8, 2004.

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Sec. 7-163d. Establishment of municipal authority to develop or redevelop single parcel. On or before December 31, 2005, any municipality that (1) has a population between twenty-five and thirty thousand persons as enumerated in the 2000 federal decennial census, (2) occupies a total area of not less than fifty-nine square miles, and (3) is the site of a correctional institution operated by the Department of Correction, may, by ordinance adopted by its legislative body, establish an authority to oversee development or redevelopment of a specified area or parcel of land that is located in and owned by the municipality. Such ordinance shall prescribe (A) the boundaries of the area or parcel of land within the jurisdiction of the authority; (B) the method of appointment and terms of office of members of the authority; (C) the powers and duties of the authority which shall include implementation of a master plan of development, hiring employees, building, maintaining and operating improvements to the land in accordance with such master plan and negotiating and entering into leases for any part of the land and improvements thereon, provided (i) any lease shall be subject to the approval of the executive authority of the municipality, and (ii) no master plan of development may be implemented by the authority unless there has been opportunity for public comment on such master plan of development at a properly-noticed public hearing in the municipality; (D) a schedule for reporting progress on the implementation of the master plan of development to the legislative body and other appropriate municipal officials or agencies; and (E) any other provisions deemed necessary by the legislative body.

(P.A. 05-33, S. 1.)

History: P.A. 05-33 effective July 1, 2005.

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Sec. 7-163e. Public hearing on the sale, lease or transfer of real property owned by a municipality. (a) The legislative body of a municipality, or in any municipality where the legislative body is a town meeting or representative town meeting, the board of selectmen, shall conduct a public hearing on the sale, lease or transfer of real property owned by the municipality prior to final approval of such sale, lease or transfer. Notice of the hearing shall be published in a newspaper having a general circulation in such municipality where the real property that is the subject of the hearing is located at least twice, at intervals of not less than two days, the first not more than fifteen days or less than ten days and the last not less than two days before the date set for the hearing. The municipality shall also post a sign conspicuously on the real property that is the subject of the public hearing.

(b) The provisions of subsection (a) of this section shall not apply to (1) sales of real property, except parkland, open space or playgrounds, if the fair market value of such property does not exceed ten thousand dollars, (2) renewals of leases where there is no change in use of the real property, and (3) the sale, lease or transfer of real property acquired by the municipality by foreclosure.

(P.A. 07-218, S. 1; 07-251, S. 1; P.A. 10-32, S. 16.)

History: P.A. 07-251 added Subsec. (b)(3) re exception for property acquired by foreclosure; P.A. 10-32 made technical changes, effective May 10, 2010.

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Secs. 7-164 to 7-168. Sunday: Concerts; motion pictures; dancing; theatrical entertainment; sports; trade shows; dog shows; trials and races, horse shows and races. Sections [7-164](#) to [7-168](#), inclusive, are repealed.

(1949 Rev., S. 699–702; 1949, S. 276d, 277d; 1957, P.A. 13, S. 20–22; 252; March, 1958, P.A. 27, S. 1–4; 1959, P.A. 25; 1961, P.A. 238, S. 1; 1963, P.A. 331; February, 1965, P.A. 292; 1969, P.A. 34, S. 1; 1972, P.A. 79, S. 1–4; P.A. 73–263, S. 1–3; P.A. 74–27, S. 1, 2; P.A. 76–251, S. 1, 2; 76–415, S. 9; 76–435, S. 81, 82.)

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Sec. 7-168a. Surcharge on admission charge for event held at facility located within municipality. (a)(1) A municipality may, by ordinance, impose a surcharge on the admission charge for any event that is held at a facility located within the municipality. The amount of such surcharge shall not exceed five per cent of the amount of admission, except that the amount of such surcharge imposed on the Dunkin' Donuts Park in Hartford shall not exceed ten per cent of the amount of admission. The amount of any such surcharge shall be in addition to any tax otherwise applicable to such admission charge, except that no municipality may impose a surcharge on a facility pursuant to this section if (A) the municipality imposes a surcharge on such facility pursuant to section [12-579](#), or (B) all of the proceeds from the event inure exclusively to an entity which is exempt from federal income tax under the Internal Revenue Code, provided such entity actively engages in and assumes the financial risk associated with the presentation of such event. Any municipal ordinance adopted pursuant to this section may exclude additional events or facilities from the surcharge imposed pursuant to this section.

(2) As used in this section, “admission charge” means the amount paid, whether in the form of a ticket price, license fee, skybox, luxury suite or club seat rental charge or purchase price, or otherwise, for the right or privilege to have access to a place or location where amusement, entertainment or recreation is provided, exclusive of any charges for instruction, and including any preferred seat license fee or any other payment required in order to have the right to purchase seats or secure admission to any such place or location. Places of amusement, entertainment or recreation (A) include, but are not limited to, theaters, auditoriums where lectures and concerts are given, amusement parks, fairgrounds, race tracks, dance halls, ball parks, stadiums, amphitheaters, convention centers, golf courses, miniature golf courses, tennis courts, skating rinks, swimming pools, bathing beaches, gymnasiums, auto shows, boat shows, camping shows, home shows, dog shows and antique shows, but (B) do not include motion picture shows.

(b) The surcharge shall be imposed on the facility at which such event takes place, and reimbursement for the surcharge shall be collected from the purchaser upon payment of the admission charge. The surcharge, when added to the admission charge, shall be a debt from the purchaser to the facility and shall be recoverable at law. The facility shall remit the total amount of all surcharges imposed pursuant to this section to the municipality in accordance with section [12-581](#). Any surcharge imposed pursuant to this section shall be subject to the provisions of chapter 226a in the same manner as a tax imposed pursuant to said chapter.

(May Sp. Sess. P.A. 16-3, S. 186; June Sp. Sess. P.A. 17-2, S. 111; P.A. 18-26, S. 30.)

History: May Sp. Sess. P.A. 16-3 effective June 2, 2016; June Sp. Sess. P.A. 17-2 amended Subsec. (a) by designating existing provisions re surcharge on admission charge as Subdiv. (1), adding Subdiv. (2) redefining “admission charge”, and making technical and conforming changes, effective October 31, 2017; P.A. 18-26 amended Subsec. (a)(1) by replacing reference to facility described in Sec. 12-541(a)(12) with reference to Dunkin' Donuts Park.

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Sec. 7-169. Bingo. (a) Definitions. For the purposes of this section and section [7-169a](#), “bingo game” means a game in which each player receives a card containing several rows of numbers and, as numbers are drawn or otherwise obtained by chance and publicly announced, the player first having a specified number of announced numbers appearing on the player's card in a continuous straight line or covering a

previously designated arrangement of numbers on such card is declared the winner; “person” or “applicant” means the officer or representative of the sponsoring organization or the organization itself; “session” means a series of games played in one day; and “municipal official” means the chief of police of the municipality, or if there is no police department, the chief executive officer of the municipality, where the bingo game is to be conducted or is conducted.

(b) **Vote of municipality.** Upon a written petition of five per cent or more of the electors of any municipality requesting the selectmen, common council or other governing body of such municipality to vote upon the question of permitting the playing of bingo within such municipality, such governing body shall vote upon such question and, if the vote is in the affirmative, it shall be permitted, subject to the restrictions herein set forth, and if the vote is in the negative, bingo games shall not be permitted to be played in such municipality. When the selectmen, common council or other governing body of any municipality have voted favorably upon the question of permitting the playing of bingo games within such municipality, the playing of bingo games shall be permitted in such municipality indefinitely thereafter, without further petition or action by such governing body, unless such governing body has forbidden the playing of bingo games upon a similar written petition of five per cent or more of the electors of such municipality, whereupon bingo games shall not be permitted to be played after such negative vote.

(c) **Sponsorship.** No bingo game or series of bingo games shall be promoted, operated or played unless the same is sponsored and conducted exclusively by a charitable, civic, educational, fraternal, veterans' or religious organization, volunteer fire department or grange. Any such organization or group shall have been organized for not less than two years prior to its application for a bingo permit under the terms of this section. The promotion and operation of a bingo game or bingo games shall be confined solely to the qualified members of the sponsoring organization, except that the municipal official may permit any qualified member of a sponsoring organization who has registered with the municipal official, on a form prepared by the municipal official for such purpose, to assist in the operation of a bingo game sponsored by another organization. The municipal official may revoke such registration for cause.

(d) **Application for permit.** Any eligible organization desiring to operate bingo games in any municipality in which the governing body has voted to permit the playing thereof shall apply to the municipal official, which application shall contain a statement of the name and address of the applicant, the location of the place at which the bingo games are to be played and the seating capacity of such place, the date or dates for which a permit is sought, the class of permit sought and any other information which the municipal official reasonably requires for the protection of the public, and, upon payment of the fee provided for in this section, the municipal official is authorized to issue such permit, provided such eligible organization has been registered as provided in section [7-169a](#).

(e) **Bingo permits.** Permits shall be known as “Class A” which shall be annual one-day-per-week permits and shall permit the conduct of not more than forty and not less than fifteen bingo games on such day, “Class B” which shall permit not more than forty and not less than fifteen bingo games per day for a maximum of ten successive days, and “Class C” which shall be annual one-day-per-month permits and shall permit the conduct of not more than forty and not less than fifteen bingo games on such day. “Class A” permits shall allow the playing of bingo games no more than one day per week. Not more than two “Class B” permits shall be issued to any one organization within any twelve-month period. “Class C” permits shall allow the playing of bingo games no more than one day per month.

(f) **Permit fees.** The municipal official may set fees as follows: “Class A”, not to exceed seventy-five dollars; “Class B”, not to exceed ten dollars per day; and “Class C”, not to exceed fifty dollars.

(g) **Records of receipts and disbursements.** Each person who operates bingo games shall keep accurate records of receipts and disbursements, which shall be available for inspection by the municipal official.

(h) **Prizes.** Prizes offered for the winning of bingo games may consist of cash, merchandise, tickets for any lottery conducted under chapter 226, the value of which shall be the purchase price printed on such tickets, or other personal property. No permittee may offer a prize which exceeds two hundred fifty

dollars in value, except that (1) a permittee may offer a prize or prizes on any one day of not less than two hundred fifty-one dollars or more than seven hundred fifty dollars in value, provided the total value of such prizes on any one day does not exceed twenty-five hundred dollars, (2) a permittee may offer one or two winner-take-all bingo games or series of bingo games played on any day on which the permittee is allowed to conduct bingo games, provided ninety per cent of all receipts from the sale of bingo cards for such winner-take-all bingo game or series of bingo games shall be awarded as prizes for such bingo games or series of bingo games and provided each prize awarded does not exceed one thousand dollars in value, (3) the holder of a Class A permit may offer two additional prizes on a weekly basis not to exceed five hundred dollars each as a special grand prize and in the event such a special grand prize is not won, the money reserved for such prize shall be added to the money reserved for the next week's special grand prize, provided no such special grand prize may accumulate for more than sixteen weeks or exceed a total of five thousand dollars, and (4) a permittee may award door prizes the aggregate value of which shall not exceed five hundred dollars in value. When more than one player wins on the call of the same number, the designated prize shall be divided equally to the next nearest dollar. If a permittee elects, no winner may receive a prize which amounts to less than ten per cent of the announced prize and in such case the total of such multiple prizes may exceed the statutory limit of such bingo game.

(i) Imposition of regulation fee. Any organization that operates or conducts a bingo game pursuant to this section shall file a return with the municipal official, on a form prepared by the municipal official, within ten days after such bingo game is held or within such further time as the municipal official may allow, and pay to the municipality in which the bingo game was conducted a fee of five per cent of the gross receipts, less the prizes awarded, including prizes reserved for special grand prize games, derived from such bingo games at each bingo session. All such returns shall be public records.

(j) Suspension or revocation of permit. Cease and desist order. Notice. Hearing. Appeals. Penalty. (1) Whenever it appears to the municipal official after an investigation that any person is violating or is about to violate any provision of this section or section [7-169a](#) or has made any false statement in any application for a permit or in any report required by this section, the municipal official may, in his or her discretion, to protect the public welfare, order that any permit issued pursuant to this section be immediately suspended or revoked and that the person cease and desist from the actions constituting such violation or which would constitute such violation. Any person aggrieved by any order of the municipal official may appeal to the superior court for the judicial district in which the municipality is located.

(2) Whenever the municipal official revokes a permit issued pursuant to this section, the municipal official shall not issue any permit to such permittee for one year after the date of such revocation.

(3) Any person who promotes or operates any bingo game for which a permit is required pursuant to this section, or who violates any other provision of this section or section [7-169a](#) or who makes any false statement in any application for a permit or in any report required by this section or section [7-169a](#) or by the municipal official shall be guilty of a class D misdemeanor.

(1949 Rev., S. 703; 1959, P.A. 104; February, 1965, P.A. 451, S. 2–6, 8; 1967, P.A. 616, S. 1, 2; P.A. 73-239, S. 1, 3; P.A. 77-439; 77-614, S. 486, 610; P.A. 80-297, S. 1, 20; P.A. 82-472, S. 11, 183; P.A. 84-142; P.A. 85-24; P.A. 86-419, S. 4, 25; P.A. 87-1, S. 3, 7; 87-44, S. 1; 87-48, S. 1, 2; 87-582, S. 1–3; P.A. 88-363, S. 1–3, 7; P.A. 89-214, S. 1, 26; May Sp. Sess. P.A. 92-17, S. 1, 59; P.A. 93-13; P.A. 03-178, S. 1; P.A. 04-7, S. 1; 04-256, S. 1; 04-257, S. 5; P.A. 07-144, S. 2; P.A. 11-51, S. 134, 206; 11-61, S. 90; P.A. 12-80, S. 117; P.A. 13-299, S. 51, 52; P.A. 17-231, S. 1.)

History: 1959 act added violation of any provision of section to Subsec. (k); 1965 act amended Subsec. (a) to include as winner a player covering a previously designated arrangement of numbers and to define “session”, amended Subsec. (c) to authorize the commissioner of state police instead of the governing board of such municipality to make regulations and to specify that such regulations are to prevent fraud and protect the public, amended Subsec. (e) to cover “eligible organizations” instead of “persons”, to require applications to be in duplicate, duly executed and verified, to require registration of organizations and to require police chief or first selectmen to forward duplicate copy to commissioner, amended Subsec.

(h) to add reference to commissioner of state police, amended Subsec. (i) to eliminate prohibition against cash prizes, specifying that they may be offered, and amended Subsec. (k) to provide a penalty for violating any provision of the section or regulations or for making a false statement; 1967 act amended Subsecs. (f) and (g) to include "Class C" permits; P.A. 73-239 amended Subsec. (i) to include tickets to lotteries conducted under chapter 226 as prizes; P.A. 77-439 in Subsec. (i) increased maximum for daily total in prizes from \$250 to \$350, for largest special prize from \$50 to \$100, and removed prohibition against extra prizes, permitting such extra prizes if total of all prizes does not exceed total permitted; P.A. 77-614 replaced commissioner of state police with commissioner of public safety, effective January 1, 1979; P.A. 80-297 amended Subsec. (g) raising permit fees and replacing provision that all fees are property of town with formulas for dividing fees between municipality and state; P.A. 82-472, under Subsec. (c), authorized commissioner to adopt regulations in accordance with Ch. 54 and deleted reference to repealed Secs. 4-41 to 4-50; P.A. 84-142 amended Subsec. (i), increasing the maximum retail value of all prizes offered in one day from \$350 to \$500 and providing that holders of class B or C permits may offer a weekly grand prize; P.A. 85-24 amended Subsec. (i)(1) and (2), increasing the maximum number and amount of special prizes offered in one day from one prize not to exceed \$100 to two prizes not to exceed \$125 each and from four to six prizes not to exceed \$25 each; P.A. 86-419 amended Subsec. (a) to include definition of "executive director", Subsec. (c) to substitute executive director of the division of special revenue for commissioner of public safety, Subsec. (e) to require that application for a permit be made to the executive director, changing all references appropriately, Subsec. (f) to modify permit structure, retaining Class A and B permits and eliminating Class C permits, Subsec. (g) to eliminate prior provisions and to specify permit fees for Class A and B permits, Subsec. (h), to substitute executive director for authority authorized to issue permits and commissioner of public safety and to require that information be made available to said commissioner upon request, Subsec. (i) to modify the prize structure to permit winner-take-all games, the award of door prizes and cash prizes and to eliminate the \$500-a-day prize limitation, and inserted new Subsec. (j) imposing a gross receipts tax on organizations with annual receipts of over \$25,000 and relettered the remaining Subsecs. as Subsec. (k) substituting executive director for authority granting any such permit and Subsec. (l) substituting executive director for commissioner of public safety, effective October 1, 1987; P.A. 87-1 made technical corrections; P.A. 87-44 amended Subsec. (c) to require executive director to adopt regulations with the advice and consent of gaming policy board; P.A. 87-48 amended Subsec. (f), extending the expiration date for "Class B" permits from September fifteenth to the thirtieth, effective from April 14, 1987, to October 1, 1987; P.A. 87-582 amended Subsec. (b), effective from July 7, 1987, until October 1, 1987, to eliminate requirement re affirmative votes for two successive years upon question to permit indefinite bingo playing, instead requiring one affirmative vote to permit such playing, and to provide that any municipality which permitted bingo prior to July 7, 1987, shall be deemed to have been in compliance with provisions of subsection and, effective October 1, 1987, deleted all references to September first and September fifteenth and eliminated requirement re affirmative votes for two successive years upon question to permit indefinite bingo playing, instead requiring one affirmative vote to permit such playing; P.A. 88-363 amended Subsec. (c) to delete reference to repealed Sec. 7-169b, Subsec. (d) to permit any registered member of a sponsoring organization to assist in the operation of a game sponsored by another organization and to permit the revocation of such registration for cause, Subsec. (f) to provide that a maximum of two "Class B" permits shall be issued within a one-year period, Subsec. (g) to require a "Class B" permit fee of \$5 per day in lieu of \$50, Subsec. (i) to allow permittee to offer a greater variety of games and prizes, including one or two winner-take-all games, a special grand prize and the prizes specified in Subdiv. (1); Subsec. (j) to delete requirement that each organization with annual gross receipts of over \$25,000 file an annual return and to require each organization conducting bingo to pay a fee to the state in lieu of a tax of 5% of the gross receipts, less prizes awarded, including special grand prizes, derived from such games at each bingo session, and to require executive director to pay each municipality in which bingo games are conducted not less than four times and not more than twelve times a year in lieu of annually not later than August thirty-first, effective May 2, 1988, and applicable to bingo games conducted on or after July 1, 1988, and Subsec. (l) to delete references to repealed Sec. 7-169b; P.A. 89-214 replaced existing Subsec. (k) with new Subdivs. (1) to (4), inclusive, authorizing executive director to immediately suspend or revoke any permit and issue cease and desist orders, to send notice to any person violating any provision of Secs. 7-169 and 7-169a and specifying requirements for notice, requiring executive director to hold a hearing upon charges made and

authorizing him to suspend or revoke any permit and order imposition of a civil penalty, and prohibiting executive director from issuing any permit for one year after date of revocation whenever he revokes a permit, and designated former Subsec. (l) as Subsec. (k)(5); May Sp. Sess. P.A. 92-17 amended Subsec. (f) to establish a "Class C" permit as an annual one-day-per-month permit, allowing the playing of bingo no more than one day per month, and amended Subsec. (g) to establish a permit fee of \$50 for a "Class C" permit; P.A. 93-13 amended Subsec. (i)(3) to increase maximum period within which special grand prize may accumulate from 12 to 16 weeks, and amount of such prize from total of \$1,500 to \$2,000; P.A. 03-178 amended Subsec. (i)(1) to increase the total value of prizes on any one day from a maximum of \$400 to \$600 and Subsec. (i)(3) to increase the number of additional prizes the holder of a Class A permit may offer on a weekly basis not to exceed \$125 as a special grand prize from one to two and to require, in lieu of authorize, that if a special grand prize is not won, the money reserved for such prize be added to the money reserved for next week's special grand prize; P.A. 04-7 amended Subsec. (j) to require the executive director to make payment at least once a year and not more than four times a year in lieu of not less than four times a year and not more than twelve times a year, effective July 1, 2004; P.A. 04-256 amended Subsec. (k)(3) to provide a right of appeal to the Gaming Policy Board for any person aggrieved by a decision of the executive director and a right of appeal pursuant to Sec. 4-183 for any person aggrieved by a decision of the Gaming Policy Board, effective July 1, 2004; P.A. 04-257 made technical changes in Subsec. (i), effective June 14, 2004; P.A. 07-144 amended Subsec. (i) to increase the maximum prize from \$50 to \$100, and to increase the maximum prizes listed in Subdiv. (1); P.A. 11-51 changed "executive director of the Division of Special Revenue" and "executive director" to "Commissioner of Consumer Protection" and "commissioner", amended Subsec. (h) by requiring that records be available for inspection by commissioner and chief law enforcement official in municipality, amended Subsec. (i) by increasing prize values, amended Subsec. (k) by changing hearing date from not earlier than 14 days to not earlier than 30 days after notice is mailed and increasing fine amount from \$200 to \$500, and made technical changes, effective July 1, 2011; pursuant to P.A. 11-51, "Commissioner of Public Safety" was changed editorially by the Revisors to "Commissioner of Emergency Services and Public Protection" in Subsec. (h), effective July 1, 2011; P.A. 11-61 amended Subsec. (i) to increase maximum prize from \$200 to \$250, effective July 1, 2011; P.A. 12-80 amended Subsec. (k)(5) to change penalty from a fine of not more than \$500 or imprisonment of not more than 60 days or both to a class D misdemeanor; P.A. 13-299 amended Subsec. (c) to delete reference to advice and consent of Gaming Policy Board and amended Subsec. (k)(3) to delete provisions re right of appeal to Gaming Policy Board for hearing and right of appeal of decision of Gaming Policy Board, effective July 1, 2013; P.A. 17-231 amended Subsec. (a) to delete definition of "bingo", add definition of "bingo game", delete definition of "commissioner" and add definition of "municipal official", deleted former Subsec. (c) re commissioner to adopt regulations, redesignated existing Subsecs. (d) to (f) as Subsecs. (c) to (e), redesignated existing Subsec. (g) re fees as Subsec. (f) and amended same to replace provision re permit fees to be remitted to state with provision re municipal official may set fees, add "not to exceed" re Class A, Class B and Class C and replace "five dollars" with "ten dollars" re Class B, redesignated existing Subsec. (h) re records of receipts and disbursements as Subsec. (g) and amended same to replace provisions re records to be available for inspection by commissioner and chief law enforcement official in municipality with provision re records to be available for inspection by municipal official and delete provision re information to be available to Commissioner of Emergency Services and Public Protection, redesignated existing Subsec. (i) re prizes as Subsec. (h), redesignated existing Subsec. (j) re filing return as Subsec. (i) and amended same to replace reference to the state with reference to municipality in which bingo game was conducted and delete provision re commissioner to pay municipality, redesignated existing Subsec. (k) re violating provisions of section as Subsec. (j) and amended same to add provision re false statement in application for permit or report, replace provisions re hearing with provision re appeal to superior court in Subdiv. (1), delete former Subdivs. (2) and (3) re investigation and hearing, respectively, and redesignate existing Subdiv. (4) re revoking permit as Subdiv. (2), redesignate existing Subdiv. (5) re person who promotes or operates bingo game as Subdiv. (3) and amended same to replace "without a permit therefor" with "for which a permit is required pursuant to this section", replaced references to Commissioner of Consumer Protection with references to municipal official, and made technical and conforming changes, effective January 1, 2018.

“Class B” permit does not permit bingo games on Sunday; under Sec. 53-300, bingo is a secular business. 154 C. 583.

Cited. 22 CA 229; judgment reversed, see 217 C. 612.

Cited. 33 CS 169.

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Sec. 7-169a. Registration with municipal official. Definitions. Every organization desiring to apply for a permit under subsection (d) of section [7-169](#) to operate bingo games shall, before making any such application, register with the municipal official on forms furnished by the municipal official and secure an identification number. All applications for permits, amendment of permits, reports and any other papers relating to games of bingo shall bear the identification number of the organization involved. Neither registration nor the assignment of an identification number, which may be revoked for cause, shall constitute, or be any evidence of, the eligibility of any organization to receive a permit for or to conduct any bingo game.

(February, 1965, P.A. 451, S. 1; P.A. 77-614, S. 486, 610; P.A. 86-419, S. 5, 25; P.A. 11-51, S. 208; P.A. 17-231, S. 2.)

History: P.A. 77-614 substituted commissioner of public safety for commissioner of state police, effective January 1, 1979; P.A. 86-419 substituted executive director of division of special revenue for commissioner of public safety, effective October 1, 1987; P.A. 11-51 substituted “Commissioner of Consumer Protection” for “executive director of the Division of Special Revenue” and made a technical change, effective July 1, 2011; P.A. 17-231 replaced reference to Sec. 7-169(e) with reference to Sec. 7-169(d), replaced references to Commissioner of Consumer Protection with references to municipal official and made a technical change, effective January 1, 2018.

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Sec. 7-169b. Report re receipts, expenses and profit. Section [7-169b](#) is repealed.

(February, 1965, P.A. 451, S. 7; P.A. 77-614, S. 486, 610; P.A. 78-280, S. 12, 127; P.A. 81-276, S. 1; P.A. 86-419, S. 6, 25; P.A. 88-363, S. 6, 7.)

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Sec. 7-169c. Recreational bingo for senior citizens. Definitions. Registrations. Records. (a) For the purposes of this section, “bingo game” and “municipal official” have the same meaning as provided in subsection (a) of section [7-169](#).

(b) Any organization whose membership consists of persons sixty years of age or over may operate and conduct bingo games on and after January 1, 1989, for the amusement and recreation of its members without a permit as required by section [7-169](#), provided (1) such organization has registered with and applied for and received an identification number from the municipal official, (2) such organization does not charge an admission fee in excess of one dollar, (3) the prize or prizes awarded do not exceed fifty dollars in value, either in cash or merchandise, and (4) only active members of such organization assist in the operation of the bingo games without compensation. The municipal official may revoke any such registration for cause.

(c) Each such organization which operates bingo games shall keep accurate records of receipts and disbursements, which shall be available for inspection by the municipal official.

(d) Each such organization shall be exempt from the provisions of sections [7-169](#) and [7-169a](#).

(P.A. 88-363, S. 5, 7; P.A. 05-11, S. 1; P.A. 11-51, S. 209; P.A. 13-299, S. 53; P.A. 17-231, S. 3.)

History: P.A. 05-11 amended Subsec. (a)(3) to increase the maximum value of prizes awarded from \$5 to \$20, effective May 4, 2005; P.A. 11-51 substituted “Commissioner of Consumer Protection” and “commissioner” for “executive director of the Division of Special Revenue” and “executive director”, and increased prize limit from \$20 to \$50, effective July 1, 2011; P.A. 13-299 amended Subsec. (d) to make technical changes and delete reference to advice and consent of Gaming Policy Board, effective July 1, 2013; P.A. 17-231 added new Subsec. (a) re definitions of “bingo game” and “municipal official”, redesignated existing Subsecs. (a) to (c) as Subsecs. (b) to (d), amended redesignated Subsecs. (b) and (c) to replace references to Commissioner of Consumer Protection with references to municipal official, deleted former Subsec. (d) re commissioner to adopt regulations, effective January 1, 2018.

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Sec. 7-169d. Bingo products. Registration of manufacturer or equipment dealer. Fee. Approval of products. Revocation of registration. Regulations. (a) For the purposes of this section, (1) “bingo game” has the same meaning as provided in section [7-169](#), and (2) “bingo products” means bingo ball equipment, bingo cards or bingo paper.

(b) Each group or organization authorized to operate or conduct a bingo game or series of bingo games pursuant to sections [7-169](#) to [7-169c](#), inclusive, shall use bingo products that are (1) owned in full by such group or organization, (2) used without compensation by such group or organization, or (3) rented or purchased from a bingo product manufacturer or equipment dealer who is registered with the Commissioner of Consumer Protection in accordance with subsection (c) of this section.

(c) Each applicant for registration as a bingo product manufacturer or equipment dealer shall apply to the Commissioner of Consumer Protection on such forms as the commissioner prescribes. The application shall be accompanied by an annual fee of two thousand five hundred dollars payable to the State Treasurer. Each applicant for an initial registration shall submit to state and national criminal history records checks conducted in accordance with section [29-17a](#) before such registration is issued.

(d) No registered bingo product manufacturer or equipment dealer shall rent or sell any type of bingo product that has not been approved by the Commissioner of Consumer Protection.

(e) The Commissioner of Consumer Protection may revoke for cause any registration issued pursuant to subsection (c) of this section.

(f) The Commissioner of Consumer Protection may adopt regulations, in accordance with chapter 54, to implement the provisions of this section.

(P.A. 07-36, S. 1; June Sp. Sess. P.A. 09-3, S. 147; P.A. 11-51, S. 210; P.A. 17-231, S. 4.)

History: P.A. 07-36 effective January 1, 2008; June Sp. Sess. P.A. 09-3 amended Subsec. (c) to increase annual fee from \$1,500 to \$1,750; P.A. 11-51 substituted “Commissioner of Consumer Protection” for “Division of Special Revenue” and “executive director of the Division of Special Revenue”, and increased annual fee from \$1,750 to \$2,500, effective July 1, 2011; P.A. 17-231 amended Subsec. (a) to substitute “bingo game” for “bingo”, amended Subsec. (b) to delete reference to Sec. 7-169a, and made technical changes, effective January 1, 2018.

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Sec. 7-169e. Recreational bingo for parent teacher associations or organizations. Requirements. Definitions. Records. Exemption. (a) For the purposes of this section, “bingo game” and “municipal official” have the same meaning as provided in subsection (a) of section [7-169](#).

(b) Any parent teacher association or organization may operate and conduct bingo games for the amusement and recreation of such association's or organization's members and guests without a permit, as required by section [7-169](#), provided (1) such association or organization registers annually with the municipal official and pays an annual registration fee of not more than seventy-five dollars, (2) such association or organization obtains an identification number from the municipal official, (3) such association or organization charges an admission fee of not more than one dollar, (4) each individual prize of cash or merchandise offered does not exceed fifty dollars in value, and (5) only active members of such association or organization assist in the operation of the games of bingo and assist without compensation. The municipal official may revoke any such registration for cause.

(c) Each such association or organization shall keep accurate records of receipts and disbursements related to such bingo games, and such records shall be available for inspection by the municipal official.

(d) Each such association or organization shall be exempt from the requirements of sections [7-169](#) and [7-169a](#).

(P.A. 08-62, S. 1; June Sp. Sess. P.A. 09-3, S. 148; P.A. 11-51, S. 211; P.A. 13-299, S. 54; P.A. 17-231, S. 5.)

History: P.A. 08-62 effective May 12, 2008; June Sp. Sess. P.A. 09-3 amended Subsec. (a) to increase annual registration fee from \$20 to \$40; P.A. 11-51 changed “Division of Special Revenue” to “Department of Consumer Protection”, changed “executive director of the Division of Special Revenue” and “executive director” to “Commissioner of Consumer Protection”, increased annual registration fee from \$40 to \$80 and increased individual prize amount from \$20 to \$50, effective July 1, 2011; P.A. 13-299 amended Subsec. (d) to delete reference to consultation with Gaming Policy Board, effective July 1, 2013; P.A. 17-231 added new Subsec. (a) re definitions of “bingo game” and “municipal official”, redesignated existing Subsecs. (a) to (c) as Subsecs. (b) to (d), amended redesignated Subsec. (b) to replace “games of bingo, as defined in section 7-169” with “bingo games”, replace “Department of Consumer Protection” with “municipal official”, replace “fee of eighty dollars” with “fee of not more than seventy-five dollars” in Subdiv. (1) and delete provision re registration fees to be remitted to the state, deleted former Subsec. (d) re adoption of regulations, and made technical and conforming changes, effective January 1, 2018.

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Secs. 7-169f and 7-169g. Reserved for future use.

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Sec. 7-169h. Sealed tickets. Definitions. Permits to sell. Fees. Regulations. Suspension or revocation of permit. Cease and desist order. Notice. Hearing. Appeals. Penalty. (a) For the purposes of this section and section [7-169i](#):

(1) “Commissioner” means the Commissioner of Consumer Protection;

(2) “Department” means the Department of Consumer Protection;

(3) "Sealed ticket" means a card with tabs which, when pulled, expose pictures of various objects, symbols or numbers and which entitles the holder of the ticket to receive a prize if the combination of objects, symbols or numbers pictured matches what is determined to be a winning combination;

(4) "Distributor" means a person who is a resident of this state and is registered with the department to provide services related to the sale and distribution of sealed tickets to any organization permitted to sell sealed tickets by the department; and

(5) "Manufacturer" means a person who is registered with the department and who manufactures or assembles sealed tickets from raw materials, supplies or subparts.

(b) No person shall sell, offer for sale or distribute a sealed ticket who has not applied for and received a permit from the department to sell sealed tickets.

(c) No organization permitted to sell sealed tickets in this state shall purchase sealed tickets from anyone other than a distributor.

(d) A distributor shall not purchase sealed tickets for sale or use in this state from any person except a manufacturer. A distributor shall have a physical office in this state and such office shall be subject to inspection by the commissioner or the commissioner's duly designated agent during normal business hours. No organization or group or any person affiliated with an organization or group permitted to sell sealed tickets under this section shall be permitted to be a distributor.

(e) A manufacturer shall not sell sealed tickets to any person in this state except a distributor.

(f) All sealed tickets purchased by a distributor for sale or use in this state shall be stored or warehoused in this state prior to their sale to any organization permitted to sell sealed tickets.

(g) All sealed tickets sold in this state shall meet the standards on pull-tabs adopted by the North American Gaming Regulators Association.

(h) The department may issue a permit to sell sealed tickets to any organization or group specified in section [7-172](#).

(i) On and after July 1, 2011, the department may sell any sealed tickets it has in its possession as of said date, provided it does not purchase any new sealed tickets after said date. Permittees shall purchase such sealed tickets from the department at a cost which is equal to ten per cent of their resale value, until the department's supply of sealed tickets has been fully depleted. After the department's supply of sealed tickets has been fully depleted, permittees shall purchase such sealed tickets from a distributor at a cost which is equal to ten per cent of their resale value. Each such distributor shall remit thirty per cent of its gross revenue derived from such purchase fees to the State Treasurer on a quarterly basis.

(j) Each applicant for registration as a manufacturer or distributor shall apply to the commissioner on such forms as the commissioner prescribes. A distributor's application shall be accompanied by an annual fee of two thousand five hundred dollars, payable to the State Treasurer, and a manufacturer's application shall be accompanied by an annual fee of five thousand dollars, payable to the State Treasurer. Each applicant for an initial manufacturer or distributor registration shall submit to state and national criminal history records checks conducted in accordance with section [29-17a](#) before such registration is issued.

(k) Notwithstanding the provisions of subsection (b) of section [53-278b](#) and subsection (d) of section [53-278c](#), sealed tickets may be sold, offered for sale, displayed or open to public view only (1) during the course of a bingo game conducted in accordance with the provisions of section [7-169](#) and only at the location at which such bingo game is conducted, (2) on the premises of any such organization or group specified in subdivision (2) of subsection (h) of this section, (3) during the conduct of a bazaar under the provisions of sections [7-170](#) to [7-186](#), inclusive, or (4) in conjunction with any social function or event

sponsored or conducted by any such organization specified in subdivision (4) of subsection (h) of this section. Subject to the provisions of section [7-169i](#), permittees may utilize a mechanical or electronic ticket dispensing machine approved by the department to sell sealed tickets. Sealed tickets shall not be sold to any person less than eighteen years of age. All proceeds from the sale of tickets shall be used for a charitable purpose, as defined in section [21a-190a](#).

(l) The fee for a permit to sell sealed tickets (1) issued to an organization authorized to conduct bingo under a “Class A” or “Class C” permit or to an organization specified in subdivision (4) of subsection (h) of this section in conjunction with any social function or event sponsored or conducted by such organization shall be fifty dollars, (2) issued to an organization which holds a club permit or nonprofit club permit under the provisions of chapter 545 shall be seventy-five dollars, and (3) issued to an organization authorized to conduct bingo under a “Class B” permit or an organization which holds a permit to operate a bazaar shall be five dollars per day.

(m) The commissioner shall adopt regulations in accordance with the provisions of chapter 54 to carry out the purposes of this section including, but not limited to, regulations concerning (1) qualifications of a charitable organization, (2) the price at which the charitable organization shall resell tickets, (3) information required on the ticket, including, but not limited to, the price per ticket, (4) the percentage retained by the organization as profit, which shall be at least ten per cent of the resale value of tickets sold, (5) the percentage of the resale value of tickets to be awarded as prizes, which shall be at least forty-five per cent, (6) apportionment of revenues received by the department from the sale of tickets, and (7) investigations of any charitable organization seeking a permit.

(n) (1) Whenever it appears to the commissioner after an investigation that any person is violating or is about to violate any provision of this section or administrative regulations issued pursuant thereto, the commissioner may in his or her discretion, to protect the public welfare, order that any permit issued pursuant to this section be immediately suspended or revoked and that the person cease and desist from the actions constituting such violation or which would constitute such violation. After such an order is issued, the person named therein may, within fourteen days after receipt of the order, file a written request for a hearing. Such hearing shall be held in accordance with the provisions of chapter 54.

(2) Whenever the commissioner finds as the result of an investigation that any person has violated any provision of this section or administrative regulations issued pursuant thereto or made any false statement in any application for a permit or in any report required by the commissioner, the commissioner may send a notice to such person by certified mail, return receipt requested. Any such notice shall include (A) a reference to the section or regulation alleged to have been violated or the application or report in which an alleged false statement was made, (B) a short and plain statement of the matter asserted or charged, (C) the fact that any permit issued pursuant to this section may be suspended or revoked for such violation or false statement and the maximum penalty that may be imposed for such violation or false statement, and (D) the time and place for the hearing. Such hearing shall be fixed for a date not earlier than fourteen days after the notice is mailed.

(3) The commissioner shall hold a hearing upon the charges made unless such person fails to appear at the hearing. Such hearing shall be held in accordance with the provisions of chapter 54. If such person fails to appear at the hearing or if, after the hearing, the commissioner finds that such person committed such a violation or made such a false statement, the commissioner may, in his or her discretion, suspend or revoke such permit and order that a civil penalty of not more than five hundred dollars be imposed upon such person for such violation or false statement. The commissioner shall send a copy of any order issued pursuant to this subdivision by certified mail, return receipt requested, to any person named in such order. Any person aggrieved by a decision of the commissioner under this subdivision shall have a right of appeal pursuant to section [4-183](#).

(4) Whenever the commissioner revokes a permit issued pursuant to this section, he or she shall not issue any permit to such permittee for one year after the date of such revocation.

(P.A. 86-419, S. 7, 25; P.A. 88-363, S. 4, 7; P.A. 89-214, S. 2, 3, 26; P.A. 90-11; P.A. 91-73, S. 1, 4; Jan. 6 Sp. Sess. P.A. 03-1, S. 3; P.A. 03-178, S. 2, 3; P.A. 04-256, S. 2; P.A. 07-36, S. 3, 4; P.A. 11-51, S. 212; P.A. 13-299, S. 55; P.A. 17-231, S. 6; P.A. 18-40, S. 4.)

History: P.A. 86-419, S. 7 effective April 1, 1987; P.A. 88-363 amended Subsec. (b) to require renewal of permit annually, Subsec. (c)(2) to delete one-year limitation on issuance of permits to organizations holding a club or nonprofit club permit and provision that such organization not be authorized to conduct bingo, Subsec. (e)(2) to delete one-year limitation, and Subsec. (h)(4) to substitute “ten per cent” for “thirty per cent”; P.A. 89-214 amended Subsec. (a)(3) to permit sealed tickets to contain symbols or numbers, Subsec. (c)(1) and (2) to require that such permit be renewed annually, adding Subdivs. (3) and (4) re issuance of permit to certain organizations who hold permits to operate bazaars or games of chance, added Subsec. (e)(3) and (4), permitting sealed tickets to be sold, offered for sale or displayed during conduct of bazaar or operation of games of chance and allowing permittees to use mechanical or electronic ticket dispensing machines, Subsec. (f) to create three Subdivs., specifying fees for various organizations, deleted Subsec. (g) re authority to revoke permit, relettering remaining Subsec. accordingly and added new Subsec. (h) as follows: Subdiv. (1) authorizing executive director to immediately suspend or revoke any permit and issue cease and desist orders, Subdiv. (2) authorizing executive director to send notice to any person violating any provision of this section and specifying requirements for notice, Subdiv. (3) requiring executive director to hold a hearing upon charges made and authorizing him to order imposition of a civil penalty, and Subdiv. (4) prohibiting executive director from issuing any permit for one year after date of revocation whenever he revokes permit; P.A. 90-11 amended Subsec. (h)(3) to authorize executive director to suspend or revoke permit; P.A. 91-73 made a technical correction in Subsec. (e), substituting reference to Sec. 21a-190a for Sec. 21a-176; Jan. 6 Sp. Sess. P.A. 03-1 deleted Subsec. (b)(4) which had authorized the division to issue permits to sell sealed tickets to various organizations or entities holding a permit to operate games of chance issued in accordance with Secs. 7-186a to 7-186p, inclusive, deleted Subsec. (e)(4) which had authorized the sale of sealed tickets during the operation of games of chance under the provisions of Secs. 7-186a to 7-186p, inclusive, deleted a reference to games of chance in Subsec. (f)(3), and made a technical change in Subsec. (g), effective January 7, 2003; P.A. 03-178 added Subsec. (c) (4), authorizing issuance of permits to various organizations allowing sealed tickets to be sold in conjunction with any social function or event sponsored or conducted by such organizations, requiring organizations to be organized for at least two years prior to the date of permit application, and requiring that such permit be renewed annually, amended Subsec. (e) to make a technical change and add Subdiv. (4), permitting sealed tickets to be sold, offered for sale or displayed in conjunction with any social function or event sponsored or conducted by any organization specified in Subsec. (c)(4), and amended Subsec. (f)(1) to impose a \$50 fee for a permit to sell sealed tickets issued to an organization authorized to conduct bingo under a “Class C” permit or to an organization specified in Subsec. (c)(4) in conjunction with any social function or event sponsored or conducted by such organization; P.A. 04-256 amended Subsec. (h)(3) to provide a right of appeal to the Gaming Policy Board for any person aggrieved by a decision of the executive director and a right of appeal pursuant to Sec. 4-183 for any person aggrieved by a decision of the Gaming Policy Board, effective July 1, 2004; P.A. 07-36 amended Subsec. (a) to make definitions applicable to Sec. 7-169i, and amended Subsec. (e) to make permittees subject to Sec. 7-169i in their use of dispensing machines, effective January 1, 2008; P.A. 11-51 amended Subsec. (a) to replace definitions of “executive director” and “division” with definitions of “commissioner” and “department” and to add definitions of “distributor” and “manufacturer”, changed “division” to “department” and “executive director” to “commissioner” throughout, added new Subsecs. (c) to (g) re purchase of sealed tickets from distributor, purchase and storage of sealed tickets by distributor, sale by manufacturer, purchase by distributor and required standards, redesignated existing Subsec. (c) as Subsec. (h) and amended same to delete “On and after October 1, 1987,” in Subdiv. (1), deleted former Subsec. (d) re cost of purchase of sealed tickets by permittee, added Subsec. (i) re sale of sealed tickets by department on and after July 1, 2011, added Subsec. (j) re application for registration as manufacturer or distributor, redesignated existing Subsecs. (e) to (h) as Subsecs. (k) to (n), amended Subsec. (n)(3) to increase civil penalty from \$200 to \$500, and made technical changes, effective July 1, 2011; P.A. 13-299 amended Subsec. (m) to delete reference to advice and consent of Gaming Policy Board and amended Subsec. (n)(3) to delete provisions re right of appeal to Gaming Policy Board for hearing and right of appeal of decision

of Gaming Policy Board, effective July 1, 2013; P.A. 17-231 amended Subsec. (h) to replace references to Sec. 7-169(d) with references to Sec. 7-169(c) in Subdivs. (1) and (2), effective January 1, 2018; P.A. 18-40 amended Subsec. (h) to delete Subdivs. (1) and (2) re department issuance of permit to sell sealed tickets to certain organizations or groups specified in subsection (c) of section 7-169, delete Subdiv. (3) designator, delete provision re holder of permit to operate bazaar, and delete Subdiv. (4) re department's issuance of permit to sell sealed tickets to certain charitable, civic, educational, fraternal, veterans' or religious organizations, volunteer fire departments or granges, effective May 31, 2018.

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Sec. 7-169i. Sealed ticket machine. Registration of manufacturer or dealer. Fee. Revocation. Regulations.

(a) No permittee pursuant to section [7-169h](#) may use a mechanical or electronic ticket dispensing machine to sell sealed tickets unless such machine is owned in full by the permittee or is rented or purchased from a manufacturer or dealer who is registered with the Department of Consumer Protection.

(b) Each applicant for registration as a manufacturer or dealer in sealed ticket dispensing machines shall apply to the commissioner on such forms as the commissioner prescribes. The application for manufacturer shall be accompanied by an annual fee of one thousand two hundred fifty dollars payable to the State Treasurer. The application for dealer shall be accompanied by an annual fee of six hundred twenty-five dollars payable to the State Treasurer. Each applicant for initial registration shall submit to state and national criminal history records checks conducted in accordance with section [29-17a](#) before such registration is issued.

(c) The Department of Consumer Protection may revoke for cause any registration issued in accordance with subsection (a) of this section.

(d) The commissioner may adopt regulations, in accordance with chapter 54, to implement the provisions of this section.

(P.A. 07-36, S. 2; June Sp. Sess. P.A. 09-3, S. 149; P.A. 11-51, S. 213.)

History: P.A. 07-36 effective January 1, 2008; June Sp. Sess. P.A. 09-3 amended Subsec. (b) to increase annual fee from \$500 to \$625; P.A. 11-51 replaced “Division of Special Revenue” with “Department of Consumer Protection” and “executive director” with “commissioner”, increased manufacturer annual application fee from \$625 to \$1,250 and added provision re dealer annual application fee of \$625, effective July 1, 2011.

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Sec. 7-170. Bazaars and raffles; definitions. As used in this section and sections [7-171](#) to [7-186](#), inclusive, unless otherwise provided:

(1) “Applicant” means the sponsoring organization solely responsible for all charities participating in the bazaar or raffle;

(2) “Bazaar” means a place maintained by a sponsoring organization for the disposal of merchandise awards by means of chance;

(3) “Cash” means coins and paper money that is legal tender of any nation;

(4) “Coupon” means a ticket, form or document which the holder may redeem in exchange for gift cards, gift certificates, merchandise, tangible personal property, services or transportation on a common carrier,

or a discount in the purchase price of gift cards, gift certificates, merchandise, tangible personal property, services or transportation on a common carrier; and

(5) “Raffle” means an arrangement for raising money by the sale of tickets, certain among which, as determined by chance after the sale, entitle the holders to prizes.

(1955, S. 291d; P.A. 11-34, S. 1; P.A. 23-98, S. 20.)

History: P.A. 11-34 added definition of “coupon”; P.A. 23-98 added Subdiv. (1) redefining “applicant”, designated existing definitions of “bazaar” and “raffle” as Subdivs. (2) and (5), respectively, added Subdiv. (3) defining “cash”, added Subdiv. (4) redefining “coupon”, and made technical and conforming changes throughout, effective July 1, 2023.

Cited. 33 CS 169.

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Sec. 7-171. Adoption of bazaar and raffle law. Opt-out. (a) Prior to October 1, 2023, any town, city or borough may, by ordinance, adopt the provisions of sections [7-170](#) to [7-186](#), inclusive, and the chief executive authority of any town, city or borough shall, upon the petition of at least five per cent of the electors of such municipality as determined by the last-completed registry list, submit the question of adopting the provisions of sections [7-170](#) to [7-186](#), inclusive, to a vote of the electors of such municipality at a special meeting called for such purpose within twenty-one days after the receipt of such petition. Such petition shall contain the street addresses of the signers and shall be submitted to the municipal clerk, who shall certify thereon the number of names of electors on such petition, which names are on the last-completed registry list. Each page of such petition shall contain a statement, signed under the penalties of false statement, by the person who circulated the same, that each person whose name appears on such page signed the same in person and that the circulator either knows each such signer or that the signer satisfactorily identified such signer to the circulator. The warning for such meeting shall state that the purpose of such meeting is to vote on the adoption of the provisions of said sections. Such vote shall be taken and the results thereof canvassed and declared in the same manner as is provided for the election of officers of such municipality. The vote on such adoption shall be taken by a “YES” and “NO” vote on the voting tabulator and the designation of the question on the voting tabulator ballot shall be “Shall the operation of bazaars and raffles be allowed?” and such ballot shall be provided for use in accordance with the provisions of section [9-250](#). If, upon the official determination of the result of such vote, it appears that the majority of all the votes so cast are in approval of such question, the provisions of said sections shall take effect immediately. Any town, city or borough, having once voted on the question of allowing bazaars and raffles as herein provided, shall not vote again on such question within two years from the date of the previous vote thereon. Any subsequent vote thereon shall be taken at the next regular town, city or borough election following the receipt of a petition as herein provided, which petition shall be filed at least sixty days prior to such election, and such question may be so voted upon only at intervals of not less than two years. Any town, city or borough which, prior to October 1, 1957, has voted more than once on such question, shall, for the purposes of this subsection, be treated as though it had voted only once thereon.

(b) On and after October 1, 2023, each town, city and borough shall be deemed to have adopted the provisions of sections [7-170](#) to [7-186](#), inclusive. Any town, city or borough may, by ordinance, opt out of the provisions of sections [7-170](#) to [7-186](#), inclusive, and the chief executive authority of any town, city or borough shall, upon the petition of at least five per cent of the electors of such municipality as determined by the last-completed registry list, submit the question of opting out of the provisions of sections [7-170](#) to [7-186](#), inclusive, to a vote of the electors of such municipality at a special meeting called for such purpose within twenty-one days after the receipt of such petition. Such petition shall contain the street addresses of the signers and shall be submitted to the municipal clerk, who shall certify thereon the number of names of electors on such petition, which names are on the last-completed registry list. Each page of such petition shall contain a statement, signed under the penalties of false statement, by the person who circulated the

same, that each person whose name appears on such page signed the same in person and that the circulator either knows each such signer or that the signer satisfactorily identified such signer to the circulator. The warning for such meeting shall state that the purpose of such meeting is to vote on opting out of the provisions of said sections. Such vote shall be taken and the results thereof canvassed and declared in the same manner as is provided for the election of officers of such municipality. The vote on such adoption shall be taken by a “YES” and “NO” vote on the voting tabulator and the designation of the question on the voting tabulator ballot shall be “Shall the operation of bazaars and raffles be disallowed?” and such ballot shall be provided for use in accordance with the provisions of section [9-250](#). If, upon the official determination of the result of such vote, it appears that the majority of all the votes so cast are in approval of such question, the provisions of said sections shall no longer be effective in such municipality. Any town, city or borough, having once voted on the question of disallowing bazaars and raffles as herein provided, shall not vote again on such question within two years from the date of the previous vote thereon. Any subsequent vote thereon shall be taken at the next regular town, city or borough election following the receipt of a petition as herein provided, which petition shall be filed at least sixty days prior to such election, and such question may be so voted upon only at intervals of not less than two years.

(1955, S. 292d; 1957, P.A. 378; 1971, P.A. 871, S. 59; P.A. 73-55, S. 1, 2; P.A. 86-170, S. 4, 13; P.A. 87-320, S. 3; P.A. 11-20, S. 1; P.A. 23-98, S. 21.)

History: 1971 act substituted “false statement” for “perjury”; P.A. 73-55 added provision that municipalities may adopt provisions of Secs. 7-170 to 7-186 by ordinance; P.A. 86-170 required that ballot label designation be in form of question; P.A. 87-320 repealed clause prohibiting absentee voting for a vote under this section and required petition for subsequent vote to be fixed at least 60 days, instead of 21 days, prior to such election; pursuant to P.A. 11-20, “machine” and “ballot label” were changed editorially by the Revisors to “tabulator” and “ballot”, respectively, effective May 24, 2011; P.A. 23-98 designated existing provisions as Subsec. (a) and made technical and conforming changes therein, and added Subsec. (b) providing that municipalities shall be deemed to have adopted Secs. 7-170 to 7-186 and establishing opt-out, effective July 1, 2023.

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Sec. 7-172. Qualifications for sponsorship of or participation in bazaar or raffle. Ticket sale. No bazaar or raffle may be promoted, operated or conducted in any municipality after the adoption of the provisions of sections [7-170](#) to [7-186](#), inclusive, unless such bazaar or raffle is sponsored and conducted by (1) an officially recognized organization or association of veterans of any war in which the United States has been engaged, (2) a church or religious organization, (3) a civic, service or social club, (4) a fraternal or fraternal benefit society, (5) an educational or charitable organization, (6) an officially recognized volunteer fire company, (7) a political party or town committee thereof, or (8) a municipality acting through a committee designated to conduct a celebration of the municipality's founding on its hundredth anniversary or any multiple thereof. Any such sponsoring organization, except a committee designated pursuant to subdivision (8) of this section, shall have been organized in good faith and actively functioning as a nonprofit organization within the municipality that is to issue the permit for a period of not less than six months prior to its application for a permit under the provisions of said sections. The promotion and operation of a bazaar or raffle shall be confined solely to the qualified members of the sponsoring organization, provided a committee designated pursuant to subdivision (8) of this section may promote or operate through its members and any officially appointed volunteers. No such member or officially appointed volunteer in the case of a raffle held pursuant to subdivision (8) of this section may receive remuneration in any form for time or effort devoted to the promotion or operation of the bazaar or raffle. No person under the age of eighteen years may promote, conduct, operate or work at a bazaar or raffle and no person under the age of sixteen years may sell or promote the sale of any raffle tickets, nor shall any sponsoring organization permit any person under the age of eighteen to so promote, conduct or operate any bazaar or raffle or any person under the age of sixteen to sell or promote the sale of such tickets. Any sponsoring organization having received a permit from any municipality may (A) sell or

promote the sale of such raffle tickets in that municipality and in any other town, city or borough which has adopted the provisions of sections [7-170](#) to [7-186](#), inclusive, or (B) mail such raffle tickets to any resident of that municipality or of any other town, city or borough which has adopted the provisions of sections [7-170](#) to [7-186](#), inclusive, provided any such mailed raffle ticket is printed with the words “no purchase necessary to enter the raffle”. Any such sponsoring organization may promote its raffle by offering coupons to any person who purchases a raffle ticket. Such sponsoring organization may accept a credit card, debit card, check or cash as payment for a raffle ticket. Any such sponsoring organization, except a committee designated pursuant to subdivision (8) of this section, may sell or promote the sale of such raffle tickets on such sponsoring organization's Internet web site. In no event shall any sponsoring organization conduct or operate an online raffle. All funds derived from any bazaar or raffle shall be used exclusively for the purpose stated in the application of the sponsoring organization as provided in section [7-173](#).

(1955, S. 293d; 1957, P.A. 284; 1972, P.A. 127, S. 9, 251; P.A. 81-73; P.A. 86-419, S. 3, 25; May Sp. Sess. P.A. 92-17, S. 2, 59; P.A. 95-59, S. 2, 3; P.A. 03-60, S. 1; P.A. 05-37, S. 1; P.A. 11-34, S. 2; P.A. 17-161, S. 1; P.A. 23-98, S. 22.)

History: 1972 acts changed age of majority to 18 and allowed political party or town committee to conduct bazaars and raffles; P.A. 81-73 replaced the requirement that a sponsoring organization function within the state for a period of at least three years with a requirement that it function within the municipality that is to issue the permit for at least three years; P.A. 86-419 decreased the period of time a sponsoring organization shall be actively functioning as a nonprofit organization from three years to one year; May Sp. Sess. P.A. 92-17 added Subdiv. (8) to authorize a municipal founding celebration committee to sponsor and conduct a bazaar or raffle, exempted such committee from requirement that sponsoring organization be nonprofit, permitted such committee to promote or operate bazaars or raffles through its members and officially appointed volunteers and prohibited officially appointed volunteers from receiving remuneration for time devoted to operation of bazaars or raffles; P.A. 95-59 changed the length of time a sponsoring organization must be nonprofit within the municipality issuing the permit from one year to six months, effective May 31, 1995; P.A. 03-60 authorized organizations to accept a credit card, debit card, check or cash as payment for a raffle ticket and made a technical change; P.A. 05-37 amended Subdiv. (3) to allow a social club to conduct bazaars and raffles, effective May 17, 2005; P.A. 11-34 allowed raffle tickets to be mailed to residents of a municipality and coupons to be offered to a person who purchases a raffle ticket; P.A. 17-161 added provisions re selling or promoting raffle tickets on sponsoring organization's Internet web site and prohibition against online raffle, and made a technical change; P.A. 23-98 deleted provision re bazaar or raffle to be exclusively sponsored and conducted by persons listed in Subdivs. (1) to (8), effective July 1, 2023.

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Sec. 7-173. Application for permit. (a) For the purposes of this section, “municipal official” means the chief of police of the municipality, or if there is no police department, the chief executive officer of the municipality, where the bazaar or raffle is to be conducted.

(b) Any organization desiring to operate a bazaar or raffle in a municipality which has adopted the provisions of sections [7-170](#) to [7-186](#), inclusive, shall make application, duly executed and verified, to the municipal official on a form to be prescribed by the municipal official. The form shall include, but not be limited to, a description of the bazaar or raffle to be conducted and any other information which the municipal official reasonably requires for the protection of the public. In each application there shall be designated three active members of the applicant under whom the bazaar or raffle described in the application is to be held, operated and conducted and to the application shall be appended a statement signed, under penalty of false statement, by such members so designated that they are residents of this state and will be responsible for the holding, operation and conduct of such bazaar or raffle in accordance

with the terms of the permit and the provisions of said sections, and that the statements contained in the application are, to the best of their knowledge and belief, true.

(1955, S. 296d; 1971, P.A. 871, S. 60; P.A. 77-614, S. 486, 610; P.A. 86-419, S. 8, 25; P.A. 89-214, S. 4, 26; May Sp. Sess. P.A. 92-17, S. 3, 59; P.A. 11-8, S. 3; 11-51, S. 182; P.A. 13-196, S. 8; P.A. 14-24, S. 1; P.A. 15-60, S. 1; P.A. 17-231, S. 7.)

History: 1971 act substituted “false statement” for “perjury”; P.A. 77-614 substituted commissioner of public safety for commissioner of state police, effective January 1, 1979; P.A. 86-419 substituted executive director of division of special revenue for commissioner of public safety, effective October 1, 1987; P.A. 89-214 required police chief or first selectman to forward original copy of application to executive director who shall review application to determine qualifications of applicant to hold, operate and conduct a bazaar or raffle; May Sp. Sess. P.A. 92-17 required that application for “Class No. 7” permit be made to executive director of division of special revenue; P.A. 11-8 substituted “chief executive officer” for “first selectman”, effective May 24, 2011; pursuant to P.A. 11-51, “executive director of the Division of Special Revenue” and “executive director” were changed editorially by the Revisors to “Commissioner of Consumer Protection” and “commissioner”, respectively, effective July 1, 2011; P.A. 13-196 made technical changes and replaced provision re applicant members being electors of the municipality in which permit is sought with provision re such members being residents of this state, effective June 21, 2013; P.A. 14-24 replaced provision re application being made to chief of police or chief executive officer with provision re application being made to Commissioner of Consumer Protection, required commissioner to forward duplicate copy of application to chief of police or chief executive officer, required application for “Class No. 7” permit to be retained by commissioner and made technical and conforming changes; P.A. 15-60 deleted duplicate application provisions and Class No. 7 permit retention requirement; P.A. 17-231 added new Subsec. (a) re definition of “municipal official”, designated existing provisions re organization desiring to operate bazaar or raffle as Subsec. (b) and amended same to replace references to Commissioner of Consumer Protection with references to municipal official, delete Subdivs. (1) to (11) re statements in form prescribed by commissioner, add provision re form to include description of bazaar or raffle, delete provision re commissioner to forward application to chief of police or chief executive officer of municipality, effective January 1, 2018.

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Sec. 7-174. Investigation of applicant. After receipt of an application pursuant to section [7-173](#), the municipal official, as defined in said section, shall, for any permit where the total aggregate prize would exceed seven thousand five hundred dollars, make or cause to be made an investigation of the qualifications of the applicant and the facts stated in the application and, if the municipal official determines that the applicant is qualified to hold, operate and conduct a bazaar or raffle under the provisions of sections [7-170](#) to [7-186](#), inclusive, that the members of the applicant designated in the application to hold, operate or conduct such bazaar or raffle are residents of this state, bona fide active members of the applicant and persons of good moral character and have never been convicted of a felony and that such bazaar or raffle is to be held, operated and conducted in accordance with the provisions of said sections, the municipal official shall issue a permit to such applicant.

(1955, S. 298d; 1961, P.A. 115, S. 1; P.A. 77-614, S. 486, 610; P.A. 86-419, S. 9, 25; P.A. 89-214, S. 5, 26; May Sp. Sess. P.A. 92-17, S. 4, 59; P.A. 04-257, S. 91; P.A. 11-8, S. 4; 11-51, S. 182; P.A. 14-24, S. 2; P.A. 17-231, S. 8.)

History: 1961 act added words “if any” to end of last sentence; P.A. 77-614 substituted commissioner of public safety for commissioner of state police, effective January 1, 1979; P.A. 86-419 substituted executive director of division of special revenue for commissioner of public safety, effective October 1, 1987; P.A. 89-214 required police chief or first selectman to conduct investigation of applicant on behalf of executive director of division of special revenue, to issue permit to applicant with the approval of executive director,

and to forward state's share of permit fee to executive director rather than application fee, deleting requirement of forwarding duplicate of application; May Sp. Sess. P.A. 92-17 required that any investigation re qualifications of applicant for "Class No. 7" permit be made by executive director of division of special revenue; P.A. 04-257 made technical changes, effective June 14, 2004; P.A. 11-8 substituted "chief executive officer" for "first selectman", effective May 24, 2011; pursuant to P.A. 11-51, "executive director of the Division of Special Revenue" and "executive director" were changed editorially by the Revisors to "Commissioner of Consumer Protection" and "commissioner", respectively, effective July 1, 2011; P.A. 14-24 replaced provision re applicant members being electors of the municipality in which permit is sought with provision re applicant members being residents of this state, added provision re bazaar or raffle to be held, operated and conducted in accordance with administrative regulations, removed provision re chief of police or chief executive officer to forward the state's share of permit fee, required any issuance of a "Class No. 7" permit to be made by commissioner and made technical changes; P.A. 17-231 replaced provision re chief of police or chief executive officer's receipt of application from commissioner with provision re municipal official's receipt of application for permit where total aggregate prize would exceed \$7,500, deleted reference to administrative regulations, deleted provision re investigation by commissioner, and made conforming changes, effective January 1, 2018.

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Sec. 7-175. Kinds of permits. Permits under the provisions of sections [7-170](#) to [7-186](#), inclusive, shall be of seven kinds. "Class No. 1" permits shall allow the operation of a raffle which shall be consummated within three months of the granting of the permit and the aggregate value of the prize or prizes offered shall be not more than fifteen thousand dollars. "Class No. 2" permits shall allow the operation of a raffle which shall be consummated within two months of the granting of the permit and the aggregate value of the prize or prizes offered shall be not more than two thousand dollars. "Class No. 3" permits shall permit the operation of a bazaar for not more than sixty individual days, within six months of the granting of such permit. "Class No. 4" permits shall allow the operation of a raffle which shall be consummated within one month of the granting of the permit and the aggregate value of the prize or prizes offered shall be not more than one hundred dollars. "Class No. 5" permits shall allow the operation of a raffle which shall be consummated within nine months of the granting of the permit and the aggregate value of the prize or prizes offered shall be not more than fifty thousand dollars. "Class No. 6" permits shall allow the operation of a raffle which shall be consummated within one year of the granting of the permit and the aggregate value of the prize or prizes offered shall be not more than one hundred thousand dollars. "Class No. 7" permits shall allow the operation of a raffle which shall be consummated within fifteen months of the granting of the permit, shall allow no more than twelve prize drawings on separate dates and the aggregate value of the prize or prizes offered shall be not more than fifty thousand dollars. No more than one "Class No. 1" permit, two "Class No. 3" permits, one "Class No. 4" permit, five "Class No. 5" permits, five "Class No. 6" permits or three "Class No. 2" permits shall be issued to any qualifying organization within any one calendar year. The aggregate value of prizes offered under any of such permits shall represent the amount paid by the applicant for the prize or prizes or the retail value of the same if donated.

(1955, S. 294d; 1961, P.A. 115, S. 2; 1963, P.A. 110; P.A. 76-81, S. 1; P.A. 79-79; P.A. 81-383, S. 1; P.A. 82-462, S. 1, 3; 82-472, S. 12, 183; P.A. 83-35, S. 1; 83-587, S. 95, 96; P.A. 89-214, S. 6, 26; May Sp. Sess. P.A. 92-17, S. 5, 59; P.A. 93-332, S. 38, 42; P.A. 04-79, S. 1; June Sp. Sess. P.A. 17-2, S. 204.)

History: 1961 act created "Class No. 4" permit; 1963 act increased aggregate value of prizes under "Class No. 1" permits from \$5,000 to \$7,500; P.A. 76-81 raised maximum value of prizes offered under Class 1 permits to \$10,000; P.A. 79-79 raised prize limit under Class 1 permits to \$15,000, under Class 2 permits from \$1,000 to \$2,000 and under Class 4 permits from \$50 to \$100; P.A. 81-383 added "Class No. 5" and "Class No. 6" permits; P.A. 82-462 required all Class No. 6 permits to be obtained on or before June 30, 1983 and expanded the use of the proceeds under such permit in provisions designated as Subdivs. (2) to (5); P.A. 82-472 transferred, within the section, provision limiting issuance of "Class No. 3" permit; P.A.

83-35 deleted reference to Sundays as a day on which a bazaar is not operating under the Class No. 3 permits; P.A. 83-587 provided that public act 83-35 shall take effect July 1, 1983, rather than October 1, 1983; P.A. 89-214 eliminated the proviso under “Class No. 6” permits, restricting time for obtaining permits and use of net proceeds of raffles under such permits in Subdivs. (1) to (5), inclusive; May Sp. Sess. P.A. 92-17 added provisions re “Class No. 7” permit; P.A. 93-332 amended section to change the number of “Class No. 3” permits issued annually to any qualifying organization from one to two, effective June 25, 1993; P.A. 04-79 amended provision re “Class No. 5” permits to require the consummation of a raffle within nine months in lieu of six months of the granting of the permit, and provision re “Class No. 6” permits to require the consummation of a raffle within one year in lieu of nine months of the granting of the permit, and increased the maximum number of “Class No. 5” and “Class No. 6” permits issued to a qualifying organization within one calendar year from one to five, effective July 1, 2004; June Sp. Sess. P.A. 17-2 changed Class No. 3 operation period from ten consecutive days to sixty individual days, and made technical and conforming changes, effective October 31, 2017.

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Sec. 7-175a. Marketability of title to real property as prize under “Class No. 6” permit. Section [7-175a](#) is repealed.

(P.A. 82-462, S. 2, 3; P.A. 89-214, S. 25, 26.)

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Sec. 7-176. Permit fees. The fees to be charged for permits issued pursuant to section [7-175](#) shall be as follows: A “Class No. 1” permit, not to exceed seventy-five dollars; a “Class No. 2” permit, not to exceed thirty dollars; a “Class No. 3” permit, not to exceed sixty dollars for each day of the bazaar; a “Class No. 4” permit, not to exceed fifteen dollars; a “Class No. 5” permit, not to exceed one hundred twenty dollars; a “Class No. 6” permit, not to exceed one hundred fifty dollars; and a “Class No. 7” permit, not to exceed three hundred dollars.

(1955, S. 297d; 1961, P.A. 115, S. 3; P.A. 80-297, S. 2, 20; P.A. 81-383, S. 2; May Sp. Sess. P.A. 92-17, S. 6, 59; P.A. 14-24, S. 3; P.A. 15-60, S. 2; P.A. 17-231, S. 9.)

History: 1961 act added “Class No. 4” permit; P.A. 80-297 increased Class 1 permit fee from \$35 to \$50, Class 2 fee from \$10 to \$20 and Class 3 fee from \$15 to \$20 and raised proportionate amount of fee accruing to state; P.A. 81-383 added fees for “Class No. 5” and “Class No. 6” permits; May Sp. Sess. P.A. 92-17 added fee for “Class No. 7” permit; P.A. 14-24 required fees be submitted to Commissioner of Consumer Protection at the time of application and required the state to remit to the municipality a portion of the fee; P.A. 15-60 deleted “and submitted to the Commissioner of Consumer Protection at the time of application” and added provisions re fees retained by the state at the time application for permit is made and re fees remitted to municipality upon issuance of permit; P.A. 17-231 added reference to Sec. 7-175 re issuance of permits, deleted provisions re dollar amounts to be retained by the state and remitted to municipality, replaced \$50 with fee not to exceed \$75 re Class No. 1 permit, replaced \$20 with fee not to exceed \$30 re Class No. 2 permit, replaced \$20 with fee not to exceed \$60 re Class No. 3 permit, replaced \$5 with fee not to exceed \$15 re Class No. 4 permit, replaced \$80 with fee not to exceed \$120 re Class No. 5 permit, replaced \$100 with fee not to exceed \$150 re Class No. 6 permit and replaced \$100 with fee not to exceed \$300 re Class No. 7 permit, effective January 1, 2018.

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Sec. 7-177. Prizes. (a) All prizes given at any bazaar or raffle shall be merchandise, tangible personal property or a ticket, coupon, gift card or gift certificate, entitling the winner to merchandise, tangible personal property, services, transportation on a common carrier by land, water or air and to any tour facilities provided in connection therewith, or to participation in a lottery conducted under chapter 226. Such ticket, coupon, gift card or gift certificate shall not be refundable. No cash prizes or prizes consisting of alcoholic liquor shall be given, except as provided in subsection (b) of this section and section [7-177a](#), and no prize shall be redeemed or redeemable for cash, except tickets for a lottery conducted under chapter 226 or gift certificates awarded in accordance with subsection (e) of section [7-185a](#). No animal shall be given as a prize. For the purposes of this section, coins whose trading value exceeds their face value and coins not commonly in circulation shall not be deemed a cash prize.

(b) Any sponsoring organization authorized to conduct a bazaar pursuant to section [7-172](#) may award cash prizes not to exceed fifty dollars each in connection with the playing of a blower ball game. For purposes of this subsection “blower ball game” means a game of chance where the players wager on a color or number and the winner is determined by the drawing of a colored or numbered ball from a mechanical ball blower that mixes ping pong balls with blown air.

(1955, S. 295d; 1957, P.A. 328; P.A. 73-239, S. 2, 3; P.A. 81-383, S. 3; P.A. 89-214, S. 7, 26; P.A. 90-15, S. 1, 2; P.A. 07-36, S. 6; P.A. 09-34, S. 1; P.A. 10-132, S. 2; P.A. 23-98, S. 23; P.A. 24-142, S. 89.)

History: P.A. 73-239 allowed prizes to consist of lottery tickets; P.A. 81-383 added real property as a permissible prize under a “Class No. 6” permit; P.A. 89-214 deleted reference to prizes of real property in the case of a raffle conducted under a “Class No. 6” permit; P.A. 90-15 allowed prizes to consist of gift certificates entitling winner to merchandise, tangible personal property or services and specified that certain coins would not be deemed a cash prize; P.A. 07-36 made technical changes and added exception to the cash prize prohibition; P.A. 09-34 designated existing provisions as Subsec. (a), made a conforming change therein and added Subsec. (b) re prizes for blower ball games, effective May 20, 2009; P.A. 10-132 amended Subsec. (a) to add gift certificates as an exception to prohibition against prizes redeemable for cash; P.A. 23-98 amended Subsec. (a) by adding provisions re gift cards and deleting provision prohibiting transfer of prizes, effective July 1, 2023; P.A. 24-142 amended Subsec. (a) to add prohibition on animal as a prize.

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Sec. 7-177a. Cash prizes permitted. Special checking account. (a) Any sponsoring organization with a “Class No. 1”, “Class No. 2”, or “Class No. 4” permit that is qualified to conduct a raffle under section [7-172](#) or [7-185a](#) may conduct a frog-race, duck-race or traditional raffle and may award cash prizes to participants in such a raffle in addition to those prizes authorized under section [7-177](#).

(b) Any sponsoring organization with a “Class No. 6” permit that is qualified to conduct a raffle under section [7-172](#) or [7-185a](#) may conduct a golf ball-drop raffle and may award cash prizes to participants in such a raffle in addition to those prizes authorized under section [7-177](#).

(c) Any raffle described in subsection (a) or (b) of this section shall conform to the requirements of sections [7-170](#) to [7-186](#), inclusive. Each organization conducting a raffle described in this section shall deposit all proceeds from such raffle in a special checking account established and maintained by the organization which shall be subject to audit by the municipal official, as defined in section [7-173](#). Any expense incidental to the conduct of such raffle shall be paid from the gross receipts of raffle tickets and only by checks drawn from such checking account. All cash prizes awarded shall be paid from such checking account.

(P.A. 07-36, S. 5; P.A. 11-51, S. 182; 11-226, S. 2; P.A. 17-231, S. 10.)

History: Pursuant to P.A. 11-51, “Division of Special Revenue” was changed editorially by the Revisors to “Department of Consumer Protection”, effective July 1, 2011; P.A. 11-226 designated existing provisions as Subsecs. (a) and (c), made a technical change in Subsec. (c), and added Subsec. (b) permitting sponsoring organization with a “Class No. 6” permit that is qualified to conduct a golf ball-drop raffle to award cash prizes to participants; P.A. 17-231 amended Subsec. (c) to substitute “municipal official, as defined in section 7-173” for “Department of Consumer Protection”, effective January 1, 2018.

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Sec. 7-178. Equipment. Expenses. Information required on raffle ticket. Rental from out-of-state dealer.
(a) No bazaar or raffle shall be conducted with any equipment except such as is owned absolutely or used without payment of any compensation therefor by the permittee or as is rented from a dealer in such equipment who (1) has a principal place of business in this state, and (2) is registered with the Commissioner of Consumer Protection in such manner and on such form as he may prescribe, which form shall be accompanied by an annual fee of three hundred seventy-five dollars payable to the Treasurer of the state of Connecticut. No item of expense shall be incurred or paid in connection with the holding, operating or conducting of any bazaar or raffle pursuant to any permit issued under sections [7-170](#) to [7-186](#), inclusive, except such as are bona fide items of reasonable amount for goods, wares and merchandise furnished or services rendered, which are reasonably necessary to be purchased or furnished for the holding, operating or conducting thereof, and no commission, salary, compensation, reward or recompense whatever shall be paid or given, directly or indirectly, to any person for the direct sale of raffle tickets. Each raffle ticket shall have printed thereon the time, date and place of the raffle, the three most valuable prizes to be awarded and the total number of prizes to be awarded as specified on the form prescribed in section [7-173](#). In addition to any other information required under this section to be printed on a raffle ticket, each ticket for a raffle authorized pursuant to a “Class No. 7” permit shall have printed thereon the time, date and place of each raffle drawing.

(b) Notwithstanding the provisions of subsection (a) of this section, a permittee may rent equipment from a dealer who does not have a principal place of business in this state if an in-state dealer is unavailable, provided such out-of-state dealer is registered with said commissioner pursuant to the provisions of said subsection (a).

(1955, S. 299d; P.A. 76-81, S. 2; P.A. 77-492; 77-614, S. 486, 587, 610; P.A. 78-303, S. 85, 136; P.A. 83-35, S. 2; 83-587, S. 95, 96; P.A. 86-419, S. 10, 25; P.A. 89-214, S. 8, 26; May Sp. Sess. P.A. 92-17, S. 7, 59; P.A. 96-102, S. 1, 2; June Sp. Sess. P.A. 09-3, S. 150; P.A. 11-51, S. 182; P.A. 23-98, S. 24.)

History: P.A. 76-81 required tickets to be printed with three most valuable prizes and total number of prizes; P.A. 77-492 added exception to prohibition of bazaars and raffles on Sunday; P.A. 77-614 and P.A. 78-303 substituted commissioner of public safety for commissioner of state police and made state police department a division within the department of public safety, effective January 1, 1979; P.A. 83-35 eliminated the prohibition against Sunday bazaars or raffles; P.A. 83-587 provided that public act 83-35 shall take effect July 1, 1983, rather than October 1, 1983; P.A. 86-419 substituted division of special revenue for state police and executive director of said division for commissioner of public safety, effective October 1, 1987; P.A. 89-214 made format changes in section, inserting Subdivs. (1) and (2) and making technical changes as required, required that registration form be accompanied by annual fee of \$300 payable to state treasurer, and required tickets to be printed with time of raffle thereon; May Sp. Sess. P.A. 92-17 required each ticket for a raffle authorized under a “Class No. 7” permit to include the time, date and place of each drawing; P.A. 96-102 designated existing section as Subsec. (a) and made technical change therein and added Subsec. (b), conditionally authorizing permittee to rent equipment from out-of-state dealer, effective April 25, 1996; June Sp. Sess. P.A. 09-3 amended Subsec. (a) to increase annual fee from \$300 to \$375; pursuant to P.A. 11-51, “executive director of the Division of Special Revenue” and “executive director” were changed editorially by the Revisors to “Commissioner of Consumer Protection” and “commissioner”, respectively, effective July 1, 2011; P.A. 23-98 amended Subsec. (a) by substituting

provision prohibiting payment of compensation to person for direct sale of raffle tickets for provision prohibiting payment of compensation to person holding, operating or conducting, or assisting in holding, operation or conduct of, bazaar or raffle, effective July 1, 2023.

Cited. 196 C. 623.

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Sec. 7-179. Certain advertising prohibited. Exceptions. Section [7-179](#) is repealed, effective October 1, 2014.

(1955, S. 300d; P.A. 10-10, S. 1; P.A. 14-24, S. 7.)

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Sec. 7-180. Change in facts on application to be reported. If there is any change in the facts set forth in the application for a permit to conduct a bazaar or raffle subsequent to the making of such application, the applicant shall immediately notify the municipal official of such change. The municipal official may, if he or she deems such action advisable in the public interest, revoke such permit.

(1955, S. 301d; P.A. 89-214, S. 9, 26; P.A. 11-51, S. 182; P.A. 17-231, S. 11.)

History: P.A. 89-214 substituted “executive director of the division of special revenue” for “authority granting such permit”, making technical changes as necessary; pursuant to P.A. 11-51, “executive director of the Division of Special Revenue” and “executive director” were changed editorially by the Revisors to “Commissioner of Consumer Protection” and “commissioner”, respectively, effective July 1, 2011; P.A. 17-231 added “to conduct a bazaar or raffle” re application for permit, substituted “municipal official” for “Commissioner of Consumer Protection” and made technical changes, effective January 1, 2018.

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Sec. 7-181. Suspension or revocation of registration or permit. Cease and desist order. Notice of violation. Hearing. Penalty. Appeals. (a) For the purposes of this section, “municipal official” means the chief of police of the municipality, or if there is no police department, the chief executive officer of the municipality, where the bazaar or raffle is to be conducted or is conducted.

(b) Whenever it appears to the municipal official, after an investigation that any person is violating or is about to violate any provision of sections [7-170](#) to [7-182](#), inclusive, or made any false statement in any application for a permit or in any report required by the provisions of said sections, the municipal official may in his or her discretion, to protect the public welfare, order that any registration or permit issued pursuant to said sections be immediately suspended or revoked and that the person cease and desist from the actions constituting such violation or which would constitute such violation. Any person aggrieved by any order of the municipal official made pursuant to this subsection may appeal to the superior court for the judicial district in which the municipality is located.

(c) Whenever the municipal official revokes a permit issued pursuant to sections [7-170](#) to [7-186](#), inclusive, the municipal official shall not issue any permit to such permittee for three years after the date of such violation.

(1955, S. 302d; P.A. 89-214, S. 10, 26; P.A. 04-256, S. 3; P.A. 11-51, S. 182; P.A. 13-299, S. 56; P.A. 17-231, S. 12.)

History: P.A. 89-214 entirely replaced previously existing provisions and inserted Subsecs. (a) to (d), inclusive, in lieu thereof, authorizing executive director to immediately suspend or revoke any registration or permit and issue cease and desist orders, authorizing executive director to send notice to any person violating any provision of Secs. 7-170 to 7-185, inclusive, and specifying requirements for notice, requiring executive director to hold a hearing upon charges made and authorizing him to suspend or revoke registration or permit and order imposition of a civil penalty and prohibiting issuing authority from issuing any permit for three years after date of violation whenever executive director revokes permit; P.A. 04-256 amended Subsec. (c) to provide a right of appeal to the Gaming Policy Board for any person aggrieved by a decision of the executive director and a right of appeal pursuant to Sec. 4-183 for any person aggrieved by a decision of the Gaming Policy Board, effective July 1, 2004; pursuant to P.A. 11-51, “executive director of the Division of Special Revenue” and “executive director” were changed editorially by the Revisors to “Commissioner of Consumer Protection” and “commissioner”, respectively, effective July 1, 2011; P.A. 13-299 amended Subsec. (c) to delete provisions re right of appeal to Gaming Policy Board for hearing and right of appeal of decision of Gaming Policy Board, effective July 1, 2013; P.A. 17-231 added new Subsec. (a) re definition of “municipal official”, designated existing provisions re violation of provision of sections as Subsec. (b) and amended same to replace references to Commissioner of Consumer Protection with references to municipal official, replace “sections 7-170 to 7-185” with “sections 7-170 to 7-182”, delete reference to administrative regulations, add provision re false statement in application or report, replace provisions re hearing with provisions re appeal to superior court, deleted former Subsecs. (b) and (c) re investigation and hearing, respectively, redesignated Subsec. (d) re revoking permit as Subsec. (c) and amended same to replace references to commissioner and issuing authority with references to municipal official, effective January 1, 2018.

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Sec. 7-182. Report re receipts, number and price of tickets sold, expenses, profit and list of prizes with a retail value of fifty dollars or more. Any sponsoring organization that holds, operates or conducts any bazaar or raffle, and its members who were in charge thereof, shall furnish to the municipal official, as defined in subsection (a) of section [7-181](#), a report showing (1) the amount of the gross receipts derived from each bazaar or raffle, (2) in the case of a raffle, the number and price of tickets sold, (3) each item of expense incurred or paid, and each item of expenditure made or to be made and the name and address of each person to whom each such item has been or is to be paid, (4) the net profit derived from each bazaar or raffle and the uses to which the net profit has been or is to be applied, and (5) a list of prizes of a retail value of fifty dollars or more offered or given with the amount paid for each prize purchased or the retail value for each prize donated and the names and addresses of the persons to whom the prizes were given. Such report shall be furnished during the next succeeding month. The municipal official shall keep such report on file and available for public inspection for a period of one year thereafter. The sponsoring organization shall maintain and keep any books and records that may be necessary to substantiate the particulars of such report, which books and records shall be preserved for at least one year from the date of such report and shall be available for inspection. Such report shall be certified to under penalty of false statement by the three persons designated in the permit application as being responsible for the bazaar or raffle.

(1955, S. 303d; 1961, P.A. 115, S. 4; 1971, P.A. 871, S. 61; P.A. 77-614, S. 486, 610; P.A. 81-276, S. 2; P.A. 86-419, S. 11, 25; P.A. 89-214, S. 11, 26; May Sp. Sess. P.A. 92-17, S. 8, 59; P.A. 11-8, S. 5; 11-51, S. 182; P.A. 14-24, S. 4; P.A. 17-231, S. 13.)

History: 1961 act provided 90-day instead of 30-day period for filing report and excepted “Class No. 4” permits from required certification of report by accountant; 1971 act substituted “false statement” for “perjury”; P.A. 77-614 substituted commissioner of public safety for commissioner of state police, effective January 1, 1979; P.A. 81-276 required quarterly reports at specific times by organizations sponsoring bazaars rather than “within ninety days after the conclusion” of the bazaar or raffle; P.A. 86-419 substituted executive director of division of special revenue for commissioner of public safety, effective

October 1, 1987; P.A. 89-214 required reports by sponsoring organizations “during the next succeeding month” rather than quarterly, required police chief or first selectman to forward original copy of report to executive director instead of duplicate and eliminated requirement that accountant certify report in the case of “Class No. 1”, “Class No. 2” and “Class No. 3” permits; May Sp. Sess. P.A. 92-17 required that report for a “Class No. 7” raffle be submitted to executive director of division of special revenue during next succeeding month following final prize drawing; P.A. 11-8 substituted “chief executive officer” for “first selectman” and made technical changes, effective May 24, 2011; pursuant to P.A. 11-51, “executive director of the Division of Special Revenue” was changed editorially by the Revisors to “Commissioner of Consumer Protection”, effective July 1, 2011; P.A. 14-24 replaced provision re report to be furnished to chief of police or chief executive officer in duplicate with provision re report to be furnished to Commissioner of Consumer Protection, deleted provision re “Class No. 7” raffle report and made technical and conforming changes; P.A. 17-231 substituted municipal official for Commissioner of Consumer Protection, substituted report for verified statement and made a conforming change, effective January 1, 2018.

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Sec. 7-183. Examination of reports. Each such report may be examined by the municipal official, as defined in subsection (a) of section [7-181](#), and compared with the original application. The municipal official may refer any violation of sections [7-170](#) to [7-182](#), inclusive, to the office of the state's attorney having jurisdiction over the municipality in which the sponsoring organization is located and, if the bazaar or raffle was located in a different municipality than the municipality in which the sponsoring organization is located, to the office of the state's attorney having jurisdiction over the municipality in which the bazaar or raffle was located. Such state's attorney office shall investigate and take such action as the facts require.

(1955, S. 304d; 1959, P.A. 24; 1961, P.A. 115, S. 5; P.A. 77-614, S. 486, 610; P.A. 78-280, S. 13, 127; P.A. 86-419, S. 12, 25; P.A. 89-214, S. 12, 26; P.A. 11-8, S. 6; 11-51, S. 182; P.A. 14-24, S. 5; P.A. 16-138, S. 1; P.A. 17-231, S. 14.)

History: 1959 act required referral of violation of statutes or regulations to prosecutor in lieu of referral of “discrepancy”; 1961 act made technical change re prosecuting attorney; P.A. 77-614 substituted commissioner of public safety for commissioner of state police, effective January 1, 1979; P.A. 78-280 deleted reference to prosecuting attorney and made violations referable to office of state's attorney; P.A. 86-419 substituted executive director of division of special revenue for commissioner of public safety, effective October 1, 1987; P.A. 89-214 specifically permitted executive director to refer any violation of Secs. 7-170 to 7-185, inclusive, to state's attorney, deleting reference to “7-186”; P.A. 11-8 substituted “chief executive officer” for “first selectman”, effective May 24, 2011; pursuant to P.A. 11-51, “executive director of the Division of Special Revenue” and “executive director” were changed editorially by the Revisors to “Commissioner of Consumer Protection” and “commissioner”, respectively, effective July 1, 2011; P.A. 14-24 deleted provision re report to be examined by chief of police or chief executive officer, added provision re violations referable to office of state's attorney having jurisdiction over municipality where the bazaar or raffle was located and made technical changes; P.A. 16-138 changed “shall” to “may” in provision re examination of report by commissioner and made a conforming change; P.A. 17-231 substituted municipal official for Commissioner of Consumer Protection, substituted reference to Sec. 7-182 for reference to Sec. 7-185, and deleted provision re administrative regulations, effective January 1, 2018.

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Sec. 7-184. Rescission of adoption. Section [7-184](#) is repealed, effective October 1, 2023.

(1955, S. 305d; P.A. 23-98, S. 25.)

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Sec. 7-185. Regulations. Section [7-185](#) is repealed, effective January 1, 2018.

(1955, S. 306d; P.A. 77-614, S. 486, 610; P.A. 82-472, S. 13, 183; P.A. 86-419, S. 13, 25; P.A. 87-44, S. 2; P.A. 07-36, S. 7; P.A. 11-51, S. 182; P.A. 13-299, S. 57; P.A. 17-231, S. 18.)

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Sec. 7-185a. Exceptions for certain organizations. “Fifty-fifty” coupon games. Cow-chip raffles. Teacup raffles. Duck-race raffles. Frog-race raffles. Golf ball-drop raffles. (a) Notwithstanding the provisions of sections [7-170](#) to [7-186](#), inclusive, any organized church, volunteer fire company or veterans organization or association conducting a bazaar or raffle, (1) may be permitted to redeem prizes in cash; (2) shall be exempt from the requirement of preserving unsold raffle tickets beyond ninety days after the conclusion of the holding, operating and conducting of such bazaar or raffle and shall be permitted to dispose of unclaimed prizes after such ninety days; and (3) may file a reconciliation of expenditures and receipts signed by an officer in lieu of an accountant.

(b) Notwithstanding the provisions of sections [7-170](#) to [7-186](#), inclusive, any sponsoring organization qualified to conduct a bazaar or raffle under the provisions of section [7-172](#) may conduct such bazaar or have the actual drawing of such raffle in a municipality other than the municipality which grants the permit, provided the chief of police or if there is no police department, the chief executive officer of the other municipality has in writing approved such bazaar or drawing.

(c) Notwithstanding the provisions of section [7-177](#), any sponsoring organization conducting a bazaar may operate “fifty-fifty” coupon games each day of a permitted bazaar event and may award cash prizes of fifty per cent of “fifty-fifty” coupon game sales for each coupon drawing conducted. Not more than three scheduled drawings may be held on any day on which a bazaar is permitted. A “fifty-fifty” coupon game shall be operated from an authorized bazaar booth and shall allow for the sale of “fifty-fifty” coupons at a predetermined uniform price. Each “fifty-fifty” coupon shall be consecutively numbered and shall have a correspondingly numbered stub. Each sponsoring organization shall provide different colored coupons for each drawing and shall award one prize for each drawing held. Each sponsoring organization conducting such games shall conspicuously post, at each bazaar booth at which such games are conducted, a notice or notices which shall include the dates, times and places of any “fifty-fifty” coupon drawings, as well as the prices and colors of coupons to be sold for each drawing. The municipal officer shall prescribe the form of such notice which shall contain the following statement: “Holders of coupons must be present to claim a prize.” Each such organization shall account for each coupon printed and sold for each drawing and shall announce the amount of sales and the prize to be awarded immediately prior to each drawing. The sponsoring organization shall preserve all sold and unsold coupons or stubs for a period of at least one year from the date of the verified statement required pursuant to section [7-182](#).

(d) Notwithstanding the provisions of section [7-177](#), any sponsoring organization qualified to conduct a bazaar or raffle under the provisions of section [7-172](#) may operate a cow-chip raffle once a calendar year and may award cash prizes in connection with participation in such a raffle, in addition to those prizes authorized pursuant to section [7-177](#). Such raffles shall conform to the provisions of sections [7-170](#) to [7-186](#), inclusive. A cow-chip raffle shall allow for the sale of consecutively numbered tickets with correspondingly numbered stubs, entitling the holders of such tickets to the temporary possession of a plot of land for purposes of the conduct of the cow-chip raffle. Each sponsoring organization conducting a cow-chip raffle shall provide for a suitable land area on which the cow-chip raffle activity is to be conducted. The area shall be sufficiently enclosed so as to confine any animal utilized in the conduct of a

cow-chip raffle during the period in which the animal is so utilized. The area shall be adequately marked so as to display the number of plots to be utilized, which shall correspond to the number of cow-chip raffle tickets to be sold. The manner in which winners in a cow-chip raffle are determined shall be clearly stated prior to the commencement of a cow-chip raffle drawing and each sponsoring organization shall conspicuously post an information board which shall display the consecutively numbered plots of the cow-chip raffle event. A cow-chip raffle drawing shall commence at a designated time and shall continue until all winners of authorized prizes have been determined. No person may feed, lead or handle any animal utilized in a cow-chip raffle once the animal has entered into the enclosed area from which winners will be determined. Each sponsoring organization conducting a cow-chip raffle shall deposit all proceeds from the conduct of such raffle in a special checking account established and maintained by such organization, which shall be subject to audit by the municipal official. Any expense incidental to the conduct of such raffle shall be paid from the gross receipts of cow-chip raffle tickets and only by checks drawn from such checking account. All cash prizes awarded shall be paid from such checking account.

(e) Notwithstanding the provisions of sections [7-170](#) to [7-186](#), inclusive, any sponsoring organization conducting a bazaar may operate a “teacup raffle” and may, through the sale of chances, award prizes consisting of gift certificates or merchandise. No such organization may conduct more than one scheduled “teacup raffle” drawing for all prizes offered on any day on which a bazaar is permitted. A “teacup raffle” shall be operated from an authorized bazaar booth. Each “teacup raffle” ticket shall (1) be consecutively numbered and have a correspondingly numbered stub that shall include the name, address and telephone number of the purchaser, or (2) be a sheet containing up to twenty-five coupons, each bearing the same number, and including a “hold” stub for the purchaser and a correspondingly numbered stub including the name, address and telephone number of the purchaser. Sheet tickets shall be made available for purchase by permittees as fund raising items at a price not to exceed ten per cent above the purchase price. Each sponsoring organization conducting such raffle shall conspicuously post, at each bazaar booth at which such raffle is conducted, a notice or notices that include the date and time of any “teacup raffle” drawing. The sponsoring organization shall preserve all sold and unsold tickets or stubs for a period of at least one year from the date of the verified statement required pursuant to section [7-182](#).

(f) Any sponsoring organization qualified to conduct a bazaar or raffle under the provisions of section [7-172](#) may operate a duck-race raffle once each calendar year. Such raffles shall conform to the provisions of sections [7-170](#) to [7-186](#), inclusive. For the purpose of this subsection, “duck-race raffle” means a raffle in which artificial ducks, numbered consecutively to correspond with the number of tickets sold for such raffle, are placed in a naturally moving stream of water at a designated starting point and in which the ticket corresponding to the number of the first duck to pass a designated finishing point is the winning ticket.

(g) Any sponsoring organization qualified to conduct a bazaar or raffle under the provisions of section [7-172](#) may operate a frog-race raffle once each calendar year. Such raffles shall conform to the provisions of sections [7-170](#) to [7-186](#), inclusive. For the purpose of this subsection, “frog-race raffle” means a raffle in which artificial frogs numbered consecutively to correspond with the number of tickets sold for such raffle, are placed in a naturally moving stream of water at a designated starting point and in which the ticket corresponding to the number of the first frog to pass a designated finishing point is the winning ticket.

(h) Any sponsoring organization qualified to conduct a bazaar or raffle under the provisions of section [7-172](#) may operate a golf ball-drop raffle once each calendar year. Any such raffle shall conform to the provisions of sections [7-170](#) to [7-186](#), inclusive. For the purposes of this subsection, “golf ball-drop raffle” means a raffle in which golf balls, numbered consecutively to correspond with the number of tickets sold for such raffle, are dropped from a pay loader, bucket truck, crane or similar vehicle, platform, helicopter, hot air balloon or other aircraft hovering above a designated target, and in which the ticket corresponding to the number of the first golf ball to be closest to the center of the designated target is the winning ticket.

(P.A. 73-54; P.A. 86-6; 86-403, S. 129, 132; 86-419, S. 2; P.A. 89-211, S. 7; 89-214, S. 13, 26; 89-282, S. 4, 5; P.A. 91-35, S. 1, 5; 91-291, S. 1, 2; P.A. 94-11; P.A. 95-59, S. 1, 3; Jan. 6 Sp. Sess. P.A. 03-1, S. 4; P.A. 05-82,

S. 1; P.A. 07-36, S. 8; P.A. 10-132, S. 1; P.A. 11-8, S. 7; 11-51, S. 182, 207; 11-226, S. 1, 3; P.A. 13-299, S. 58; P.A. 14-24, S. 6; P.A. 15-60, S. 3; P.A. 17-231, S. 15.)

History: P.A. 86-6 subdivided the section, adding Subsec. (b), authorizing certain charitable and educational organizations to have actual raffle drawing in a municipality not granting the permit; P.A. 86-403 changed effective date of P.A. 86-6 from October 1, 1986, to July 1, 1986; P.A. 86-419 added Subsec. (c) to permit any volunteer fire company conducting a bazaar to award cash prizes for “money-wheel” games; P.A. 89-211 clarified reference to the Internal Revenue Code of 1986 in Subsec. (b); P.A. 89-214 amended Subsec. (c) to permit any “organization or group specified in section 7-172” conducting a bazaar to award cash prizes for “money-wheel” games, deleting specific reference to any “volunteer fire company”; P.A. 89-282 added a new Subsec. (d), permitting any organization conducting a bazaar to operate “fifty-fifty” coupon games; P.A. 91-35 added Subsec. (e) re cow-chip raffles; P.A. 91-291 added Subsec. (f) re “teacup raffles”; P.A. 94-11 amended Subsec. (a) to authorize certain charitable organization to conduct bazaar in municipality not granting the permit if the municipality has adopted Secs. 7-170 to 7-186, inclusive, and chief executive officer has approved bazaar in writing; P.A. 95-59 added Subsec. (g) authorizing duck-race raffles subject to regulations adopted by the executive director of Division of Special Revenue, effective May 31, 1995, and applicable to permit applications for duck-race raffles received by the Division of Special Revenue on and after the effective date of regulations adopted pursuant to this section; Jan. 6 Sp. Sess. P.A. 03-1 deleted existing Subsec. (c) which had authorized any organization or group specified in Sec. 7-172 to award cash prizes not exceeding \$25 each in connection with “money-wheel” games, and relettered existing Subsecs. (d) to (g) as (c) to (f), respectively, and made a technical change in new Subsec. (c), effective January 7, 2003; P.A. 05-82 added Subsec. (g) re frog-race raffles, effective June 2, 2005; P.A. 07-36 amended Subsec. (e) to make technical changes, add Subdiv. (1) designator and new Subdiv. (2) re “teacup raffle” tickets and add provision requiring division to be the sole issuer of sheet tickets at a price not to exceed 10% above the state purchase price; P.A. 10-132 amended Subsec. (e) to make a technical change, add provision authorizing award of gift certificates and increase maximum prize value from \$100 to \$250; P.A. 11-8 substituted “chief executive officer” for “first selectman” in Subsec. (c), effective May 24, 2011; P.A. 11-51 substituted “Commissioner of Consumer Protection” for “executive director of the Division of Special Revenue” and made conforming and technical changes throughout, amended Subsec. (c) by deleting requirement to furnish and file verified statement at conclusion of bazaar, amended Subsec. (d) by deleting Class No. 1, 2 and 4 permit references and by deleting plot plan application requirement and amended Subsec. (e) by deleting requirement re Division of Special Revenue being sole issuer of coupon sheet, effective July 1, 2011; pursuant to P.A. 11-51, “executive director of the Division of Special Revenue” was changed editorially by the Revisors to “Commissioner of Consumer Protection” in Subsec. (h), effective July 1, 2011; P.A. 11-226 amended Subsec. (e) to delete \$250 limit on teacup raffle prize amount and added Subsec. (h) permitting sponsoring organization qualified to conduct a bazaar or raffle to operate a golf ball-drop raffle once each calendar year; P.A. 13-299 amended Subsecs. (f), (g) and (h) to delete references to advice and consent of Gaming Policy Board, effective July 1, 2013; P.A. 14-24 amended Subsec. (a) by deleting former Subdiv. (1) re location of actual drawing and former Subdiv. (2) re location of bazaar and redesignating existing Subdivs. (3) to (5) as Subdivs. (1) to (3), amended Subsec. (b) by deleting requirement that sponsoring organization be a nonprofit organization and adding provision re approval by chief of police, and made technical changes; P.A. 15-60 amended Subsec. (h)(1) by making a technical change and adding “pay loader, bucket truck, crane or similar vehicle, platform,”; P.A. 17-231 deleted provisions re adoption of regulations and games and raffles subject to regulation by commissioner, amended Subsec. (b) by adding “if there is no police department”, amended Subsec. (c) by substituting “municipal officer” for “commissioner”, amended Subsec. (d) by substituting “municipal official” for “commissioner”, amended Subsecs. (f) and (h) by deleting Subdiv. (2) re adoption of regulations and deleting Subdiv. (1) designator, and amended Subsec. (g) to delete Subdiv. (2) re adoption of regulations, delete Subdiv. (1) designator and delete reference to specifications approved by commissioner, effective January 1, 2018.

Cited. 228 C. 375.

Sec. 7-185b. Tuition raffles. Regulations. Special bank account. Financial report. (a) For the purposes of this section, “tuition raffle” means a raffle in which the prize is payment of the tuition or part of the tuition at an educational institution or payment of a student loan or part of a student loan for a student recipient designated by the raffle winner, and “municipal official” means the chief of police of the municipality, or if there is no police department, the chief executive officer of the municipality, where the tuition raffle is to be conducted or is conducted.

(b) Notwithstanding the provisions of sections [7-170](#) to [7-186](#), inclusive, any organization qualified to conduct a bazaar or raffle under section [7-172](#) may conduct a tuition raffle once each calendar year. The municipality where the tuition raffle is to be conducted may, by ordinance, (1) allow any organization permitted to conduct a tuition raffle to fund all or a part of a student recipient's education or to pay all or part of a student recipient's student loan each year for a period not to exceed four years, (2) permit the student recipient to be the actual tuition raffle winner, a relative of the raffle winner or a student chosen by the raffle winner, (3) give authority to the sponsoring organization to permit the tuition prize to be divided among student recipients designated by the raffle winner, (4) provide that the tuition prize be paid each consecutive year, commencing with the first year of the student recipient's education at an accredited private or parochial school, or public or independent institution of higher education selected by the student recipient, (5) provide that the tuition prize be paid directly to the educational institution or financial institution that made the student loan designated by the student recipient, and no tuition prize shall be redeemed or redeemable for cash, and (6) provide that the tuition raffle winner have a period not to exceed four years to designate a student recipient. For the purposes of this section, “financial institution” means a bank, as defined in section [36a-2](#), an out-of-state bank, as defined in section [36a-2](#), a Connecticut credit union, as defined in section [36a-2](#), an out-of-state credit union, as defined in section [36a-2](#), an institutional lender, any subsidiary or affiliate of such bank, out-of-state bank, Connecticut credit union, out-of-state credit union or institutional lender, or other lender licensed by the Department of Banking.

(c) All proceeds of the tuition raffle shall be deposited in a special dedicated bank account approved by the municipal official, and all tuition raffle expenses shall be paid from such account. The municipal official shall prescribe the maintenance of tuition raffle accounts by any sponsoring organization and such accounts shall be subject to audit by the municipal official. The municipal official may require any organization conducting a tuition raffle to post a performance bond in an amount sufficient to fully fund the tuition raffle prize to be awarded.

(d) Any organization permitted to conduct a tuition raffle shall file a tuition raffle financial report in a manner prescribed by the municipal official. Such report shall detail the status of the tuition prize money or the raffle and any other information that the municipal official may require, on a quarterly basis, during the months of January, April, July and October, until all tuition or student loan payments for each tuition raffle have been paid.

(P.A. 07-36, S. 9; P.A. 11-51, S. 214; P.A. 14-28, S. 1; 14-122, S. 10; P.A. 17-231, S. 16.)

History: P.A. 11-51 replaced “executive director of the Division of Special Revenue” with “Commissioner of Consumer Protection” and “executive director” with “commissioner”, made technical changes and, in Subsec. (d), deleted reference to verified financial statement required in accordance with Sec. 7-182, effective July 1, 2011; P.A. 14-28 amended Subsec. (a) by redefining “tuition raffle”, amended Subsec. (b) by requiring regulations to allow prizes to consist of payment of all or part of a student loan and provide that payment of prize be made to a financial institution, and by defining “financial institution”, and made technical and conforming changes; P.A. 14-122 made a technical change in Subsec. (b); P.A. 17-231 amended Subsec. (a) to add definition of “municipal official”, amended Subsec. (b) to delete “special” re tuition raffle, delete provision re commissioner to adopt regulations and add provision re municipality

may adopt ordinance, amended Subsecs. (c) and (d) to delete “special” re tuition raffle and replace references to commissioner with references to municipal official, and made technical changes, effective January 1, 2018.

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Sec. 7-186. Penalty. Any person who violates any provision of sections [7-170](#) to [7-185b](#), inclusive, or who makes any false statement in any application for a permit or in any report required by the provisions of said sections shall be fined not more than one thousand dollars or imprisoned not more than one year or be both fined and imprisoned.

(1955, S. 307d; P.A. 89-214, S. 14, 26; P.A. 17-231, S. 17.)

History: P.A. 89-214 provided that violation of any provision of administrative regulations would subject violator to penalty; P.A. 17-231 deleted “7-185, inclusive, or administrative regulations issued pursuant thereto” and inserted “7-185b, inclusive”, effective January 1, 2018.

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Secs. 7-186a to 7-186l. Games of chance; qualifications for sponsorship and participation. Application for permit; location of games of chance, exception. Investigation of applicant; limitations on permits; money not to be used; requirements for financial transactions; written agreement between sponsoring organization and operator of games of chance; investigation of operator. Permit; fee; prizes. Equipment; expenses. Advertising restricted. Change in facts on application to be reported. Suspension or revocation of registration or permit; cease and desist order; notice of violation; hearing; penalty. Report re receipts, expenses, profit and list of prizes with a retail value of fifty dollars or more. Examination or reports. Regulations. Penalty. Sections [7-186a](#) to [7-186l](#), inclusive, are repealed, effective January 7, 2003, and any permit or registration issued pursuant to said sections of the general statutes, revised to January 1, 2001, shall terminate on said date, and the Division of Special Revenue shall refund any permit or registration fees paid by any person, firm or organization that applied for a permit or registration pursuant to said sections which permit or registration is terminated pursuant to the provisions of section 6 of public act 03-1 of the January 6 special session.

(1972, P.A. 60, S. 1–12; P.A. 73-616, S. 4; P.A. 75-640; P.A. 76-404, S. 1–8; P.A. 77-614, S. 486, 610; P.A. 78-280, S. 14, 127; 78-327, S. 3–5, 10–17; P.A. 80-297, S. 3, 20; P.A. 81-72; 81-276, S. 3; P.A. 86-312, S. 19, 21; 86-419, S. 14–19, 25; P.A. 87-44, S. 3; 87-288, S. 1–3; P.A. 88-317, S. 48, 107; P.A. 89-214, S. 15–23, 26; 89-217, S. 4, 6; P.A. 90-325, S. 16, 17, 29, 32; P.A. 91-35, S. 2, 5; 91-320, S. 1, 2; P.A. 93-55, S. 1; Jan. 6 Sp. Sess. P.A. 03-1, S. 6, 7.)

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Sec. 7-186m. Exceptions for certain sponsoring organizations. Section [7-186m](#) is repealed.

(1972, P.A. 60, S. 17; P.A. 88-364, S. 122, 123.)

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Secs. 7-186n to 7-186q. Registration of sponsoring organizations; issuance and use of identification numbers. Equipment identified by number. Accounting of receipts; requirements. Auxiliary organization permitted to assist at games of chance event; application. Sections [7-186n](#) to [7-186q](#), inclusive, are

repealed, effective January 7, 2003, and any permit or registration issued pursuant to said sections of the general statutes, revised to January 1, 2001, shall terminate on said date, and the Division of Special Revenue shall refund any permit or registration fees paid by any person, firm or organization that applied for a permit or registration pursuant to said sections which permit or registration is terminated pursuant to the provisions of section 6 of public act 03-1 of the January 6 special session.

(P.A. 78-327, S. 1, 2, 6–9, 17; P.A. 86-419, S. 20–22, 25; P.A. 89-214, S. 24, 26; Jan. 6 Sp. Sess. P.A. 03-1, S. 6, 7.)

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